

NTPC Limited
(A Government of India Enterprise)
(CORPORATE CONTRACTS, NOIDA)
INVITATION FOR BIDS (IFB)
FOR

**Procurement of Biomass Pellets on FOR Power Station basis for NTPC Vindhyachal,
Sipat, Korba and Lara Plants**

(LOT-2)

(Domestic Competitive Bidding)

BID DOCUMENT No: CS-0011-112R-9

Date:13.05.2024

1.0 NTPC Limited invites on-line bids on **Single Stage Two Envelope basis (i.e. Envelope-I: Techno-Commercial and Envelope-II: Price)** from eligible Bidders for aforesaid package, as per the scope of work briefly mentioned hereinafter, for **Vindhyachal, Sipat, Korba and Lara Plants**.

2.0 **Brief Scope of Work**

- 2.1 The scope of work under this package shall include supply, loading, transport and delivery of agro-residue based biomass pellets at NTPC Site.
- 2.2 Unloading at NTPC site shall be in the scope of NTPC Plants provided pellets are loose filled in the carriage vehicle. Carriage vehicle should be fully covered and waterproof during transportation to prevent the material from rain, sunlight and to prevent dusting.
- 2.3 If supplier supplies the material packed in bags, consignment shall not be accepted, or supplier shall unload and unpack the material at his own cost and supplier must take back the empty bags from plant premises. In such case, any additional cost, including demurrage, if any, will be borne by the vendor.
- 2.4 The pellets supplied shall adhered to the technical specification given in tender document.

3.0 NTPC intends to finance the aforesaid Package through own resource.

4.0 Detailed specification, scope of work and terms & conditions are given in the Bidding Documents, which are available for downloading as per the following schedule:

Issuance of IFB	13.05.2024
IFB/Tender No.	
	GEM BID NO: GEM/2024/B/4939757 (FOR Vindhyachal Non-Torrified)
	GEM BID NO: GEM/2024/B/4939308 (FOR- Sipat Non-Torrified)
	GEM BID NO: GEM/2024/B/4939588 (FOR - Korba Non Torrified)
	GEM BID NO: GEM/2024/B/4939662 (FOR – Lara Non Torrified)

INVITATION FOR BIDS (IFB)

Document Download start date	From 14.05.2024
Last date for receipt of queries from bidders (if any)	21.05.2024
Pre Bid Conference date & time (Meeting Link Click here)	21.05.2024 at 1100 hrs. (IST) through MS Team Video Conference
Bid (both Techno-Commercial and Price) submission end date & time	Up to 12.06.2024 by 1400 hrs. (IST)
Date and time for opening of Techno-commercial bid	12.06.2024 at 1430 hrs. (IST)
Date and time for opening of Price bid	Shall be intimated after opening of Techno-commercial bid
Cost of bidding document	Free of cost

5.0 **MSE Benefits:** Benefits under PPP 2012 for MSEs are applicable only for **(a) Goods produced and (b) Services provided by MSEs. MSE benefits shall not be applicable to Trader/Dealer of Goods.** For availing MSE benefits, bidder shall confirm that Biomass Pellets, offered / quoted are manufactured by them. For applicability of MSE benefits, bidder shall refer to the Bidding documents.

6.0 All bids must be accompanied by Bid security as per the following table in the form as stipulated in Bidding Documents

Quoted cumulative quantity in TPD (Tonne per day)	Bid Security amount (INR)
20	10 Lakh
30 to 60	20 Lakh
70 to 140	50 Lakh
150 to 300	1 Cr
310 to 760	2 Cr
770 to 1540	5 Cr
1560 to 3080	10 Cr
3090 to 7660	20 Cr

ANY BID NOT ACCOMPANIED BY AN ACCEPTABLE BID SECURITY IN A SEPARATE SEALED ENVELOPE SHALL BE REJECTED BY THE EMPLOYER AS BEING NON-RESPONSIVE. IN CASE, THE BID SECURITY IS SUBMITTED THROUGH ELECTRONIC FUND TRANSFER (EFT), BIDDER TO SUBMIT THE PROOF OF E-PAYMENT OF BID SECURITY EITHER IN SEPARATE SEALED ENVELOPE OR IN THE GeM PORTAL.

7.0 A complete set of Bidding Documents may be downloaded by any interested Bidder free of cost through GeM Portal website (<https://gem.gov.in/>). For logging on to the GeM Site, the bidder would require user id and password which can be obtained by registration at GeM Portal website (<https://gem.gov.in/>).

8.0 Eligibility Criteria for Bidders:

- i. Only Pellets manufacturers, Future pellet manufacturers and traders/aggregators shall be allowed to participate in the tender.
- ii. Future pellet manufacturers will need to submit project details certified by Chartered accountant, which shall include plant location / tentative plant location and plant capacity.
- iii. In case of individual applicant, the bidder should be of minimum 21 years of age.
- iv. The Bidder shall be of Indian nationality AND / OR a Company/ Sole Proprietorships / Partnerships / Limited Liability Partnerships / Consortium / Cooperative Societies registered in India AND / OR Non-Resident Indians/ Person of Indian Origin AND / OR a Multinational Company having its registered office in India. /Overseas Corporate Bodies having its registered office in India.
- v. Bidding for the subject package is open to Bidders from within the Employer's country only, subject to fulfilment of conditions "Restrictions on procurement from a Bidder of a country which shares a land border with India". In case of Consortium, all the Partners of the consortium shall be from within the Employer's country.

9.0 'Class-I local suppliers' only are eligible to participate in this tender, as defined in the bidding documents/ Public Procurement (Preference to Make in India), Order 2017 and its subsequent amendments/ revisions issued by DPIIT. The bidders may apprise themselves of the relevant provisions of bidding documents in this regard before submission of their bids.

10.0 Transfer of Bidding Documents downloaded by one intending Bidder to another is not permissible.

11.0 Issuance of Bidding Documents to any bidder shall not construe that bidder is considered qualified.

12.0 NTPC reserves the right to reject any or all bids or cancel/withdraw the Invitation for Bids (IFB) for the subject package without assigning any reason whatsoever and in such case no bidder/intending bidder shall have any claim arising out of such action.

13.0 **Address for Communication**

DGM (CS) / Sr. Manager (CS)
NTPC Limited,
6th Floor, Engineering Office Complex,



INVITATION FOR BIDS (IFB)

Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.),
Pin – 201301, INDIA

Telephone No. : 0120 494 6563 / 0120 494 6527

e-mail : mareshwaranand@ntpc.co.in OR rajeshsharma@ntpc.co.in

Websites : <https://gem.gov.in/> OR <https://ntpctender.ntpc.co.in>

14.0 Registered Office

NTPC Limited
NTPC Bhawan, SCOPE Complex, 7, Institutional Area, Lodi Road, New Delhi – 110003
Corporate Identification Number: L40101DL1975GOI007966,
Website: www.ntpc.co.in

Section – II

INSTRUCTIONS TO BIDDERS (ITB)

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A. INTRODUCTION

- 1.0** NTPC invites online bids on Single Stage Two Envelope bidding basis (Envelope-I: Techno-Commercial Bid & Envelope-II: Price Bid) from eligible bidders for the Package, as per the Scope of Work mentioned hereinafter.

Bidding for the package “**Procurement of Non-Torrefied Biomass Pellets on FOR Power station basis for Plants as per Annexure III of Section IV Technical specifications** for 12 months (365 days) is open to bidders from within the Employer's country.

–Instructions Related to E –Tendering:

The prospective Bidders are invited to submit a “Techno-commercial Bid” and “Price Bid” for the package. Methodology for submission of Bid has been detailed hereunder in this document.

Bids are to be submitted through GeM Portal. Bidders must use their GeM Seller ID and Password for participation in the tender. Bidders who do not have GeM Seller ID must register themselves as Seller in GeM Website by visiting Government e-Marketplace Website - <https://gem.gov.in/>.

Bidders may also refer to the Seller Help Document for participating in the tender which is uploaded on GeM website. Bidder shall download the Tender Documents from Government e-Marketplace Website- <https://gem.gov.in/> and promptly upon download of Tender documents, the Bidder shall fully satisfy itself that Bid Documents is complete in all respects. Notice of any discrepancy shall be given to NTPC immediately. The Bidder shall confirm that the Bid Documents is complete in all respects. In the event that the Bid Documents or any part thereof is mutilated or missing, the Bidder must notify NTPC immediately.

The Bidding documents shall be part of GeM Bid and shall be included as buyer added ATC.

E-Tender Portal: <https://gem.gov.in/>

- 1.1** NTPC (hereinafter referred to as NTPC or the Employer) intends to procure **agro residue based Non Torrefied biomass pellets** as per technical specifications mentioned herein, on ‘FOR Destination’ basis for Plants **as per Annexure III of Section IV Technical specifications**. The delivery schedule and timely supply is the essence of the contract.

The successful bidder shall ensure supply of agro residue based Non Torrefied biomass pellets as per required technical specifications to NTPC, arranging loading, transportation and delivery at NTPC, specified in detail in Technical Specifications and Scope of Work Section- IV in the bidding documents mentioned herewith.

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- 1.2 Bidder may ensure that for each plant bidder has to quote separately Techno-commercial Bid and Price Bid they wish to bid for. Techno-commercial bids for all the four plants shall be opened simultaneously. Accordingly Document submitted for one plant/GeM tender id may be considered for other GeM Bid/s in this lot, if quoted by bidder.

Bidder has to quote their prices for the offered quantity mentioned in BOQ (Excel sheet) enclosed along with the bidding documents in accordance with the provisions of the bidding documents. **Excel sheet is to be converted into pdf for uploading in price bid of GeM.**

General Information

- A. The prospective bidders are invited to submit their Bid comprising of Techno-Commercial Bid and Price Bid for the subject package, in line with the provisions of the bidding documents. Methodology for submission of bids has been detailed hereinafter in this bidding document.
- B. The cost on account of preparation and submission of Bid, negotiations, discussions etc., as may be incurred by the Bidder in the process, are not reimbursable by the employer, and the employer will in no case be responsible or liable for these costs, regardless of the conduct or outcome of the bidding process.

The Terms and Conditions as per Bidding Documents are being incorporated through buyer added ATC in the GeM bid. Terms and Conditions stipulated in buyer added ATC will supersede those in GeM GTC and STC in case of any conflicting provisions.

- C. Transfer of Bidding Documents downloaded by one intending Bidder to another is not permissible.
- D. NTPC reserves the right to accept or reject any bid, and to annul the bidding process and reject all bids at any time prior to award of contract, without thereby incurring liability to the affected Bidder or bidders or any obligation to inform the affected Bidder or bidders of the grounds for the Employer's action. Decision of Employer will be final and binding in this regard.
- E. The Successful bidder should obtain all necessary clearances and other related statutory requirements etc. as applicable for supply of biomass pellets on FOR NTPC destination basis from the concerned authorities, without any additional cost to plant As per ANNEXURE III OF SECTION IV TECHNICAL SPECIFICATIONS. Notwithstanding anything stated herein, Bidders are essentially required to comply with all statutory requirements including law of land.

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- F. Each Bidder shall submit only one bid either by himself, or as a partner in a joint venture or consortium, if so permitted in the Bidding Documents. A Bidder himself, or as a partner in a joint venture or consortium, who submits or participates in more than one bid in this bidding will be disqualified from the bidding.

Multiple bids by the same person (individually or as a part of a Consortium/Subsidiary) are not allowed. Any person that controls (directly or indirectly) a bidder or a member of the bidding Consortium (Consortium)/Subsidiary, or any other person(s) which is/are controlled (directly or indirectly) by the aforementioned person, or any person that is controlled (directly or indirectly) by such bidder or member of bidding Consortium/Subsidiary, shall not bid on its own or as a member of a Consortium/Subsidiary for which the bidder or the bidding Consortium/Subsidiary has submitted a bid.

For the purposes of this clause the terms 'person' means any individual, company, corporation, partnership (whether limited or unlimited), proprietorship, trust or any other entity (whether incorporated or not), Hindu undivided family, union or association and in case of a trust shall include the trustee or the trustees for the time being.

For the purposes of this clause the terms 'control' as applied to any person, means the possession, directly or indirectly, of the power to direct or cause the direction of the management or policies of that person whether through acquisition of shares, voting securities, by contract, or otherwise.

If it is found at any stage of bidding or during currency of the Contract (if awarded), that the bidder/contractor have any common controlling shareholders or ownership, directly or indirectly, with any other participating bidder(s), then their Bid or Contract (if awarded) shall be rejected/ terminated.

Compliance to this provision shall be confirmed by the bidder through **Attachment 4**.

- G. Throughout these Bidding Documents, the term Plant/Project/Station of NTPC appearing anywhere in the Bidding Documents shall have the same meaning and are synonymous to each other.

1.4 ELIGIBILITY CRITERIA FOR BIDDERS:

- A. Only Pellets manufacturers, Future pellet manufacturers and traders/aggregators shall be allowed to participate in the tender.
- B. Future pellet manufacturers will need to submit project details certified by Chartered accountant, which shall include plant location / tentative plant location and plant capacity.
- C. In case of individual applicant, the bidder should be of minimum 21 years of age
- D. The Bidder shall be of Indian nationality AND / OR a Company/ Sole Proprietorships / Partnerships / Limited Liability Partnerships / Consortium / Cooperative Societies

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registered in India AND / OR Non-Resident Indians/ Person of Indian Origin AND / OR a Multinational Company having its registered office in India. /Overseas Corporate Bodies having its registered office in India.

- E. Bidding for the subject package is open to Bidders from within the Employer's country only, subject to fulfilment of conditions "Restrictions on procurement from a Bidder of a country which shares a land border with India".

* In case of Consortium, all the Partners of the consortium shall be from within the Employer's country.

Bidder shall provide the documents in support of the type of firm/ company they own. In case of Individual applicant, Proof of Nationality and age like voter cards, passport, Aadhaar etc. may be submitted.

1.5 ALLOCATION CRITERIA

- A. Total tendered quantity Plant wise in TPD and MT for 365 days are as per Annexure III of Section IV Technical specifications.
- B. Quantity allocation to traders/aggregators and future pellet manufacturers will be limited to 20 TPD in each Lot consisting of plants as per Annexure III of section-IV Technical specifications.
- C. For existing manufacturers, Total Manufacturing capacity of the vendor will be certified by a practicing Chartered Accountant on TPH basis). The average TPD capacity will be calculated based on 10 Hr operation per day. It may be noted that 10 hrs operation per day is considered based on derating/underutilisation of palletisation machine for different agro residues and time required for over hauling or maintenance of machines.
If the total manufacturing capacity works out to more than 60 TPD, the capacity may be physically verified by NTPC.
- D. The available Manufacturing capacity considered for allocation of quantity shall be determined as under:

Available Manufacturing capacity (TPD) =

(Total Existing manufacturing capacity in TPD) – Existing commitment other than NTPC in TPD- (Total Long-term order/s* in TPD + Total Order qty in TPD for any short-term order placed in past one year + Total allocated quantity in TPD under any ongoing tender) in any NTPC station/s and JV/s/Subsidiaries for non-torrefied pellets.

Existing commitments other than NTPC shall be certified by practicing CA.

*Order/s mean/s PO/ Lol/LoA

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- (i) Allocation criteria at 1.5 of ITB, formula for available manufacturing capacity shall be applicable for allocation. Further in case of consortium, bidder's attention is drawn towards following Illustration regarding allocation criteria-

Illustration		
SI No.	Combination of Consortium Partners	Eligible quantity to be allocated
1	Trader + Manufacturer	Available Manufacturing capacity of manufacturer
2	Manufacturer 1 + Manufacturer 2	(Available Manufacturing capacity of manufacturer 1) + (Available Manufacturing capacity of manufacturer 2)
3	Manufacturer 1 + Manufacturer 2 + Trader	(Available Manufacturing capacity of manufacturer 1) + (Available Manufacturing capacity of manufacturer 2)

- E.** If an existing pellet manufacturer wants to establish a new pellet manufacturing unit and intends to supply biomass pellets to NTPC stations from new manufacturing unit, then the bidder will be considered as a future pellet manufacturer for that particular station.
- F.** If an existing pellet manufacturer wants to supply biomass pellets to NTPC stations from both existing and future manufacturing units, then the bidder will be considered for allocation of additional 20 TPD as applicable for future pellet manufacturers. Accordingly, the bidder shall be allowed to quote based on existing manufacturing capacity as per above formula at D and additional 20 TPD. capacity addition in the existing manufacturing unit will not be considered as future manufacturing units
- G.** The minimum quantity to be quoted by a bidder shall be 20 TPD and the increments shall be in the multiples of 10 TPD.
- H.** In case of Consortium, the combined available manufacturing capacity of the constituents/participants shall be considered for allocation. In no case the maximum number of participants can exceed 3.
- I.** For allocation of quantity, refer ITB clause 1.5 J Quantity Allocation and other provision of bidding document.

J. Bucket filling (Quantity allocation)

- Quantity allocation (Bucket Filling) will be done from the lowest bidder to highest bidder, limiting the allocation to quoted quantity/available manufacturing capacity for existing manufacturers. For other category of vendors, allocation shall be limited to 20 TPD in each LOT.
- The minimum qty to be quoted by the bidder shall be 20 TPD. If at the end of bucket filling the leftover quantity is less than 20 TPD, last bidder's allocation quantity may

- be adjusted to below 20 TPD so that the total allocation doesn't exceed the tender quantity.
- iii. In case of tie in the total bid price between multiple vendors, quantity allocation shall be done in 20 TPD/bidder. If the available quantity is not fully allocated in the first round, allocation will be done in the next round in multiples of 20 TPD per vendor. The exercise shall be continued till the available capacity is fully allocated or the quoted/available capacity of the vendors is fully exhausted. If available/unallocated quantity is less than 20 TPD per vendor in any round, equal qty shall be distributed amongst the vendors. However, total allocation shall be restricted to available manufacturing capacity for existing manufacturers and 20 TPD for others.
- Future pellet manufacturers including startups will be allocated quantity corresponding to six months duration (180 Days). Balance quantity will be allocated as per above mentioned methodology.

B. BIDDING DOCUMENTS

The items and services required, bidding procedures, order/contract terms and technical requirements are prescribed in the bidding documents.

2.0 Content of Bidding Documents

The bidding documents include the following sections:

- Invitation for Bids (IFB) - Section - I
- Instructions to Bidders (ITB) - Section - II
- General purchase Conditions (GPC) - Section - III
- Technical Specifications - Section - IV
- Attachments and Forms & Formats - Section - V

Bidders are expected to examine all instructions, forms, terms, conditions, specifications, and other information in the bidding documents. Failure to furnish all information required as per the bidding documents or submission of a bid not substantially responsive to the bidding documents in every respect will be at the Bidder's risk and may result in rejection of its bid.

2.1 Clarification on Bidding Documents

A prospective Bidder requiring any clarification to the bidding documents may notify EMPLOYER through e-mail or in writing by post at the Employer's address indicated at IFB under Address for Communication. EMPLOYER will respond to any request

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for clarification or modification of the bidding documents that it receives not later than the date of Pre-Bid Conference as specified in IFB.

Employer will post the Clarifications at GeM Website through “View Corrigendum” tab and Bidders can view these clarifications once they are posted at GeM website (<https://gem.gov.in/>) at “View Corrigendum” Tab.

Bidders are advised to regularly check GeM website (<https://gem.gov.in/>) regarding posting of clarification, if any. Regularly checking GeM Website regarding posting of clarification by the Employer shall be the sole responsibility of bidders. NTPC shall have no obligation to send notification/communication regarding posting of clarification to the bidders.

“Further, no queries from Bidders shall be entertained after last date of receipt of Queries as specified in IFB.

Should the clarification result in changes to the essential elements of the Bidding Documents, the employer shall amend the Bidding Documents following the procedure under 2.2 below.

The Bidder is advised to visit and examine the Power Station where the supplies are to be made and its surroundings and obtain for itself on its own responsibility and cost, all information that may be necessary for preparing the bid and entering into a contract for supply of the biomass pellets. The cost of visiting the Power Station shall be borne by the Bidder fully.

The Bidder and any of its personnel will be granted permission by the Employer to enter upon its premises and lands for the purpose of such inspection, but only upon the express condition that the Bidder, its personnel and agents will release and indemnify the Employer and its personnel from and against all liability in respect thereof and will be responsible for death or personal injury, loss of or damage to property and any other loss, damage, costs and expenses incurred as a result of the inspection.

2.2 Amendment to Bidding Documents

At any time prior to the deadline for submission of bids, the Employer may, for any reason, whether at its own initiative, or in response to a clarification requested by a prospective Bidder, amend the bidding documents by issuing Corrigendum (a) / Amendment(s) to Tender Documents.

The corrigendum(a)/Amendment(s) will be posted at GeM website (<https://gem.gov.in/>) for viewing by the Bidder at “**View Corrigendum**” Tab. The corrigendum(a) / Amendment(s) will be binding on Bidders and it will be assumed that the information contained therein will have been taken into account by the Bidder in its bid. Bidders are also advised to regularly check GeM website (<https://gem.gov.in/>) regarding posting of Amendment, if any. Regularly checking GeM Website regarding posting of corrigendum(a)/ Amendment(s) by the Employer shall be the sole responsibility of

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bidders. NTPC shall have no obligation to send notification /communication regarding posting of corrigendum(a) / Amendment(s) to the bidders.

Any corrigendum (a) / Amendment(s) to Tender Document issued by NTPC subsequent to the issue of Tender Document will also be considered an integral part of Tender Document and any reference to Tender Document in the Project Agreement shall include such Corrigendum (a)/Amendment(s) also.

Any verbal clarifications and information provided by NTPC or its employee(s) or its representative(s) or its consultant(s) shall not in any way be binding on NTPC unless subsequently confirmed through the issuance of Corrigendum (a)/Amendment(s).

In order to afford prospective bidders reasonable time in which to take the amendment into account in preparing their bid, the Employer may, at its discretion, extend the deadline for the submission of bids.

2.3 Pre-Bid Conference

Pre-Bid Conference The bidder or his authorised representative may attend Pre-bid Conference through VC on MS Teams platform through **link provided in the detailed IFB, Section-I** of bidding documents.

The purpose of the Conference will be to clarify any issue regarding the Bidding Documents. The Bidder is requested to submit questions through Seek Clarifications Tab of the e-tender portal prior to the clarification end date & time and notify through e-mail regarding posting of queries. The Employer's responses to the queries raised by the bidder in writing will be posted at Clarifications Tab/ through Corrigendum at e-tender portal and Bidders can view these clarifications once they are posted. Bidders are also advised to regularly check e-tender portal regarding posting of clarification etc., if any. Further, any modifications of the Bidding Documents which may become necessary as a result of the Pre-bid Conference shall be made by the Employer exclusively through an amendment/ errata to the bidding documents and not through the record notes of the Pre-bid Conference.

Non-attendance at the Pre-bid Conference will not be a case for disqualification of a bidder

C. PREPARATION OF BID

3.0 Single Stage Two Envelope Bidding process shall be followed for the subject Package, as under:

- 3.1** The Bid shall comprise of Envelope I: Techno-commercial Bid containing the documents listed in ITB 20.1 and Envelope II: Price Bid containing the documents listed in ITB 20.3
- 3.2** Bids are to be submitted complete in all respect with requisite information, Certificates,

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Attachments, Annexures and BOQ (Excel sheet converted to pdf). It shall be free from any ambiguity, cutting or overwriting.

- 3.3** For preparation of Bid, Bidder is expected to examine the bidding documents in detail. Material deficiencies in providing the information requested may result in rejection of the bid.

4.0 LANGUAGE OF BID

The bid prepared by the Bidder and all correspondence and documents related to the bid exchanged between the Bidder and NTPC shall be written in English language, provided that any printed literature furnished by the Bidder may be written in another language, as long as such literature is accompanied by a translation of its potential passages in English language in which case, for purpose of interpretation of the bid, the translation shall govern.

5.0 BID CURRENCY

All prices to be quoted by the bidders will be in Indian Rupees only.

6.0 BID FORM, PRICE SCHEDULES AND IMPORTANT CONDITIONS:

- 6.1** The schedule of quantity proposed to be delivered to power Plants **as per Annexure III of Section IV Technical specifications** within the package, is indicated in the bid documents.

- 6.2 Procurement price:** : Biomass pellets benchmark price has been notified for **Western Region** for period of 1 year w.e.f 08-11-2023 by Ministry of Power vide letter No. F.No.11/86/2017-Th.II(C.No 238797) dated 08-11-2023

The notified benchmark price for Western Region is Rs. 2.24/1000 kcal (excluding GST) or Rs. 2.352 /1000 kcal(including GST). GST shall be paid as per extant rates and will change if the rates of GST are changed.

The base price of the biomass pellets shall be calculated in Rs./MT based on GCV of 3400 Kcal/Kg and the applicable benchmark price (along with applicable GST of 5%).The above base price including GST shall be indicated in BOQ/Excel sheet. Bidders will required to quote transportation cost excluding GST from Ex-works factory to respective NTPC station on Rs. /MT basis. The total bid price shall be the sum of the base price and transportation price on Rs. /MT (including GST) basis.

Total procurement price shall be (A+B) as follows:

A i.e. Ex factory Price for non-torrefied Biomass (Rs. 2.352/1000Kcal or Rs 7996.80/MT @3400 Kcal as notified by GoI including GST @5%)

B i.e. Transportation price including GST in Rs/Ton for GCV 3400 Kcal/KG.

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Note: 1) The bidders are required to fill the quantity in MT per day in the BOQ/Excel sheet. In case, bidder quotes any negative price which lower the base price of Rs 7996.80per MT (incl GST) in the Gem Portal, the same shall be ignored and the base price shall be considered as Rs 7996.80 per MT (incl GST). The quantity quoted in BOQ/Excel sheet shall be considered for evaluation/allocation for issuance of award, subject to Allocation criteria as mentioned in ITB, Section-II of Bidding Document.

2) The bidders shall quote for total transportation cost from Ex factory to plants (as per **Annexure III of Section IV Technical specifications**) in Rs/ MT for 3400 Kcal/Kg GCV excluding of GST in the BOQ/Excel sheet (GST @ 5% on transportation charge will automatically be calculated in Excel sheet). The transportation cost quoted by bidder shall be paid full in case test value of GCV (ARB) comes equal to or above 3400Kcal/Kg. Further transportation will be paid at pro rata basis between 2800-4000 Kcal/kg (refer Technical Specifications clause 10, Section IV).

3) BOQ/ Excel sheet of Bidding Document is to be converted into pdf for uploading in price bid of GeM. If bidder does not quote/fill zero transportation charges per MT in the BOQ sheet then the transportation charges shall be considered inclusive in base price without further clarification from Bidder.

4) Bidder shall enter Quantity in MT per Day in Financial document (Excel sheet converted to PDF) as uploaded in GeM portal. Total quantity for 365 days will automatically be calculated in the excel sheet. Excel sheet is to be converted in pdf for uploading in price bid of GeM.

Note: Bidder has to quote Total Qty for 365 Days (in MT) in the Quantity Tab in GeM portal & Total price in (Rs/MT) of Biomass pellets on FOR Power station basis inclusive of GST, any other taxes, duties and cess in the Total Offer price Tab in GeM portal. However, Quantity Allocation shall be done as per ITB Clause 1.5

6.3 Bidder shall undertake that they shall deal directly with NTPC and will not engage any Agent to deal with NTPC Compliance to this provision shall be confirmed by the bidder through **Attachment-4**.

6.4 After price bid opening, the Total FOR Price (Rs/MT) will be available to all bidders for viewing. Purchaser/Buyer shall calculate the Total FOR Price (Rs/MT) based on evaluation criteria as per ITB Clause 27.0. The evaluated Total FOR Price (Rs/MT) of all bidders shall be uploaded in GeM against offered price and same shall be notified to the bidders. Bidders can view the evaluated Total FOR Price (Rs/MT) on the bid listing page of GeM. As per GeM policy, seller can also raise representation against the displayed evaluation Total FOR Price (Rs/MT) within 48 hours of submitting of evaluated rate by the Purchaser/Buyer. For further details regarding submission of representation, Bidders may refer the help documents in GeM portal. After accepting or rejecting the representation, Purchaser/Buyer will publish the final evaluated Total FOR Price (Rs/MT) of all the sellers for determination of the L1, L2, L3, etc. Further process of quantity allocation of pellets shall be as per Annexure- Alloc-A

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and ITB Clause 1.5.

6.5 Arithmetic errors will be rectified on the following basis

Arithmetical errors will be rectified on the following basis. In BOQ Excel sheet, if there is a discrepancy between the unit price and the total price, which is obtained by multiplying the unit price and quantity, or between subtotals and the total price, the unit or subtotal price shall prevail and the total price shall be corrected accordingly. If there is a discrepancy between amount indicated in BOQ Excel sheet (which has been corrected as above, if required) and carrying forward of that amount in GeM portal, the amount in BOQ Excel sheet shall prevail. If the Bidder does not accept such correction of errors, its bid will be rejected and the bid security will be forfeited in accordance with ITB Sub-Clause as applicable.

7.0 TENDER FEES AND BID SECURITY

7.1 A complete set of Bidding Documents may be downloaded by any interested Bidder from NTPC e-tender website (<https://gem.gov.in/>) free of cost.

7.2 The bidder shall furnish, as part of its bid, a bid security in a separate envelope in the amount and currency as under:

Amount of Bid Security: INR - (Indian Rupees only).

Quoted cumulative quantity in TPD (Tonne per day)	Bid Security amount (INR)
20	10 Lakh
30 to 60	20 Lakh
70 to 140	50 Lakh
150 to 300	1 Cr
310 to 760	2 Cr
770 to 1540	5 Cr
1560 to 3080	10 Cr
3090 to 7650	20 Cr

Note: Bid Security shall be in favor of NTPC Limited.

Bidder shall submit BG equivalent to TPD as per their eligibility for allocation as per bidding documents. The Bidder shall furnish, as part of its Bid, a Bid Security in a separate sealed envelope for the amount and currency as stipulated above. In case bid security amount is deposited as EFT, Proof of e-payment of Bid Security, shall be

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submitted in the e-tendering portal or in a separate sealed envelope.

Bid security may be Submitted in sealed envelope by speed post/ by hand to the communication address as below-

Address for Communication

DGM (CS) / Sr. Manager (CS)
NTPC Limited,
6th Floor, Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.),
Pin – 201301, INDIA

Telephone No. :9471001393 / 9650992973

7.2.1 The Bid Security shall, at the Bidder's option, be in the form of Electronic Fund Transfer (EFT)/ irrevocable Letter of Credit or BG or an Insurance Surety Bond from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI).

Bidders may opt for Online Transfer of EMD (INR only) amount through EFT to NTPC's Bank whose details are as under.

EMD to be paid in INR in the following NTPC account-

NAME: NTPC LTD.

ACCOUNT NO.: 40231103380

IFSC: SBIN0008866

MICR: 110002426

Electronic Fund Transfer (EFT) must be from Bidders / Consortium member's bank account only. While carrying out online transfer, Bidder shall ensure to enter "EMD - Tender No.-Bidder Name" in the Text / Remarks / Reason field and submit proof of e payment (like account statement, etc.) of Bid Security from bidder's own account. Any EMD/Bid Security in the form of Electronic Fund Transfer (EFT) not submitted from the Bidder's/Consortium member's Own Bank Account, shall not be considered acceptable. Bidder shall intimate the details of same through email to concerned C&M department and also upload the details in GEM Portal in the following format:

Declaration for Bid Security Deposit

Tender No.:

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Bidder Name:

UTR Reference:

Bidder's Bank Account No.:

Account's holder name:

Amount:

Date of Transfer:

Transferor Bank:

It is certified that the amount towards bid security has been transferred from bidder's/consortium member's account. Further, it is clearly understood that in case of above declaration is found to be incorrect, then our bid security shall not be considered acceptable.

(Signature of Bidder with Seal).

7.2.2 The format of the Bank Guarantee/ Insurance Surety Bond shall be in accordance with the form of bank guarantee/ Insurance Surety Bond towards bid security included in the Bidding Documents. Bid Security shall remain valid for a period of forty-five (45) days beyond the original Bid validity period and beyond any extension of bid validity subsequently requested under relevant clause of ITB.7.2.3 Wherever Bids under Joint Venture route are permitted (Not Applicable) as per the Qualifying Requirements in the Bidding Documents, the Bid Security by the Joint Venture must be on behalf of all the partners of the Joint Venture.

7.2.4 ANY BID NOT ACCOMPANIED BY AN ACCEPTABLE BID SECURITY IN A SEPARATE SEALED ENVELOPE SHALL BE REJECTED BY THE EMPLOYER AS BEING NON-RESPONSIVE. IN CASE, THE BID SECURITY IS SUBMITTED THROUGH ELECTRONIC FUND TRANSFER (EFT), BIDDER TO SUBMIT THE PROOF OF E-PAYMENT OF BID SECURITY EITHER IN SEPARATE SEALED ENVELOPE OR IN THE E-TENDERING PORTAL.

7.2.5 BG against Bid Security issued by a Bank outside India needs to bear stamp duty of appropriate value applicable to the place in NTPC where BG is to be submitted. The BG may be got adjudicated by the employer from Collector of Stamps, within 3 months of arrival of BG in India. Expenses incurred in this regard shall be borne by NTPC.

Insurance Surety Bond against Bid Security issued by an Indian Insurance company outside India needs to bear stamp duty of appropriate value applicable to the place in NTPC where Insurance Surety Bond is to be submitted. The Insurance Surety Bond may be got adjudicated by the employer from Collector of Stamps, within 3

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months of arrival of Insurance Surety Bond in India. Expenses incurred in this regard shall be borne by NTPC.

7.2.6 Subject to clause 7.2.7 below, the Bid Security of the Bidder whose Techno-Commercial Bid has not been found acceptable, shall be returned along with letter communicating rejection of Techno-Commercial Bid. The Bid Security of the bidders who are unsuccessful after opening of Price Bids shall be returned expeditiously.

7.2.7 The Bid Security of the successful Bidder to whom the contract is awarded will be returned when the said Bidder has signed the LOA as acceptance pursuant to ITB Clause 29. and has furnished the required Performance Securities as provision of bidding document.

7.2.8 The Bid Security may be forfeited.

- (a) If the Bidder withdraws or varies its Bid during the period of Bid validity;
- (b) If the Bidder does not accept the correction of its Bid Price pursuant to ITB Clause 6.5 for Arithmetical Correction.
- (c) If the Bidder refuses to withdraw, without any cost to the Employer, any deviation, variation, additional condition or any other mention anywhere in the bid (Price bid in case of Two Stage Bid), contrary to the provisions of bidding documents;
- (d) In the case of a successful Bidder, if the Bidder fails within the specified time limit to furnish the required Contract Performance Guarantee/Security Deposit in accordance with relevant clause of ITB.
- (e) If the bidder/his representatives commits any fraud while competing for this contract pursuant to Fraud Prevention Policy of NTPC.
- (f) In case the Bidder/Contractor is disqualified from bidding process in terms of Section 3 and 4 of Integrity Pact (IF APPLICABLE).
- (g) If the Bidder does not make payment transaction fee/AMC as per GeM PO/Contract.

7.2.9 CONFIRMATION OF BGS THROUGH STRUCTURED FINANCIAL MESSAGING SYSTEM (SFMS)/ SWIFT While issuing the physical BGs, the Bidder's Bank shall also send electronic message through secure SFMS (in case of BGs issued from within India) or SWIFT (in case of BGs issued from outside India) to Employer's Beneficiary Bank whose details are provided herein below:

(i) Bank Name: ICICI Bank Limited

(ii) Branch: CONNAUGHT PLACE BRANCH

(iii) Bank Address: 9A, PHELPS BUILDING, INNER CIRCLE, NEW DELHI-110001

(iv) IFSC Code: ICIC0000007

BG issuing/amending bank must send the BG advice in the form of message format via SFMS (Structured Financial Messaging System) as provided by RBI.

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The format of the message for confirmation of the BG shall be as below:

BG advising message: IFN 760COV/ IFN 767COV via SFMS

Field Number: Particulars (to be mentioned in Row 1)

7037: NTPCBG (unique identifier)

EMD exemption: Exemption from Submission of EMD is allowed to MSE bidder who is manufacturer of biomass pellets. Micro and Small Enterprises (MSEs) having UDYAM Registration, for goods produced and services rendered, shall be exempted from paying Earnest Money Deposit. Such registered bidders will have to submit UDYAM Registration Certificate only, as a proof of being MSE on GeM Portal. Other MSE certificate will not be considered as a proof of being MSE.

In case of **Traders/Future Pellet Manufacturers (Who does not have any Biomass pellets manufacturing unit) / Consortium**, MSE benefits shall not be extended.

In case of MSE bidder asking for EMD exemption as per above mentioned EMD Exemption clause, has to submit the MSE certificate in a separate sealed envelope in physical to the following address mentioning the BID no. and subject of the tender

OR the MSE bidder may attach the MSE certificate along with technical bid.

7.2.10 Bid Security/ EMD exemption:

In addition to provisions of bid security (ITB Clause 7.0), provisions of GeM GTC GeM 4.0 (Version 1.14) dated 31st Jan 2024 regarding Exemption of bid security/EMD shall also be applicable.

8.0 Purchase Preference

8.1 Benefits to MSEs

Micro and Small Enterprises (MSEs) as per Ministry of Micro, Small and Medium Enterprises as per MSMED Act 2006, for goods produced and services rendered, shall be issued the bid documents free of cost and shall be exempted from paying Earnest Money Deposit/ Bid Security.

For each station, participating MSEs quoting price within price band of L1 + 15 percent shall also be allowed to supply a portion of requirement by bringing down their price to L1 price in a situation where L1 price is from someone other than a Micro and Small Enterprise and such Micro and Small Enterprise shall be allowed to supply up to 25 percent of total tendered value for each station. In case of more than one such MSE, the supply will be shared proportionately (to tendered quantity).

The benefit as above to MSEs shall be available only for Goods/Services produced & provided by MSEs.

As per answer to FAQ no. 18 circulated vide Office Memorandum F. No.22(1)/2012-

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MA dated 24.10.2016 “Policy is meant for procurement of goods produced and services rendered by MSEs. However, traders are excluded from the purview of Public Procurement Policy.”

MSEs seeking exemption and benefits should enclose a attested/self-certified copy of registration certificate as a part of his bid, giving details such as stores/services, validity (if applicable) etc. failing which they run the risk of their bid being passed over as ineligible for the benefits applicable to MSEs

- a. MSEs seeking benefits as above should upload a copy of **UDYAM REGISTRATION CERTIFICATE (containing code of Biomass pellets)** as a part of their bid, failing which their bid shall be treated as Non-MSE bid.

Regarding MSE benefits as above, bidder has to submit UDYAM certificate with National Industrial Classification (NIC) code for biomass pellets. In absence of the NIC code in UDYAM, CA certificate (Refer Attachment 7B) along with UDYAM required to be submitted as per provisions of bidding document shall be acceptable.

- b. *In case of MSE bidders, UDYAM REGISTRATION CERTIFICATE (URC) may be uploaded as documentary evidence of their MSE status AND Declaration/ Undertaking (as per **Attachment-9**) to avail preference in evaluation for MSEs.*

*Online generation of Udyam Registration Certificate, by the entrepreneur, is available from 1st July 2020. **Udyam Registration Certificate shall be the ONLY valid MSME Registration Document.***

8.1.1 Applicability of MSE Benefits

Applicable towards Allocation of Quantity

As per Annexure-Alloc-A, on submission of

- UDYAM REGISTRATION CERTIFICATE (containing code for Biomass pellets) as a documentary evidence of their MSE status
- Declaration/ Undertaking (as per Attachment-9) (Annexure -Alloc-A-3)
- Certification from Chartered Accountant (As per Attachment 7B)

For availing MSE benefits, bidder shall confirm that biomass pellets offered and quoted is produced by them.

Further, the benefit of purchase preference will be available only when Bidder is a manufacturer of biomass pellets and in case of non- manufacturing of pellets by bidders, its bid shall be evaluated/treated as Non-MSE bid.

The Purchase Preference shall be extended to MSE Bidders based on **UDYAM REGISTRATION CERTIFICATE** (Containing code for Biomass pellets) submitted by them supported by Certificate from Chartered Accountant specifying that Bidder has set-up manufacturing plant for pellets and providing details like manufacturing

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capacity of Plant for Biomass Pellet Manufacturing etc., along with the Undertaking (**Attachment-9**) in support of the claim that such item(s) are manufactured by the Bidder. The format to be furnished by the Bidder after due certification from practicing chartered Accountant is attached at **Attachment 7B**.

Purchase preference to eligible MSE will be given only for the item{s} quoted by the bidder for which bidder is a manufacturer. If the MSE Bidder has only submitted UDYAM REGISTRATION CERTIFICATE (Containing code for Biomass pellets) and if it is found at any stage that none of the items offered/quoted by the MSE bidders / are manufactured by them, their bid shall be treated as Non-MSE bid.

However, in case the MSE Bidder is manufacturing any / some of the quoted item(s) then Purchase Preference benefits for MSEs shall be extended for such item(s) being manufactured by them. For balance items, its bid shall be evaluated as "Non MSE" bidder.

8.2 Preference to Make In India and granting of purchase preference to local suppliers

8.2.1 Only Class-I local suppliers are eligible to bid. Bids received from bidders other than 'Class-I Local supplier shall be out rightly rejected.

The minimum Local Content shall be:

Class-I Local Suppliers: 100%

8.2.2 Preference to Make in India and Eligibility for Participation of "Class-I local suppliers" as mentioned in Annexure-I to ITB shall be applicable.

The 'Class-I local supplier' shall be required to provide, in the Bid Form, self-certification / declaration that the Item offered meets the local content requirement for 'Class-I local supplier' and shall give details of the location(s) at which the local value addition is made.

Further, Bidder shall be required to submit a certificate from the statutory auditor or cost auditor (in the case the bidder is a company) or from a practicing cost accountant or practicing chartered accountant (in respect of bidders other than companies) giving the percentage of local content during execution prior to submission of last bill for payment.

In case aforesaid Certificate furnished by Contractor/Vendor is not in line with the declaration in respect of Local content in their bid, same shall be treated as false declaration.

False declarations will be dealt in line with the Fraud Prevention Policy and Policy for Debarment from Business Dealings.

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Note: Import of raw materials is not allowed. Further, Manufacturing and Supply of Biomass pellets shall be from INDIA only.

- 8.2.3 For purchase preference, MSE guidelines mentioned above in 8.1 read in conjunction with “Preference to Make in India and granting of purchase preference to local suppliers” mentioned in Annexure-I to ITB, shall be applicable

8.3 Benefits to “Punjab, Haryana or NCR bidders”

Bidders sourcing raw materials (agro residue-*preferably rice straws*) from Punjab, Haryana and NCR [hereinafter called as Punjab bidders] for manufacturing of pellets towards Allocation of Quantity as per Annexure- Alloc-A, only on submission of **Undertaking as per format Annexure-Alloc-A-2 (mentioned under Attachment-6)**

9.0 CERTIFICATE OF COMPLIANCE

No deviation, whatsoever, is permitted by NTPC limited, to any provisions of the Bidding Documents. The bidders are advised that while making their Bid and quoting prices, all terms & conditions may appropriately be taken into consideration. In this regard, **Bidders have to submit Certificate of Compliance** as per Annexure C of Forms & Formats.

There are nine attributes in Certificate of Compliance as under:

- 1) Total Compliance to all provisions of bidding documents / Nil Deviation
- 2) Compliance on Qualifying Requirement
- 3) Compliance on the Integrity Pact
- 4) Compliance on Restriction on Procurement from a Bidder of a country which shares a land Border with India
- 5) Compliance on Fraud Prevention Policy
- 6) Compliance on Policy for Debarment from Business Dealings
- 7) Compliance to Preference to Make in India and eligibility for participation
- 8) compliance to “Conflict of Interest” provisions.
- 9) compliance on “Anti-Bribery and Anti-Corruption (ABAC) Policy" of Employer

9.1 Acceptance of Full Compliance to all provisions of Bidding Documents / Nil Deviation Attribute shall be considered as bidder’s confirmation to the following:

- Bidder has read the provisions of the Bid Document No. **CS-0011-112R-9** along with its subsequent Amendments/Corrigenda /Clarification/Addenda/Errata and their Project Proposal (i.e. Techno-Commercial bid and Price bid) is strictly in conformity with the provisions of the Bid Document including Amendments/Corrigenda/Clarification/Addenda/Errata thereof and it has not taken any deviation to any of the provisions of the bidding documents.
- he entire work shall be performed as per the provisions of Bidding Documents.

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- any deviation / variation / additional conditions to the provisions of the Bidding Documents read in conjunction with its Amendment(s) / Clarification(s) / Addenda / Errata found anywhere in Project Bid (i.e. Techno-Commercial Bid and Price Bid), implicit or explicit, save those pertaining to rebates offered, stands unconditionally withdrawn without any cost implication whatsoever to the Owner, failing which the bid shall be rejected.
- their TECHNO-COMMERCIAL bid does not contain any price content entry.
- their Price bid does not contain any matter in respect of technical and / or commercial aspects other than the details specifically sought in the Price bid.

9.2 Acceptance of Attribute for Compliance on Qualifying Requirement shall be considered as bidder's confirmation to the following:

The details furnished by us in Attachment 7B, for establishing the compliance to specified Qualifying Requirement and Allocation Criteria are in accordance with ITB Clause 1.5 of the ITB of the Bidding documents.

9.3 Acceptance of attribute for compliance on the 'Integrity Pact' as per Annexure-F15 in accordance with ITB Clause 36 shall be considered as bidder's confirmation to all the provisions of the same.

9.4 Acceptance of attribute for compliance on Restriction on Procurement from a Bidder of a country which shares a land Border with India shall be considered as bidder's confirmation to the following:

Bidder has read and understood the ITB Clause 40 regarding "Restrictions on procurement from a Bidder of a country which shares a land border with India" and its bid is in compliance to this clause.

The entire work shall be performed as per the provisions of Bidding Documents. In case it is established that Bidder has provided any false information in pursuance of the aforesaid ITB Clause, while competing for this contract, then its bid shall be rejected and Bid security shall be forfeited.

In case of a successful bidder, if it is established that the Bidder has not complied with terms of aforesaid ITB Clause, during execution of contract, this would be a sufficient ground for immediate termination of the contract as per GPC Clause titled 'Termination' and shall be dealt accordingly.

9.5 Acceptance of attribute for compliance on Fraud Prevention Policy: as per Annexure-F12 in accordance with ITB In accordance with ITB Clause 17 shall be considered as bidder's confirmation that Bidder along with Subsidiary (ies) and/or Holding Company and/or Subsidiary (ies) of its Holding Company / associates / collaborator/ sub- contractors / sub-vendors / Consultants / service providers shall strictly adhere to the Fraud Prevention Policy of NTPC.

9.6 Acceptance of attribute for compliance on Policy for Debarment from Business

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Dealings: as per Annexure-F13 in accordance with ITB Clause 39 shall be considered as bidder's confirmation to the following:

Bidder has read the contents of the Policy for Debarment from Business Dealings attached with this Bidding document and agree to abide by this policy. Further, in terms of requirement under the policy the bidder declares the following:

- a) The bidder has not been Banned/Blacklisted as on date of submission of bid by Ministry of Power or Government of India.
- b) The bidder has not employed any public servant dismissed/removed or person convicted for an offence involving corruption or abetment of such offences.
- c) The bidder's Director(s)/ Owner(s)/ Proprietor/ Partner(s) have not been convicted by any court of law for offences involving corrupt and fraudulent practices including moral turpitude in relation to business dealings with Government of India or NTPC during the last five years.

Further, that if at any point subsequent to award of Contract, the declarations given above are found to be incorrect, NTPC/ EMPLOYER shall have the full right to terminate the Contract and take any action as per applicable laws for breach of contract including forfeiture of Performance Bank Guarantee.

9.7 Acceptance of attribute for "Preference to Make in India and eligibility for participation"

Acceptance of above attribute shall be considered as Bidder's confirmation that Bidder has read and understood the ITB Clause regarding "Preference to Make in India and eligibility for participation" and its bid is in compliance to this clause.

Bidder shall be required to submit a certificate from the statutory auditor or cost auditor (in the case the bidder is a company) or from a practicing cost accountant or practicing chartered accountant (in respect of bidders other than companies) giving the percentage of local content during execution prior to submission of last bill for payment.

In case aforesaid Certificate furnished by Contractor/Vendor is not in compliance of ITB Clause regarding "Preference to Make in India and eligibility for participation" in respect of Local content in their bid, same may be treated as false declaration and may be dealt in line with the Fraud Prevention Policy of NTPC.

Further Bidder Confirm that they are a LOCAL SUPPLIER, and the LOCAL CONTENT included in SCOPE OF SUPPLY FOR ALL QUOTED ITEMS (Item-wise Evaluation) OR COMPLETE SCOPE OF SUPPLY (Package-wise Evaluation) meets the MINIMUM LOCAL CONTENT requirements of the Tender

9.8 EMPLOYER's determination of a bid's responsiveness is to be based on the contents of the bid itself without recourse to extrinsic evidence. If a bid is not substantially responsive, it will be rejected by EMPLOYER, and may not subsequently be made responsive by the Bidder by correction of the nonconformity.

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10.0 PERIOD OF VALIDITY OF BID

10.1 The bidder is to ensure that its bid initially shall remain valid and open for acceptance for one hundred & twenty (120) days from the date of opening of Techno-Commercial Bid. The bid valid for shorter period shall be rejected by the employer as being non-responsive.

10.2 In exceptional circumstances, prior to the expiry of the original bid validity period, the Employer may request the Bidders to extend the period of validity for a specified additional period. The request and the responses thereto shall be made in writing. A Bidder agreeing to the request will not be permitted to modify his bid, but will be required to extend the validity of his bid security for the period of the extension.

11.0 PRICE BASIS

The tender on benchmark price basis and contract period is of one year, price variation shall not apply on FOR Price (including transportation). However, if the benchmark price is revised during the tenure of the contract, such revised price shall be applicable as per the notification of such revision without any change in transportation cost.

Bidders are required to quote as specified at ITB clause 6.2.

Further, Bidders are required to refer Technical specification before quoting the prices in GeM price schedule. It may be noted that the "Item Description" appearing in GeM Website and Excel sheet (short Text), is very brief only and is not exhaustive.

In case of any discrepancies/variations in item Description between Technical Specification and Excel sheet (short Text), the description appearing in Technical Specification shall prevail and it would be deemed that the Bidder has read the Technical Specification and other sections of Bidding Documents to ascertain full scope, included in each item, while filling the rates/prices shall be deemed to include the full scope, as per Technical Specification.

12.0 TRANSIT INSURANCE

Bidder shall be responsible for transportation and safe delivery of material. Transit Insurance charges if any shall be included by the bidder in their quoted in transportation including GST.

13.0 FREIGHT

The material is to be supplied directly to NTPC site as mentioned at ITB clause 1.0 and bidders are required to quote all the freight & Insurance (as applicable) charges and all incidentals in the prices quoted for Transportation (inclusive of GST) as specified at ITB clause 6.2.

Bidder shall be responsible for transportation and safe delivery of material.

14.0 DELIVERY START DATE AND DELIVERY SCHEDULE

As specified in clause 6.0 of technical specifications and scope of work.

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Bidder to ensure that existing manufacturing Plant is registered with the same Company name through which they have participated in the Bid.

For example if 'X' is a Proprietorship Firm/Partnership Firm/ Company/JV Company, then Manufacturing Plant should also be registered in the name of such Proprietorship Firm/Partnership Firm/Company/ JV Company only, as the case maybe. However, in case of bidding by "Consortium" manufacturing plant must be registered in the name of at least one of the Partners. In case of partnership plant may be registered in any name of partner

If a bidder participates from a Company named "XXXX", then the Manufacturing Plant should also be registered in the name of "XXXX" only.

If after award of the Purchase Order/Contract it is found that the manufacturing plant from which supplies are being made, is not registered in the name of the Contractor/ one of the partner of Consortium, to whom Purchase Order/Contract is awarded then the Contract shall be terminated and security deposit of the bidder is liable to be forfeited and bidder is also liable to be debarred for subsequent tenders.

15.0 CONTRACT PERIOD

Time period for the completion of supplies is 365 days from date of Letter of Award/Letter of Intent. Further refer Clause 5 and Clause 6 of Section- IV: Technical Specifications.

Extension of contracts:

- a) If a vendor having existing manufacturing unit has received orders on zero transportation cost and successfully completes 80% of allocated quantity, then they may be given extension of maximum 12 months for same awarded TPD and at zero transportation rate at the discretion of NTPC and as per requirement of NTPC station.
- b) If a vendor having future pellet manufacturing unit has received orders on zero transportation cost and successfully completes 70% of allocated quantity, then they may be given extension of another 12 months for same awarded TPD and at zero transportation rate at the discretion of NTPC and as per requirement of NTPC station.

16.0 BID PRICES

16.1 For quoting the Bid Prices, the Bidder are expected to take into account the requirements and conditions of the bidding documents.

Bidder shall enter Quantity in MT per Day and Transportation cost in Rs/MT(excluding GST) in Financial document (Excel sheet to be converted to pdf) as uploaded in GeM portal. Total quantity for 365 days will be automatically be calculated in the excel sheet.

Bidders are required to quote as specified at ITB clause 6.2.

16.2 The quoted price shall remain valid irrespective of the quantities considered for award

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to the bidder by the Employer, as per award criteria specified elsewhere in the Bidding Documents during the entire currency of the Contract, till the complete execution.

- 16.3** All charges for the entire scope of work should be included in the quoted price and the same should be for entire execution of the contract, in line with the Technical Specifications including Scope of Work and bidding documents provisions.

Bidders are required to quote the price for the commercial, contractual and technical obligations outlined in the bidding documents.

- 16.4** The terms EXW, FOB, C&F, CIF, FOR etc., shall be governed by the rules prescribed in the current edition of Incoterms, published by the International Chamber of Commerce, 38 Cours Albert 1er, 75008 Paris, France.

- 16.5** Under GST regime, if input tax credit (ITC) benefits is available to the bidder, Bidder to quote their Price bids taking the same into consideration. NTPC shall not be in any way, responsible for the same.

- 16.6** In the event of any corrections in the Bid, the same should be authenticated by signature of the authorized signatory signing the Bid.

17.0 FRAUD PREVENTION POLICY

The Bidder along with its associate/collaborator/subcontractors/sub-vendors/consultants/service providers shall strictly adhere to the Fraud Prevention Policy displayed on its tender website <https://ntpctender.ntpc.co.in> and shall immediately apprise the Employer about any fraud or suspected fraud as soon as it comes to their notice.

Acceptance of Fraud Prevention Policy of NTPC is to be also given on-line by accepting the following attribute through Annexure-C, Certificate for Compliance document submission along with Techno-Commercial bid:

“Do you accept Fraud Prevention Policy?”

Acceptance of above attribute shall be considered as Bidder's confirmation that Bidder unconditionally adheres to NTPC's "Fraud Prevention Policy".

18.0 Format and Signing of Bid

The bid including all documents attached/uploaded on the e-tender portal shall be digitally certified using Class-III signature by a duly authorised representative of the Bidder to bind him to the contract. The authorization shall be indicated by written power of attorney as per ITB Clause 3.3 and shall be submitted prior to date & time for opening of Techno-Commercial bid as per ITB clause 20.

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Authorized Representative and Signatory” means the designated person of each Bidder authorized to represent the Bidder in all matters pertaining to its Bid. This designated person should hold the Power of Attorney duly authorizing him/her to perform all tasks including but not limited to sign and submit the Bid to participate in all stages of the Bidding Process; to conduct correspondence for and on behalf of the Bidder, and to execute the contract and any other documents required to give effect to the outcome of the Bidding Process.

D. Submission of Bid

19.0 Bidding Procedure

19.1 Bidders shall submit their Bids (Techno- Commercial Bid and Price) Bids] as per the Terms and Conditions of the Bidding Document.

19.2 As per evaluation and award criteria stipulated herewith Bidders shall submit the Bid Security as specified in Clause 7.0 of ITB

19.3 As brought out at clause 1.0 of ITB, Single Stage Two Envelope Bidding process is being followed for Biomass Pellet Procurement.

20.0 ONLINE SUBMISSION OF BID DOCUMENTS & PRICES

The Bid (comprising the Bid Form as per Section-V, together with its Attachments (Techno-commercial and price) and Price Schedules) shall be submitted simultaneously at the GeM Website through e-tender mode in the manner specified elsewhere in bidding document.

20.1 Envelope-I: Techno-Commercial Bid

The Techno-Commercial Bid shall comprise of the following:

20.1.1 Documents to be submitted in physical form in separate sealed envelope (s) duly marked in the following manner (**Sealing and Marking of Physical Documents**):

- (i) The bid security furnished in accordance with ITB Clause 7.0 shall be sealed in a separate envelope duly marking the envelope as "ATTACHMENT-1: BID SECURITY".
- (ii) All other Original documents (along with 2 copies) required to be submitted in physical form shall be sealed in a separate envelope duly marking the envelope as “Techno-Commercial Bid – Physical Documents for “**Name of Plant**” from **Annexure III of Section IV Technical specifications** ”

The envelopes shall then be sealed in an outer envelope.

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20.1.2 The inner and outer envelopes shall:

- (i) be addressed to the Employer at the address given in the ITB Clause 7.0, and
- (ii) bear the Plant name & **GEM Bid number** indicated in the IFB, and the statement "DO NOT OPEN BEFORE [date]," to be completed with the time and date specified in the IFB, pursuant to ITB clause 21.

20.1.3 The inner envelopes shall also indicate the name and address of the Bidder.

20.1.4 If the outer envelope is not sealed and marked in the manner specified above, the Employer will assume no responsibility for its misplacement.

20.1.5 Documents to be submitted in physical form in separate sealed envelope (s) duly marking as mentioned above:

(a) Attachment 1: Bid Security

Bid security shall be furnished in separate sealed envelope in accordance with ITB Clause 7.0.

In case, the bid security is submitted through electronic fund transfer (EFT), bidder to submit the proof of e-payment of bid security either in separate sealed envelope

In case of BG to be submitted against the bid security, the BG should be submitted in separate sealed envelope inline with the ITB clause 7.0

(b) Attachment 2: Power of Attorney

A **Power of Attorney**, duly authorised by a Notary Public, is required to be submitted by the bidder indicating that the person(s) signing the bid has/have the authority to sign the bid and that the bid is binding upon the Bidder during the full period of its validity in accordance with ITB Clause 10.0.

The Authority of the Person issuing the Power of Attorney shall also be submitted by the bidder

For bidder participating as Consortium

The Power of Attorney by each Partner of Consortium in favour of their respective signatory shall be submitted. One of the Partners shall be designated as Leader, the authorization for which shall be evidenced by submitting the bid along with a Power of Attorney signed by legally authorized signatories of all the consortium Partners. The bid shall be signed so as to be legally binding on all the Partners.

If Power of Attorney/ Consortium Agreement form (as applicable) submitted by Bidder (including MSE bidder) is not in acceptable form, then same is to be submitted within 7 days of seeking clarification by NTPC. Thereafter in case of non-submission of Power of Attorney/ Consortium Agreement form (as applicable) by the Bidder, Bids shall be liable to be rejected by the Employer as being non-responsive.

20.1.6 Documents to be uploaded for Techno-commercial Bid of E-tender

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Techno-commercial bid duly completed shall be uploaded in the “Upload Documents” Tab at GeM website (<https://gem.gov.in/>).

No Manual/Hard Copy of the Bid shall be acceptable.

Bidder to further ensure that documents uploaded in “Upload Documents” Tab at GeM website (<https://gem.gov.in/>) is being downloaded properly. NTPC shall not be responsible for corrupted files, if any, uploaded therein.

Bidder may note that **“Please Upload Financial Document indicating Price Break-up” Tab** under **“Upload Documents” Tab** is strictly reserved for submission of **Price Bid**.

The Techno-Commercial Bid should not contain any price content entry. In case, the Techno-Commercial Bid is found to contain any price content, such bid shall be liable for rejection.

Bid Submission Form duly completed including Attachments shall be uploaded on the GeM Website under upload documents tab as mentioned below:

a) **Annexure C- Certificate of Compliance**

b) **Annexure T- Bid Submission Form**

c) **Attachment 1: Bid Security**

Scanned Bid security copy shall be furnished in accordance with ITB Clause 20.1.5

d) **Attachment 2: Power of Attorney**

In accordance with ITB Clause 20.1.5, Bidder shall be required to upload scanned copy of the Power of Attorney of the Bidder along with the Authority of the person issuing the Power of Attorney

e) **Attachment-3: Bidder details** as per Employer format along with required documents as mentioned therewith

Note- MSE bidders shall also upload a copy of **UDYAM REGISTRATION CERTIFICATE** (Containing code for Biomass pellets)

f) **Attachment-4:** Declaration regarding Ownership/Partnership cum submission of single financial bid and no common controlling shareholders or ownership or cross holding directly and/or indirectly in any manner whatsoever with any other participating bidder in the same station for same pellet type and the details of Foreign Principals of Indian Bidders (if applicable).

g) **Attachment-5 (in Bidder’s format): Consortium agreement** (if applicable) entered into by the consortium partners shall be submitted with the bid.

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h) **Attachment- 6: Declaration of Number of Plants Bidder is interested to participate** and Undertaking for availing Benefits as “Punjab, Haryana and NCR bidders as per Employer’s Format

i) **Attachment 7: Participation Criteria**

Documents in accordance with Clause ITB clause 1.5 Allocation Criteria, seeking Quantity allocation as per Bidding Documents provision

- **Attachment 7A:** For declaration of Traders/ Aggregators as per Employer’s Format
- **Attachment 7B:** Certificate by Chartered Accountant on Letter Head for Bidders’ manufacturing capacity and availing MSE benefits/ Purchase preference (If applicable) as per Employer’s format
- **Attachment 7C:** Certificate by Chartered Accountant on Letter Head for future pellet manufacturers as per Employer’s Format

Any other document, bidder feels is important to establish the allocation and fulfill the tender requirements.

j) **Attachment-8: Declaration of Past orders and quantity supplied** as per Employer’s format

k) **Attachment-9: Undertaking to be given by MSE Bidder for Availing Benefits** [as applicable] as per format ANNEXURE- Alloc-A-3

l) **Attachment-10: Technical Data Sheets**

Technical Data Sheets duly filled in as per the Employer's format, enclosed as Annex-I to Technical Specifications.

m) **Attachment 11: Additional Information**

Additional Information which the bidder wishes to provide in his bid.

n) **Attachment 12: EFT Form**

Electronic Fund Transfer Form duly filled in as per Employer's format.

o) **Attachment-13: Check List of documents to be submitted for Techno-Commercial Bid**

20.2 Envelope II: Price Bid

Bidder may note that **Financial Document (Excel sheet)** duly filled shall be uploaded in “**Please Upload Financial Document Tab at GeM portal strictly reserved for submission of Price Bid. Excel sheet is to be converted in pdf for uploading in price bid of GeM.**

No Manual/ Hard Copy of the Bid shall be acceptable.

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The IFB/Tender ID No. for uploading Envelope-II (Price Bid) in GEM website (<https://gem.gov.in/>) for the project:

Sl. No.	Project Name	ITEM
1.	As per ANNEXURE III OF SECTION IV TECHNICAL SPECIFICATIONS	Agro residue based non torrefied biomass pellets as per Technical Specifications Section-IV.

Documents to be uploaded for Price Bid of E-tender

The Price bid comprises of following documents to be submitted online:

20.2.1 Documents to be uploaded in Price Bid

Unconditional Price Bid

Financial Document in the format as uploaded online on the GEM portal with details as specified at **ITB Clause 6.2**

Bidder are required to enter Quantity in MT per Day in Financial document (Excel sheet to be converted to pdf) as uploaded in GeM portal. Total quantity for 365 days will be automatically be calculated in the excel sheet and Freight charges exclusive of GST.

Bidder shall be required to quote all above mentioned charges in the Financial document (Excel Sheet to be converted to pdf) as uploaded in GeM portal.

Note: Document(s) uploaded other than Financial Document (Excel sheet converted to pdf) in Price bid shall not be given any cognizance.

Note:

- 1) The Techno-Commercial Bid should not contain any price content entry. In case, the Techno-Commercial Bid is found to contain any price content, then the decision made by employer regarding rejection/acceptance of bid shall be final.
- 2) Bidders may note that Financial document (Excel sheet or Excel Sheet converted to pdf) should not be uploaded in Techno-Commercial Bid.
- 3) Price Bid should not contain any matter in respect of Technical and / or Commercial aspects other than the details specifically sought in the Price Bid. If the Technical/commercial matters indicated in Price Bid are found to be in contradiction with the details furnished in Techno-Commercial Bid, the details furnished in Techno-Commercial Bid shall prevail.

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20.3 Envelope-I/II: Techno-Commercial and Price Bid [Separate for four (04) Projects]

Bidders have to submit Envelope-I (Techno-Commercial Bid)/ Envelope-II (Price Bid) **separately** in BOQ template enclosed with tender documents for each project for which Bidder has shown interest in Attachment-6.

The IFB/Tender ID No. for uploading Envelope-I (Techno-Commercial Bid)/ Envelope-II (Price Bid) in NTPC GeM website for the projects:

Sl. No.	Project Name	GeM Bid No.
1.	Vindhyachal Super Thermal Power Project	GEM/2024/B/4939757
2.	Sipat Super Thermal Power Project	GEM/2024/B/4939308
3.	Korba Super Thermal Power Project	GEM/2024/B/4939588
4.	Lara Super Thermal Power Project	GEM/2024/B/4939662

NOTE:

Price Bids for Non torrefied pellets shall be opened in project wise sequence as mentioned above.

Further, quantity shall be allocated as per ITB Clause 1.5 in project wise sequence as mentioned above and Price bid shall not be opened for next plant of such bidder, whose full eligible quantity exhausted in previous Project as per sequence of Project mentioned in above table.

21 DEADLINE FOR SUBMISSION OF BIDS

21.1 Bids (Techno-commercial bid and price bid) shall be submitted in compliance to the provisions of the bidding documents no later than the time and date specified in the bidding documents/ any subsequent communication from the employer.

In the event of the specified date for submission of bids being declared a holiday for the Employer, the bids will be received up to the appointed time on the next working day.

21.2 The Employer may, at its discretion, extend this deadline for submission of bids by amending the bidding documents in accordance with ITB Sub-Clause 2.2 in which case all rights and obligations of Employer and Bidders will thereafter be subject to the deadline as extended.

Date & Time for opening of Price Bid shall be intimated separately to the bidders whose techno-commercial bid is found to be acceptable as detailed in ITB clause 23.2.

22 MODIFICATION AND WITHDRAWAL OF BIDS

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The Bidder may withdraw its Project Proposal online at GeM website (<https://gem.gov.in/>) after submission but prior to the deadline prescribed for bid submission and re-participate as per GeM Rules/ Policy.

- 22.1** No bid may be withdrawn in the interval between the bid submission deadline and the expiration of the bid validity period specified in ITB Clause 10.0 Withdrawal of a bid during this interval may result in bidder being ineligible for participation in the future tenders issued from NTPC for a period of 06 months from the date of withdrawal of the bid.

E. BID OPENING AND EVALUATION

23 Opening of Bids

23.1 Techno-Commercial Bid Opening

- 23.1.1 The Employer will first open Techno-Commercial Bid, on the date online at IFB / any subsequent communication from the employer. Bidder's attendance during the Techno-Commercial Bid opening in NTPC premises is not envisaged. In the event of the specified date for the opening of bids being declared a holiday for EMPLOYER, the bids will be opened at the appointed time on the next working day.

- 23.1.2 The Price Bid will remain unopened and the date and time for opening of price bids shall be intimated separately by EMPLOYER after completion of evaluation of Techno-Commercial Bids.

- 23.1.3** Only those bidders who are eligible by fulfilling the laid down criteria of the relevant stage of the bid will be able to check bid opening status through e-tendering portal.

23.2 Price Bid Opening

- 23.2.1 After the evaluation process of Techno-Commercial bid is completed, Employer will inform the eligible Bidders in writing regarding date, time set for the online opening of Price Bid/ any subsequent communication from the employer. Bidders, whose Techno-Commercial Bid is not substantially responsive, and/or not meeting the Qualifying Requirements shall also be informed in writing and their Price bid will be rejected and shall not be opened.

- 23.2.2 Price Bid for non-torrefied pellets shall be opened separately in project wise sequence as specified at clause 20.3 of ITB above. After the evaluation process of Techno-Commercial bid is completed, Employer will inform in writing the eligible Bidders regarding date and time set for the opening of Price Bid for each project .

- 23.2.3 Price bids of those Bidders, who have been considered qualified and whose Techno-Commercial Bid is found to be responsive, will be opened online. Bidder's attendance during the Price Bid opening in NTPC premises is not envisaged.

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- 23.2.4 The participating bidders will be able to view the bid prices of all the bidders after online opening of Price Bids by Employer.

24 Clarification on Bids

- 24.1** During bid evaluation, EMPLOYER may, at its discretion, ask the Bidder for a clarification of its bid including documentary evidence pertaining to the details mentioned in the bid for the purpose of meeting Qualifying Requirement and Allocation Criteria as specified in bidding documents. The request for clarification and the response shall be in writing only. No post bid clarification at the initiative of the bidder shall be entertained as all such clarifications would have been obtained prior to the submission of the bid.

25 Preliminary Examination of Techno-Commercial Bids

- 25.1** Employer will examine the Bids to determine whether the same are complete, whether required documents have been furnished, whether the documents have been properly signed and whether the Bids are generally in order.
- 25.2** The Employer may waive any minor informality, nonconformity, or irregularity in a bid that does not constitute a material deviation, provided such waiver does not prejudice or affect the relative ranking of any Bidder.
- 25.3** Prior to the detailed evaluation, NTPC will determine whether each bid is of acceptable quality, is complete, and is substantially responsive to the Bidding Documents. For purposes of this determination, a substantially responsive bid is one that (a) materially conforms to all the terms, conditions and specifications of the bidding documents without material deviations, objections, conditionalities or reservations. A material deviation, exception, objection, conditionality, or reservation is one: (i) that affects in any substantial way the scope, quality, or performance of the contract; (ii) that limits, in any substantial way that is inconsistent with the Bidding Documents, the Employer's rights or the Successful bidder's obligations under the Contract; or (iii) whose rectification would unfairly affect the competitive position of other Bidders who have submitted substantially responsive bids.
- 25.4** No deviation, whatsoever, is permitted by EMPLOYER to any provisions of Bidding Documents. Bidders shall certify their full compliance to all the provisions of Bidding Documents and its subsequent Corrigendum(s)/ Amendment(s) / Clarification(s) / Addenda / Errata, if any, issued by the Employer, by accepting the following through **Certificate for Compliance**.

“Do you certify full compliance to all provisions of Bidding Doc?”

Acceptance of above attribute shall be considered as Bidder's confirmation that any deviation to any Provisions found anywhere in their Bid Proposal, implicit or explicit, shall stand unconditionally withdrawn, without any cost implication whatsoever to the Employer, failing which the Bid shall be rejected.

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25.5 The Employer's determination of a bid's responsiveness is to be based on the contents of the bid itself without recourse to extrinsic evidence and any written clarifications, submitted by the bidder, if sought for by Employer. If a bid is not substantially responsive, it will be rejected by the Employer, and may not subsequently be made responsive by the Bidder by correction of the nonconformity.

25.6 QUALIFICATION AND ALLOCATION CRITERIA

Bidders shall certify their compliance on "Qualifying Requirements" on-line through GeM website by accepting the following through **Certificate for Compliance**.

"Do you certify full compliance on Qualifying requirements"

Employer, by the examination of Techno-Commercial Bid, will determine to its satisfaction whether the participating bidders are qualified to satisfactorily perform the contract in terms of the qualifying requirements and allocation criteria stipulated in the bidding documents. The determination will take into account the bidder's financial and technical capabilities, in particular its contracts, works in hand, future commitments and current litigation. It will be based upon an examination of documentary evidence of bidder's qualification submitted by the bidder, pursuant to ITB Clause 1.4 and 1.5 as well as such other information as Employer deems necessary and appropriate.

Notwithstanding anything stated anywhere else in the bidding documents, Employer reserves the right to seek in writing information relating to qualifying requirements and allocation criteria in addition to details contained in the bid. The bidder shall furnish required information promptly to the Employer.

NTPC reserves the right to verify any claims made by vendors and to carry out a capability assessment. The decision of NTPC shall be final in this regard. Notwithstanding any stated above, NTPC reserves the right to undertake a physical assessment of the capacity and capabilities including financial capacity and capability of the Bidder to perform the Contract, should the circumstances warrant such as assessment in the overall interest of NTPC .

Bids not meeting the requirements as stated in the Bidding Documents/NIT shall be rejected. An affirmative determination of meeting the qualifying requirements and allocation criteria will be a prerequisite for further evaluation of Techno-Commercial bid. A negative determination will result in rejection of the Bidder's Techno-Commercial Bid in which event EMPLOYER will not open the Price Bid of the concerned bidder.

26 DETAILED EVALUATION OF TECHNO-COMMERCIAL BIDS

Techno-commercial Bids, prepared and comprising details/documents in line with ITB Sub-Clause No. 20.1.2 submitted by Bidders will be evaluated as described below:

26.1 Employer will carry out a detailed evaluation of the Techno-Commercial Bids, previously determined to be responsive, in order to ascertain that the bidder fully meets Qualifying Requirements (ITB Clause 1.4) and Allocation Criteria, (ITB clause 1.5) and

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other provisions of bidding document, thereby eligible for quantity allocation as mentioned under ITB clause 1.5 and other provisions of bidding documents

26.2 Detailed evaluation of the Techno-Commercial Bids shall determine whether the various aspects are in accordance with the Technical and Commercial aspects and requirements set forth in the Bidding documents. In order to reach such a determination, the employer will examine and compare the technical aspects of the bids on the basis of the information supplied by the bidders, taking into account the following factors,

i) Overall completeness and compliance with the Technical Specifications. The bid that does not meet acceptable standards of completeness, consistency and detail will be rejected for non-responsiveness.

ii) Any other relevant factors listed in the General Purchase Conditions, and Instruction to Bidders, or that EMPLOYER deems necessary or prudent to take into consideration.

During the course of Detailed technical evaluation, owner shall examine the bids to determine whether they are complete, whether document have been properly submitted and whether bids are generally in order. Material deficiencies in the bid may render the bid as non-responsive and lead to rejection of the bid.

Detailed Technical evaluation will be carried out to determine as to whether technical aspects are in accordance with the requirements set forth in this document.

Employer's determination of responsiveness will be based on contents of the bid itself and any written clarifications, submitted by the bidder, if sought for by Employer.

The bids considered as technically acceptable shall only be construed as qualified bid and only such bids shall be taken up for further evaluation and comparison.

Bidder may note that deviations, variations and additional conditions etc. found anywhere in the bid, shall not be given effect to in evaluation and it will be assumed that the Bidder complies to all the conditions of Bidding Documents and its subsequent Amendment(s) / Clarification(s) / Addenda / Errata, if any, issued by the Employer. In case the Bidder refuses to withdraw deviations implicit or explicit found anywhere in the bid, without any financial implication whatsoever to the Employer, the bid shall be rejected.

26.3 After the evaluation process of Techno-commercial Bid is completed, Employer will inform the eligible bidders, in writing, regarding schedule of Price Bid Opening.

27 EVALUATION OF PRICE BID

Price Bid, prepared and submitted comprising details / documents in line with ITB Sub-Clause 20.2, by Bidders found eligible after evaluation of Techno-Commercial Bids, submitted in accordance with ITB will be evaluated as described hereinafter:

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- 27.1** The Employer will examine the Price bids to determine whether they are complete, whether any computational errors have been made, and whether the bids are generally in order.
- 27.2** The evaluation shall be based on the evaluated cost of completing the contract in compliance with all commercial, contractual and technical obligations under this Bidding Documents. The Bids shall be evaluated for arriving at total FOR Station basis price (plant/station are as per ANNEXURE III OF SECTION IV TECHNICAL SPECIFICATIONS) .
- 27.3** The tentative schedule of quantity with a break-up proposed to be delivered to respective plant/ station, is mentioned in Annexure III of Technical Specifications. However, Bidders at their own cost, should make themselves aware of various costs involved in delivering biomass pellets to respective plant.
- 27.4** The Evaluated Bid Price shall be arrived at considering quoted FOR plant/station basis price.
- 27.5** **The evaluation of price bids shall be done on the basis of Total FOR Price basis which shall be calculated as below:**

$$\text{Total FOR Price (Rs/MT)} = A+B$$

A i.e. Ex factory Price for non-torrefied Biomass {Rs. 2.352 /1000Kcal or Rs 7996.80/ MT @3400 Kcal as notified by GoI including GST @5%} + **B** i.e. Transportation price including GST in Rs/Ton for GCV 3400 Kcal/KG.

27.6 Quantity Allocation

- 27.6.1** The evaluation shall be done on Item-wise basis and Quantity allocation shall be done as per ITB Clause 1.5 and the Methodology for Allocation of quantities & evaluation of Bids in Bucket filling approach for Agro residual based Biomass Pellets attached in the Bidding documents for Annexure-Alloc-A.
- 27.6.2** Quantity allocation may be less than the prescribed limit as above based on discretion of NTPC.
- 27.6.3** A bidder can offer to supply a minimum 20 TPD for the given station and afterwards, bidder can bid for the quantity only in multiple of 10 TPD. Bidder with quoted quantity/ available capacity less than 20 TPD for 365 days i.e. 7300 MT shall not be considered for quantity allocation.

27.6.3.1 (a) Total quantity allocation to an existing Biomass pellet manufacturer/ aggregator/ trader shall be = Daily Quantity allocated to bidder× 365

(b) Total quantity allocation to Future Biomass pellet manufacturer shall be = Daily Quantity allocated to bidder × 180

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27.6.4 TPD stands for “Tonnes Per Day”. Tonnes and Metric Ton (MT) have the same meaning.

27.6.5 In case of any discrepancy between offered quantity by the Bidder in GeM screen and Financial document (Excel sheet converted to pdf), the offered quantity by the Bidder in the Financial document (Excel sheet converted to pdf) shall prevail.

F. Award of Contract

28 AWARD CRITERIA

Subject to ITB Clause 32 (Employer’s Right to Accept any Bid and to Reject any or all bids), Allocation criteria and other provisions of bidding documents, the Employer will award the Contract to the Bidder (whose bid has been determined to be substantially responsive to the Bidding Documents and provided that such bidder has been determined to be qualified to perform the contract satisfactorily

The Bidder will be required to comply with all requirements of the Bidding Documents without any extra cost to the Employer.

29 LETTER OF AWARD

29.1 Prior to the expiration of the period of bid validity, the Employer will notify the Successful bidder in writing by registered letter or by telefax or by email, to be confirmed in writing by registered letter, that its bid has been accepted. The Letter of Award (LOA) /Letter of Intent (LOI) as applicable as per bidding documents will constitute the formation of the contract and shall be effective from the date of award. Further, NTPC reserves the right that Letter of Award may not be placed for a particular project even after opening of price bid.

29.2 NTPC shall generate Demand Order and GeM PO / Contract on GeM Website. The successful Bidder has to make the payment of “Transaction Fee and/or AMC” as per GeM Policy. In case, the successful Bidder fails and/or denies making the payment of “Transaction Fee and/or AMC” as per GeM Policy, further action shall be taken against bidder as per GeM Policy.

29.3 The Letter of Award shall supersede and will have overriding effect on GeM PO / Contract, in case of any conflicting provisions.

30 PRICE ADJUSTMENT ON ACCOUNT OF INDICES

As base price on benchmark price basis and contract period is of one year, price variation shall not apply on FOR Price (including transportation). However, if the benchmark price is revised during the tenure of the contract, such revised price shall be applicable as per the notification of such revision without any change in transportation cost.

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*However, for PRICE ADJUSTMENT FOR GCV VARIATION and FINES please refer Technical specifications Clause no. 10 & 11.

G. Other Instructions

31 Contacting the Employer

Subject to ITB clause 2.1, no Bidder shall contact the Employer on any matter relating to its bid, from the time of the opening of bids to the time the Contract is awarded.

Any effort by a Bidder to influence the Employer in the Employer's bid evaluation, bid comparison or Contract award decision may result in rejection of the Bidder's bid.

32 Employer's Right To Accept Any Bid And To Reject Any Or All Bids

The Employer reserves the right to accept or reject any Bid, and to annul the bidding process and reject all Bids at any time prior to Contract award, without thereby incurring any liability to the affected Bidder or Bidders or any obligation to inform the affected Bidder(s) of the grounds for the Employer's action.

33 Ineligibility to participate in re-tender

Notwithstanding the provisions specified in ITB Sub-Clause 7 & 32. if a bidder after having been issued the LOA as applicable as per bidding documents , either does not accept the Letter of Award pursuant to ITB Clause 29 or does not submit an acceptable Performance Security pursuant to GPC Clause 28.0, , and which results in tender being annulled then such bidder shall be treated ineligible for participation in re-tendering of this particular package **and contractual action may be taken as per provisions of the Bidding documents**. Further, such vendor shall also be dealt as per the provisions of the contract and policy for Debarment from Business Dealings.

34 OBLIGATIONS OF THE SUCCESSFUL BIDDER

The Successful bidder(s) shall perform the work and carry out their obligations as per Scope of Work and terms and conditions defined in the Bid Document or Contract or Agreement with all due diligence, efficiency, and economy, in accordance with generally accepted professional techniques and practices, and shall observe sound management practices, and employ appropriate advance technology and safe methods. The bidder shall always act, in respect of any matter relating to the Contract or to the Work, as sincere advisers to NTPC and shall at all times support and safeguard NTPC's legitimate interests.

35 Notwithstanding anything stated elsewhere in the Bidding Documents, the Employer reserves the right to assess the capabilities and capacity of the Bidder / its collaborators/associates/subsidiaries/group companies to perform the contract, should the circumstances warrant such assessment in the overall interest of the Employer.

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The physical assessment shall include but not be limited to the assessment of the office/facilities/reference work by the Employer. A negative determination of such assessment of capacity and capabilities may result in the rejection of Bid.

The above right to undertake the physical assessment shall be applicable for the qualifying requirements stipulated in the bidding document

36

INTEGRITY PACT

NTPC has in place an Integrity Pact details of which are displayed on its Tender website <https://ntpctender.ntpc.co.in>.

The Pact essentially envisages an agreement between the prospective vendors/bidders and the Employer/buyer, committing the persons/officials of both sides, not to resort to any corrupt practices in any aspect/stage of the contract. Only those vendors/bidders, who commit themselves to such a Pact with the buyer, would be considered competent to participate in the bidding process. In other words, entering this Pact would be a preliminary qualification.

Bidders are required to unconditionally accept the “Integrity Pact (IP)” as per **Annexure- F15** To Section-V, to the Bidding Documents. Acceptance of the Integrity Pact (IP) is to be also given on-line by accepting the following attribute through Annexure-C, **Certificate for Compliance** document submission along with Techno-Commercial bid.

“Do you Commit to all the provisions of the Integrity Pact?”

On Bidder’s acceptance to the above attribute, Bidder / JV Partner(s)/ Consortium members confirm to have read, understood and unconditionally accept & commit to all the contents, terms, conditions and undertakings mentioned in the Integrity Pact which has been pre-signed by the Employer and enclosed with the Bidding Documents. On Acceptance of the above attribute, Integrity Pact shall be considered signed by the Bidder / JV Partner(s)/ Consortium members and the same shall come into force from the date of submission of bid.

If Certificate of Compliance is not submitted or submitted in unacceptable form along with Techno-Commercial Bid, then same is to be submitted within 7 days after receiving written communication from NTPC whichever is earlier. Thereafter in case of non submission of Certificate of Compliance by the Bidder, Bids shall be liable to be rejected by the Owner as being non-responsive.

It may also be noted that subsequent to Employer’s evaluation of Bids, resulting into award of Contract to a particular Bidder, the Integrity Pact acceptance through Annexure-C, Certificate for Compliance document so submitted shall form an integral part of the Contract.

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CORRUPT OR FRAUDULENT PRACTICES

The Employer requires that Bidders observe the highest standard of ethics during the procurement and execution of such contracts. In pursuance of this policy, the Employer:

- (a) defines, for the purposes of this provision, the terms set forth below as follows:
 - (i) "corrupt practice" means the offering, giving, receiving or soliciting of anything of value to influence the action of a public official in the procurement process or in contract execution; and
 - (ii) "fraudulent practice" means a misrepresentation of facts in order to influence a procurement process or the execution of a contract to the detriment of the Employer, and includes collusive practice among Bidders (prior to or after bid submission) designed to establish bid prices at artificial non-competitive levels and to deprive the Employer of the benefits of free and open competition;
- (b) will reject a proposal for award if it determines that the Bidder recommended for award has engaged in corrupt or fraudulent practices in competing for the contract in question;
- (c) will declare a firm ineligible, either indefinitely or for a stated period of time, to be awarded a contract if it at any time determines that the firm has engaged in corrupt or fraudulent practices in competing for, or in executing, a contract of the Employer.

INDEPENDENT EXTERNAL MONITORS (IEMS):

In respect of this package, the Independent External Monitors (IEMs) would be monitoring the bidding process and execution of contract to oversee implementation and effectiveness of the Integrity Pact Program.

The Independent External Monitor(s) (IEMs) as mentioned at NTPC tender website (<https://ntpc.tender.ntpc.co.in/>) under Integrity Pact tab have been appointed by NTPC, in terms of Integrity Pact (IP) which forms parts of the NTPC Tenders/Contracts.

This panel is authorized to examine /consider all references made to it under this tender. The bidder(s), in case of any dispute(s) / complaint(s) pertaining to this package may raise the issue either with the designated 'Nodal Officer' in EMPLOYER or directly with the IEMs address:

"The IEMs' Secretariat,

Contracts Services, 6th Floor, EOC,

NTPC Limited, A-8A, Sector-24,

Noida-201301 (UP)."

The Independent External Monitors (IEMs) has the right to access without restriction to all Project documentations of the Employer including that provided by the Contractor. The Contractor will also grant the Monitor, upon his request and

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demonstration of a valid interest, unrestricted and unconditional access to his Project Documentations. The same is applicable to Subcontractors. The Monitor is under contractual obligation to treat the information and documents of the Bidder/Contractor/Sub-Contractors/Consortium Partners/Consortium member with confidentiality.

The Nodal officer for necessary coordination with Independent External Monitors shall be as under

- i) Concerned Group Head in CC&M : if the issue pertains to awarding of Contract by CC&M
- ii) Concerned Group Head of C&M under respective CPG of USSC : if the issue pertains to awarding of Contract by USSC
- iii) Concerned Head of Department : if the issue pertains to other departments
- iv) Head of Project/ Station : if the issue pertains to post-award execution or award of Contract by Project/ Station

39 POLICY FOR Debarment from Business Dealings

The Employer has in place a Policy for Debarment from Business Dealings as enclosed at General Purchase Conditions (GPC) of the Bidding documents. Business dealings may be withheld or banned with the Bidder/Contractor on account of any of the grounds and following the procedures as detailed in the said Policy for Debarment from Business Dealings.”

Acceptance of the Policy for Debarment from Business Dealings is to be given on-line by accepting the following attribute through Annexure-C, Certificate for Compliance document submission along with Techno-Commercial bid :

“Do you accept Policy for Debarment from Business Dealings?”

Acceptance of above attribute shall be considered as Bidder’s confirmation that Bidder unconditionally adheres to NTPC’s Policy for Debarment from Business Dealings.

40 “Restrictions on procurement from a Bidder of a country which shares a land border with India” (Annexure-II to ITB)

40.1 Any Bidder (including its Collaborator/Associate/DJU Partner/JV partner/Consortium Member/Assignee, wherever applicable) from a country which shares a land border with India will be eligible to bid in this tender only if bidder is registered with the Competent Authority as mentioned in General Purchase Conditions (GPC)

Such registration should be valid for the entire period of bid validity or any extension thereof. However, in case the validity period of registration is less than bid validity period, the Bidder shall be required to submit the extension of the validity period of

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registration before the opening of price bids, failing which the bid shall be rejected.

Further the successful bidder shall not be allowed to sub-contract supplies/ services/ works to any “Sub-contractor” from a country which shares a land border with India unless such Sub-contractor is registered with the competent Authority as mentioned in GPC.

However, the said requirement of registration will not apply to bidders/ sub-contractors from those countries (even if sharing a land border with India) to which the Government of India has extended lines of credit or in which the Government of India is engaged in development projects. Bidders may apprise themselves of the updated lists of such countries available in the website of the Ministry of External Affairs.

40.2 “Bidder” (including the term 'tenderer', 'consultant' or 'service provider' in certain contexts) means any person or firm or company, every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency, branch or office controlled by such person, participating in a procurement process.

40.3 “Sub-contractor” (including the term ‘Sub-vendor’/Sub-supplier’ in certain contexts) means any person or firm or company, every artificial juridical person not falling in any of the descriptions of Sub-contractors stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.

40.4 “Bidders from a country which shares a land border with India” / “Sub-contractor from a country which shares a land border with India” as mentioned in ITB clause 40.1 above means;

- a) An entity incorporated, established or registered in such a country; or
- b) A subsidiary of an entity incorporated, established or registered in such a country; or
- c) An entity substantially controlled through entities incorporated, established or registered in such a country; or
- d) An entity whose beneficial employer is situated in such a country; or
- e) An Indian (or other) agent of such an entity; or
- f) A natural person who is a citizen of such a country; or
- g) A consortium or joint venture where any member of the consortium or joint venture falls under any of the above.

40.5 The beneficial employer for the purpose of ITB clause “40.4” above will be as under;

- a) In case of company or Limited Liability Partnership, the beneficial employer is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has a controlling employership interest or who exercises control through other means.

Explanation-

- i. “Controlling employership interest” means employership of or entitlement to more than twenty-five per cent of shares or capital or profits of the company;

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- ii. "Control" shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholdings or management rights or shareholder's agreements or voting agreements;
- b) In case of a partnership firms, the beneficial employer is the natural person(s) who, whether acting alone or together, or through one or more judicial person, has employership of entitlement to more than fifteen percent of capital or profits of the partnership;
- c) In case of an unincorporated associations or body of individuals, the beneficial employer is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has employership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;
- d) Where no natural person is identified under (a) or (b) or (c) above, the beneficial employer is the relevant natural person who holds the position of senior managing officials;
- e) In case of a trust, the identifications of beneficial employer(s) shall include identification of the author of trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

40.6 An Agent is a person employed to do any act for another, or to represent another in dealings with third person

41 Detention Charges

41.1 Detention Charges of Truck

Free unloading time: 24 hrs from the date and time of placement of truck within NTPC stations during the normal working hours excluding holidays. Supplier to provide authorized representative to acknowledge delivery (including shortage, damage, deterioration) of consignment at the site. Detention charge would be payable if the unloading time exceeds beyond the stipulated time (i.e. 24hrs), and the delay being on account of NTPC.

41.2 Detention charges (beyond free unloading time) per day would be as follows:- a) Mini Truck: Rs.1000/- b) Truck: Rs.1900/- However, all intervening holidays and Sundays will be excluded from detention period calculation.

41.3 No detention charges shall be considered if the vehicle is placed on holidays/Sundays or as in the event of force majeure conditions. Also NTPC will not be responsible of vehicle detained at the main gate entry of Stations (CISF check Post) for any reason whatsoever

42 NTPC VENDOR PAYMENT PORTAL & PAYMENT PROCEDURE

42.1 For all the cases where payment documents are to be directly submitted to NTPC (excluding Payment through Bank cases), the Invoice and supporting document(s) as

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required in the Purchase Order have to be Digitally Signed with class II or III digital signature and uploaded in the NTPC Vendor Payment Portal <https://pradip.ntpc.co.in/VendorFinal/Login.jsp>.

In such cases, there will be no requirement of physical copy of invoice & documents except for Lorry Receipts (LRs)/ Delivery Challan, which are Page 35 of 35 normally sent along with the material/ transporter. Bank Guarantees to be sent in original wherever applicable.

- 42.2** From 15.5.2020, NTPC will accept only digitally signed Invoice & supporting documents from Vendors for direct payment cases. Submission of documents in physical form shall not be accepted by NTPC unless otherwise asked for in the PO.

For such cases of physical submission, Vendors are required to send complete set of documents including invoice etc. addressed to the "Invoice Receipt Center" of the Delivery/ Invoicing Address as mentioned in the Purchase Order Annexure 1/ BOQ Sheet.

While submitting the Invoice/ Bills & related documents in physical form, Vendors are required to mention the following details on the top of the envelope:

- a. Invoice/Bill reference No.
- b. NTPC PO No./ Package no.
- c. NTPC Vendor Code as per PO

In addition to above, vendors are requested to mention their correspondence Email & Mobile No.in the Covering Letter, through which invoice processing related information/clarification request may be sent.

- 42.3** Vendors can track / monitor the status of payments from the Vendor payment portal. Help documents are available in the portal. Vendors are requested to make full use of the Vendor Payment Portal.

- 42.4** For payment cases through bank, all original documents are to be submitted in bank as per terms of PO.

43 CONFLICT OF INTEREST

- 43.1** A bidder shall not have conflict of interest with other bidders. Such conflict of interest can lead to anti-competitive practices to the detriment of Employer's interests. A bidder may be considered to have a conflict of interest with one or more parties in the bidding process, if:

- a) they directly or indirectly control, or are controlled by or are under common control of another entity; or

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b) they have the same legal representative/agent for purposes of their bids;

or

c) they have relationship with each other, directly or through common third party(ies), that puts them in a position to have access to information about or influence on the bid of another Bidder; or

d) Bidder and/or any of its allied entity(ies), which directly or indirectly control(s) or is(are) controlled by or is(are) under common control of another entity, has(ve) participated as a consultant in the preparation of the design or technical specifications of the contract that is the subject of the tender; or

e) Bidder participates in more than one bid in this bidding process.

For the purposes of this clause the term 'control' shall have the following meaning:

"Control" shall include the right to appoint majority of the directors or to control the management or policy decisions exercisable by a person or persons acting individually or in concert, directly or indirectly, including by virtue of their shareholding or management rights or shareholders' agreements or voting agreements or in any other manner.

Note: If two or more CPSEs/State PSEs participate in a tender, they will not be deemed to fall under the 'Conflict of Interest' provisions solely because they are under common control of Government of India / State Government.

Bidders shall certify their compliance to ITB Clause "Conflict of Interest" by accepting the following attribute through Annexure-C Certificate for Compliance document submission along with Techno-Commercial bid

Acceptance of above attribute shall be considered as Bidder's confirmation that Bidder has read and understood the ITB Clause regarding "Conflict of Interest" and its bid is in compliance to this clause.

In case it is established that Bidder has provided any false information in pursuance of the aforesaid ITB Clause, while competing for this contract, then its bid shall be rejected and bid security shall be forfeited.

In case of a successful bidder, if it is established that the Bidder has not complied with terms of aforesaid ITB Clause, during execution of contract, this would be considered as fraudulent practices as mentioned in para 5.1 (j) of "Policy for Debarment from Business Dealings" and shall be dealt accordingly.

44 Anti-Bribery and Anti-Corruption (ABAC) Policy:

The Bidder and its employees along with its Associate/ Collaborator/ Sub- Contractors / Sub-Vendors / Consultants / Service Providers and all other persons associated with business of Employer shall strictly adhere to Anti- Bribery and Anti-Corruption (ABAC)

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Policy of Employer displayed on tender website <https://ntpctender.ntpc.co.in/>.

Bidders shall certify their compliance on "Anti-Bribery and Anti-Corruption (ABAC) Policy" of Employer by accepting the following attribute through Annexure-C, Certificate for Compliance document submission along with Techno-Commercial bid.

Acceptance of above attribute shall be considered as bidder's confirmation that they and their employees along with their associate / collaborator/ subcontractors / sub vendors / consultants / service providers

shall strictly abide by "Anti-Bribery and Anti-Corruption (ABAC) Policy" of Employer as displayed on tender website at <https://ntpctender.ntpc.co.in/> under section 'policy docs' and undertake that they represent and confirm that they are aware of, understand, and will comply with all applicable laws and regulations relating to anticorruption and anti-bribery and the ABAC Policy of Employer.

45 Details of Consignee & Engineer In charge

Consignee: GM (FM), Vendor shall raise invoice in the name of GM (FM)

Engineer In charge: GM (FM) of plant, **As per ANNEXURE III OF SECTION IV TECHNICAL SPECIFICATIONS**

46 Change in Notified Benchmark Price:

In case of revision in bench mark price notified by GOI, if any, during execution of contract, then revised bench mark price notified by GOI shall be applicable.

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Sub: Preference to Make In India and granting of purchase preference to local suppliers- regarding

It is the policy of the Government of India to encourage 'Make in India' and promote manufacturing and production of Goods and Services in India with a view to enhancing income and employment. In this regard, the following guidelines, concerning the procedure to be adopted for granting purchase preference to local suppliers, are hereby issued:

1.0 Definitions:

- a) **'Local content'** means the amount of value added in India which shall be the total value of the goods and services procured (excluding net domestic indirect taxes) minus the value of imported content in the goods and services (including all customs duties) as a proportion of the total value, in percent.
- b) **'Local supplier'** means a supplier or service provider whose product or service offered for procurement meets the minimum local content as prescribed.
- c) **'L1'** means the lowest tender or lowest bid or the lowest quotation received in a tender, bidding process or other procurement solicitation as adjudged in the evaluation process as per the tender or other procurement solicitation.
- d) **'Margin of purchase preference'** means the maximum extent to which the evaluated bid price of a local supplier may be above the L1 for the purpose of purchase preference.
- e) **Fraud Prevention Policy** – shall mean the policy related to prevention of fraud displayed on NTPC tender website.
- f) **Policy & Procedure for Debarment from Business Dealings**–shall mean the policy related to Withholding & Banning of Business Dealings forming part of Bidding Document.

2.0 Minimum local content

- 2.1 The minimum local content shall be 100%.

3.0 Margin of Purchase Preference

- 3.1 The margin of purchase preference shall be 20%.

4.0 Requirement of Purchase Preference:

- 4.1 Purchase preference shall be given to local suppliers as specified hereunder:

The following procedure shall be followed:

- (i) Among all qualified and substantially responsive bids, the lowest evaluated bid will be termed as L1.

(ii) If L1 bid is from an MSE who is also a local supplier, the contract will be awarded to L1.

(iii) If L 1 bid is from a local supplier who is not an MSE:

- 75% of the order quantity shall be awarded to L1.
- Thereafter, all qualified MSE bidder(s), whose Evaluated Bid Price is within the range of 15% of the lowest evaluated (L1) price shall be eligible for an opportunity to match the lowest evaluated (L1) price. If more than one MSE bidders agree to match the lowest evaluated (L1) price, they will be considered for award of up to 25% (collectively) of the order value and, for the purpose of award of contract, the same shall be equally divided amongst the MSE bidders who have agreed to match the lowest evaluated (L1) price.
- In case some quantity is still left uncovered, then such balance quantity may also be ordered on the L1 bidder.

(iv) For the purpose of matching of lowest evaluated bid (L1) price, the Class-I local supplier / MSEs would have to necessarily reduce all components of the quoted price on pro-rata basis. The reduction should not apply on the evaluation loading on account of functional guarantees and other loadings (if any, which are not dependent on quoted price). Further, the Contract shall be awarded on such revised/ reduced quoted price. The summation of the revised/ reduced quoted price and the evaluation loading on account of functional guarantees and other loadings (if any) shall be equal to the lowest evaluated bid (L1) price.

Notes:

(i) Not Used

5.0 Verification of Local Content:

5.1 The local supplier shall be required to provide, self-certification / declaration that the Item offered meets the minimum local content and shall give details of the location(s) at which the local value addition is made as part of the bid submission form.

5.2 In cases of procurement for the value in excess of INR 10 crore, the local supplier shall be required to provide a certificate from the statutory auditor or cost auditor of the company (in the case of companies) or from a practicing cost accountant

or practicing chartered accountant (in respect of suppliers other than companies) giving the percentage of local content during execution prior to submission of last bill for payment.

In case aforesaid Certificate furnished by Contractor/Vendor is not in line with the declaration in respect of Local content in their bid, same shall be treated as false declaration.

- 5.2 A supplier who has been debarred / banned by any other procuring entity for violation of 'Public Procurement (Preference to Make In India), Order 2017' (PPP-MII Order) dated 15.06.2017 issued by Department of Industrial Policy and Promotion (DIPP) shall not be eligible for preference under the aforesaid procedures for duration of the debarment. The local supplier shall be required to furnish a confirmation in this regard along with bid in the relevant format.

6.0 Local Sourcing

The Bidder / Contractor are requested to encourage and promote domestic manufacturing and production of goods and services by sourcing goods and services applicable under the contract / package from domestic suppliers / service providers. In this regard, Bidder shall also follow guidelines / advisory issued by Government of India from time to time, to the extent applicable to them, regarding promotion of local sourcing of goods including Bought out Items and services.

Annexure- Alloc-A

Methodology for Allocation of quantities & evaluation of Bids in Bucket filling approach for Agro residual based Non-torrefied Biomass Pellets

1.0 The Methodology to be followed are as under:

- (A) 25% of the tendered quantity/quantity considered for filling the Bucket shall be offered to MSE bidders as per Public Procurement Policy for MSEs Order notified by Gol and as elaborated below at para (D).
- (B) Bidders sourcing raw materials (*agro residue-preferably rice straws*) from Punjab, Haryana and NCR [hereinafter called as **Punjab bidders**] for manufacturing of pellets are proposed to be given preference for 15% of the tendered quantity/quantity considered for filling the Bucket as elaborated below at para (D).
- (C) Further, if a bidder is MSE as well as Punjab, Haryana and NCR bidder [hereinafter called as PMSE Bidder], then such Bidder shall be treated as MSE Bidder for purpose of allocation of quantity and evaluation. Further, the quantity allocated to PMSE Bidders shall be considered for meeting norms for benefits/preferences for both categories i.e. MSE as well as Punjab, Haryana and NCR bidder categories.
- (D) **The proposed methodology for allocation of quantities and evaluation of bids in Bucket filling approach is as under:**

STEP-1 : INITIAL FILLING OF BUCKET

- (i) Initially the bucket shall be filled up in the merit order of quoted prices of all the participating bidders (including Punjab, MSE and PMSE Bidders) starting from lowest to highest Bidder (Bidders shall be referred as L1, L2, L3.....H). Highest Price quoted by Bidder considered in initial filled bucket for allocation shall be termed as H. The last bidder (H) filling such bucket may or may not be allocated its full offered quantity. Such Bidders who are allocated quantities during first filling of the Bucket shall be termed as Successful Bidders and rest of Bidders as unsuccessful Bidders
- (ii) Bucket shall be filled up for 100% of the tendered quantity. The quantity considered for initial filling of bucket has been termed as QBF (Quantity for initial Bucket filling).

STEP-2 : IDENTIFICATION OF DMQ (Deficient MSE Quantity)

- (iii) Subsequent to filling of Bucket as per para (i) above, if the requirement of allocation of 25% quantity to MSE bidders could not be met within the successful Bidders, then deficient quantity to be allocated to MSE/PMSE Bidder(s) shall be identified/calculated and allocation of the same shall be done following the methodology elaborated below in Step-3.
- (iv) Balance quantity to be allocated to unsuccessful eligible MSE/PMSE Bidders will be calculated using below mentioned formula, and shall be called as Deficient MSE Quantity (DMQ):

DMQ = [25% of Total Quantity filled in Bucket] - [Total quantity allocated to MSE + PMSE Bidders]

However, if the total quantities quoted by unsuccessful MSE & PMSE Bidders is lower than DMQ (calculated as per above formula), then in such cases DMQ shall be restricted

to such lower quoted quantities.

STEP-3 : ALLOCATION OF DMQ

- (v) Firstly, allocation of DMQ shall be done to unsuccessful eligible MSE and PMSE Bidders [*Partially allocated MSE/PMSE Bidders in the initial filled bucket shall also considered as eligible MSE/PMSE Bidders*] to ensure that Gol guidelines regarding quantity allocation to MSE Bidders are adhered. Subsequent to DMQ allocation, Deficient Punjab Quantity (DPQ) shall be allocated to unsuccessful eligible Punjab/PMSE Bidders.
- (vi) DMQ identified above in Step-2, shall be allocated by withdrawing 25% quantity from successful Non MSE and Non-Punjab bidder (NPB Bidder) from the initial filled bucket, in the reverse order of quoted price starting from H Bidder to L1 Bidder, till DMQ is met. In this process of withdrawing 25% of quoted quantity of NPB Bidders, quantity withdrawn to complete DMQ from last such NPB bidder can be equal or less than 25% of quoted quantity of such bidder. If DMQ is not fully allocated/met considering NPB Bidders, then quantity may also be withdrawn from successful Punjab Bidders in the order starting from H Bidder to L1 Bidder following the above methodology.
- (vii) Each portion of quantity withdrawn from a bidder as per para (vi) above, shall be allocated separately (in the reverse order of quoted price starting from H to L1 Bidder) to eligible MSE/PMSE Bidder(s). Such portion of withdrawn quantity shall be offered in equal proportion to the unsuccessful eligible MSE/PMSE Bidder(s) whose prices are within 15% of the price of the Bidder whose quantity is being withdrawn. This shall be subject to condition that allocation to such MSE/PMSE Bidder (s) shall not be more than their quoted quantity. In cases where any balance quantity from such portion being allocated is left and/or where MSE/PMSE Bidders refuse to match offered Price, such balance quantity shall be offered in equal proportion to remaining eligible MSE/PMSE Bidders. MSE/PMSE Bidders being allocated quantities shall have to accept the whole set of quantities being allocated at Single/multiple rates and shall not be offered part of the set for which they are eligible.

STEP-4 : IDENTIFICATION OF DPQ (Deficient Punjab Quantity)

- (viii) Subsequent to filling of Bucket as per para (i) above and allocation of DMQ as per Step-3, if the requirement of allocation of 15% quantity to Punjab bidders could not be met within the successful Bidders, then deficient quantity to be allocated to Punjab/PMSE Bidders shall be identified/calculated and allocation of the same shall be done following the methodology elaborated below in Step-5.
- (ix) Balance quantity to be allocated to unsuccessful eligible Punjab/PMSE Bidders will be calculated as under and this balance quantity shall be called as Deficient Punjab Quantity (DPQ) :

DPQ = [15% of Total Quantity filled in Bucket] - [Total quantity allocated to Punjab Bidders + PMSE Bidders as per Step 3]

However, if the quantities quoted by unsuccessful Punjab/PMSE Bidders is lower than DPQ (calculated as per above formulae), then in such cases DPQ shall be restricted to such lower quoted quantities.

STEP-5 : ALLOCATION OF DPQ

- (x) Subsequent to DMQ allocation, DPQ shall be allocated to unsuccessful eligible

Punjab/PMSE Bidders[Partially allocated Punjab/PMSE Bidders in the initial filled bucket shall also be considered as eligible Punjab/PMSE Bidders]. PMSE Bidders who have already availed MSE benefits (DMQ allocation), shall not be extended benefits of Punjab Bidders (DPQ allocation).

- (xi) DPQ identified above in Step-4, shall be allocated by withdrawing 15% quantity from successful Non MSE and non-Punjab bidder (NPB Bidder) from the filled bucket as per Step-3, in the reverse order of quoted price starting from H Bidder to L1 Bidder, till DPQ is met. In this process of withdrawing 15% of quoted quantity of NPB Bidders, quantity withdrawn from last NPB bidder can be equal or less than 15% to complete DPQ. There may be a possibility that DPQ is not fully allocated/ met considering NPB Bidders, however, in such cases quantity from successful MSE/ PMSE and Punjab Bidders shall not be withdrawn to meet allocation of DPQ, with a view to adhere to Gol guidelines/preferences for MSEs.
 - (xii) Each portion of quantity withdrawn from a bidder as per para (xi) above, shall be allocated separately (in the reverse order of quoted price starting from H to L1 Bidder) to eligible Punjab/PMSE Bidder(s). Such portion of withdrawn quantity shall be offered in equal proportion to the unsuccessful eligible Punjab/PMSE Bidder(s) whose prices are within 15% of the price of the Bidder whose quantity is being withdrawn. This shall be subject to condition that allocation to such Punjab/PMSE Bidder (s) shall not be more than their quoted quantity. In cases where any balance quantity from such portion being allocated is left and/or where Punjab/PMSE Bidders refuse to match offered Price, such balance quantity shall be offered in equal proportion to remaining eligible Punjab/PMSE Bidders. Punjab Bidders being allocated quantities shall have to accept the whole set of quantities being allocated at Single/multiple rates and shall not be offered part of the set for which they are eligible.
- (E) In case a MSE/PMSE Bidder and/or Punjab bidder gets allocation of different quantities at different rates after the completion of evaluation, then such bidder will be awarded the contract at a single price, i.e. weighted average price of the total quantity allocated to that bidder.
- (F) For claiming benefit of preferential allocation of tendered quantity, bidders sourcing raw materials (agro residue) from the State of Punjab, Haryana and NCR for manufacturing of pellets shall be required to submit a Letter of Undertaking along with bid as per format attached at **Annexure-Alloc-A-2**
- (G) It will be specified in the Bidding documents that NTPC shall be within its right to visit the manufacturing plant or demand any documentary evidences such as toll tax, LR, invoice, e-way bills etc. to see that raw materials are sourced from the State of Punjab, Haryana and NCR only, for manufacturing of pellets meant for NTPC Plants for which Punjab/PMSE Bidders have sought preference in their bids. In case at any time, it is found that raw materials are not sourced from the State of Punjab/Haryana/NCR by such agency, NTPC may ban the business dealings with such agency in line with terms and conditions of Bidding Documents/Debarment from Business dealing policy of NTPC.

Attachment-6

Annexure- Alloc-A-2

Undertaking / Declaration by Bidder

(To be submitted on Letter head of Bidder's Firm/Company along with technical bid)

Attachment-06 available in Section V : Attachments and Forms & Formats

MSE undertaking

ANNEXURE- Alloc-A-3 (Attachment-9)

Attachment-9 available in Section V : Attachments and Forms & Formats

**Illustration for allocation of quantities and evaluation of bids in Bucket filling approach for
Agro residual based Non-torrefied Biomass Pellets**

- Tendered Quantity – 1000 MT
- Offered Quantity by Bidders – 2000 MT
- Quantity for initial Bucket filling (QBF) – 1000 MT

STEP - 1 – INITIAL FILLING OF BUCKET

Table-1 – Initial filling of Bucket

Bidder Rank	Category	Quoted Quantity (MT)	Initially allocated Quantity (MT)	Calculated Price (Rs/MT)	
L1	NPB	150	150	9700	Successful Bidders
L2	NPB	200	200	9900	
L3	NPB	200	200	10200	
L4	NPB	150	150	10600	
L5	PMSE	50	50	10650	
L6	Punjab	50	50	10800	
L7	NPB	150	150	10900	Unsuccessful Bidders
H	MSE	100	50	10950	
L9	NPB	110	Nil	11150	
L10	MSE	100	Nil	11250	
L11	PMSE	30	Nil	11450	
L12	Punjab	10	Nil	11750	
L13	MSE	200	Nil	12500	
L14	NPB	500	Nil	15000	

where, **NPB – Non-MSME & Non Punjab Bidder**
PMSE- Bidder which is both Punjab & MSME Bidder

STEP - 2 – IDENTIFICATION OF DMQ

- **DMQ** = 25% of QBF – (Quantity allocated to MSE + PMSE Bidder in initial filled bucket)
 = 250 MT (25% of 1000 MT) – 100 MT (L5+H Bidder) = **150 MT**

However, if the total quantities quoted by unsuccessful MSE & PMSE Bidders is lower than DMQ (calculated as per above formula), then in such cases DMQ shall be restricted to such lower quoted quantities. Accordingly DMQ in present case shall be considered as under:

DMQ = 150 MT

(Quantities quoted by unsuccessful MSE & PMSE Bidders i.e. H, L10, L11 & L13 Bidders is 380 MT which is higher than calculated DMQ.

Bidder H has also been considered as partially allocated MSE/ PMSE Bidders in the initial filled bucket shall also considered as eligible MSE/ PMSE Bidders)

Table-2 – DMQ Identification

Bidder	Category	Initially allocated Quantity (MT)	DMQ allocation possible *(25% of NPB Bidder)	Remarks
L1	NPB	150	No withdrawal	
L2	NPB	200	25	25% of 200 MT would be 50 MT however partial withdrawal (25 MT only) shall be done as DMQ is met. Bal qty. – 175 MT
L3	NPB	200	50	25% of 200 MT Bal qty. – 150 MT
L4	NPB	150	37.5	25% of 150 MT Bal qty. – 112.5 MT
L5	PMSE	50	No withdrawal	
L6	Punjab	50	No withdrawal	
L7	NPB	150	37.5	25% of 150 MT Bal qty. – 112.5 MT
H	MSE	50	No withdrawal	

*** Quantities can be withdrawn from Punjab Bidders also in case DMQ is not met through withdrawal from NPB Bidders**

STEP – 3 – ALLOCATION OF DMQ

DMQ- 150 MT

- Unsuccessful eligible MSE & PMSE Bidders for allocation – 4 Bidders (H, L10, L11 and L13)
- Each portion of quantity withdrawn from a bidder as per Table 2, shall be allocated separately in the reverse order of quoted price starting from H to L1 Bidder i.e. L7, L4, L3 and L2 in present case)

- **Allocation of quantity withdrawn from L-7 Bidder – 37.5 MT**

Price of L7 Bidder - 10900 Rs/MT

Eligible Bidders - within 15% of L7 price i.e. Bidders with price upto $10900 \times 1.15 = 12535$
[i.e. Bidders H, L10, L11 and L 13]

- **Allocation of quantity withdrawn from L-4 Bidder – 37.5 MT**

Price of L4 Bidder - 10600 Rs/MT

Eligible Bidders - within 15% of L4 price i.e. Bidders with price upto $10600 \times 1.15 = 12190$
[i.e. Bidders H, L10 and L11]

- **Allocation of quantity withdrawn from L-3 Bidder – 50 MT**

Price of L3 Bidder – 10200 Rs/MT

Eligible Bidders - within 15% of L3 price i.e. Bidders with price upto $10200 \times 1.15 = 11730$ [i.e. Bidders H, L10 and L11]

- **Allocation of quantity withdrawn from L-2 Bidder – 25 MT**

Price of L2 Bidder - 9900 Rs/MT

Eligible Bidders - within 15% of L2 price i.e. Bidders with price up to $9900 \times 1.15 = 11385$ [i.e. Bidder H and L10]

Table-3 – DMQ allocation

Bidder	Category	Quoted Quantity (MT)	Allocation of DMQ	Calculated Price (Rs/MT)
H	MSE	100 Short Qty - 50	9.375 (L7) + 12.5 (L4) + 20.93 (L3) + 7.195 (L2) Total DMQ (MT) = 50	10900 for 9.375 MT [<i>@ L7 price & qty</i>] + 10600 for 12.5 MT [<i>@ L4 price & qty</i>] + 10200 for 20.93 MT [<i>@ L3 price & qty</i>] + 9900 for 7.195 MT [<i>@ L2 price & qty</i>] Rs 10388.08 Rs/MT for 50 MT quantity Award details for PO – Qty – 100 MT
L10	MSE	100	9.375 (L7) + 12.5 (L4) + 20.93 (L3) + 17.805 (L2) Total DMQ (MT) = 60.60	10900 for 9.375 MT [<i>@ L7 price & qty</i>] + 10600 for 12.5 MT [<i>@ L4 price & qty</i>] + 10200 for 20.93 MT [<i>@ L3 price & qty</i>] + 9900 for 17.805 MT [<i>@ L2 price & qty</i>] Award details for PO – Qty – 60.60 MT
L11	PMSE	30	9.375 (L7) + 12.5 (L4) + 8.125 (L3) Total DMQ (MT) = 30	10900 for 9.375 MT [<i>@ L7 price & qty</i>] + 10600 for 12.5 MT [<i>@ L4 price & qty</i>] + 10200 for 8.125 MT [<i>@ L3 price & qty</i>] Award details for PO – Qty – 30 MT
L13	MSE	200	9.375 (L7) Total DMQ (MT) = 9.375	10900 for 9.375 MT [<i>@ L7 price & qty</i>] Award details for PO – Qty – 9.375MT

- Portion of withdrawn quantity shall be offered in equal proportion to the unsuccessful eligible MSE/PMSE Bidder(s) whose prices are within 15% of the price of the Bidder whose quantity is being withdrawn. **[Process followed above in Table 3 while allocating withdrawn quantities of L7, L4, L3 and L2 bidders in the reverse order of quoted price starting from L7 to L2]**
- Subject to condition that allocation shall not be more than their quoted quantity. In cases where any balance quantity from such portion being allocated is left and/or where MSE/PMSE Bidders refuse to match offered Price, such balance quantity shall be offered in equal proportion to remaining

eligible MSE/PMSE Bidders.

- MSE/PMSE Bidders being allocated quantities shall have to accept the whole set of quantities being allocated at Single/multiple rates and shall not be offered part of the set for which they are eligible. [e.g in present case, Bidder H has to accept whole set i.e. 50 MT at different rates and can't/won't be offered part of the set of quantities. Similarly, other Bidders will also be offered whole set]

STEP -4 – IDENTIFICATION OF DPQ

- DPQ** = 15% of QBF –(Quantity allocated to Punjab + PMSE Bidder in initial filled bucket)
= 150 MT (15% of 1000 MT) – 130 MT (L5+L6+L11 Bidders) = 20 MT

The allocation of DPQ shall be on the similar lines of allocation of DMQ.

However, if the quantities quoted by unsuccessful Punjab/PMSE Bidders is lower than DPQ (calculated as per above formulae), then in such cases DPQ shall be restricted to such lower quoted quantities.

- DPQ shall be restricted to 10 MT** in place of 20 MT (as quantities quoted by unsuccessful Punjab Bidder(s) i.e. L12 Bidder is 10 MT only.)

Table-4 – DPQ Identification

Bidder	Category	Balance Quantity after DMQ allocation (MT)	DPQ allocation possible (15% of NPB Bidder)	Remarks
L1	NPB	150	No withdrawal	
L2	NPB	175	No withdrawal	
L3	NPB	150	No withdrawal	
L4	NPB	112.5	No withdrawal	
L5	PMSE	50	No withdrawal	
L6	Punjab	50	No withdrawal	
L7	NPB	112.5	10	15% of 150 MT (quoted qty) would be 22.5 MT however partial withdrawal (10 MT only) shall be done as DPQ is met. Bal qty – 102.5 MT
H	MSE	100	No withdrawal	

STEP – 5 – ALLOCATION OF DPQ

DPQ- 10 MT

- Unsuccessful eligible Punjab & PMSE Bidders for allocation – 1 Bidder (L12)
- Each portion of quantity withdrawn from a bidder as per Table 4, shall be allocated separately (in the reverse order of quoted price starting from H to L1 Bidder i.e. only L7 Bidder in present case)

- **Allocation of quantity withdrawn from L-7 Bidder – 10 MT**

Price of L7 Bidder - 10900 Rs/MT

Eligible Bidders - within 15% of L7 price i.e. Bidders with price upto $10900 \times 1.15 = 12535$
[i.e. L12 Bidder is eligible]

Table-5 – DPQ Allocation

Bidder	Category	Quoted Quantity (MT)	Allocation of DMQ	Calculated Price (Rs/Kcal)
L12	Punjab	10	10 (L7)	10900 for 10 MT [@ L7 price & qty] Award details for PO – Qty – 10 MT @ Rs 10900 Rs/MT

- Allocation process similar to DMQ
- The above calculations are for illustration purpose only, Actual allocation shall be as per the bidding documents.

Annexure-II to ITB

F. No DPE/7(4)/2017-Fin
Government of India
Ministry of Finance
Department of Public Enterprises

Block No 14, CGO Complex,
Lodi Road, New Delhi-110003
Dated the 24th February 2023

To,

Chief Executives of all CPSEs

Subject: Restrictions under Rule 144(xi) of the General Financial Rules
(GFRs), 2017 - regarding

Sir/Madam,

The undersigned is directed to reiterate the instructions as contained in
Department of Expenditure O M. No 7/10/2021-PPD(1) dated 23rd February, 2023
(copy enclosed) to all CPSEs for their information and strict compliance

Encl As stated


(Kailash Bhandari)
Deputy Director
Tel 2436-6247

Copy to - Shri Kanwalpreet, Director (PPD), Department of Expenditure, Room No
264-C, North Block, New Delhi

No.F.7/10/2021-PPD (1)
Government of India
Ministry of Finance
Department of Expenditure
Procurement Policy Division

264-C, North Block, New Delhi.
23.02.2023.

Order (Public Procurement No. 4)

Subject: Restrictions under Rule 144(xi) of the General Financial Rules (GFRs), 2017.

Attention is invited to Order (Public Procurement No. 1) issued vide F.6/18/2019-PPD dated 23.07.2020, Order (Public Procurement No. 2) issued vide F.6/18/2019-PPD dated 23.07.2020, Order (Public Procurement No. 3) issued vide F.6/18/2019-PPD dated 24.07.2020, Office Memorandum (OM) No. F.18/37/2020-PPD dated 08.02.2021, OM No. F.12/1/2021-PPD(Pt.) dated 02.03.2021 and OM No. F.7/10/2021-PPD dated 08.06.2021. In this regard, the following is hereby ordered under Rule 144(xi) (as amended vide OM No. F.7/10/2021-PPD dated 23.02.2023) on the grounds stated therein, in supersession to all of the above mentioned Orders/ clarifications:

Requirement of registration:

2. Any bidder from a country which shares a land border with India will be eligible to bid in any procurement whether of goods, services (including consultancy services and non-consultancy services) or works (including turnkey projects) only if the bidder is registered with the Competent Authority, specified in **Annexure I**.
3. Any bidder (including an Indian bidder) who has a Specified Transfer of Technology (ToT) arrangement with an entity from a country which shares a land border with India will be eligible to bid in any procurement whether of goods, services (including consultancy services and non-consultancy services) or works (including turnkey projects) only if the bidder is registered with the Competent Authority, specified in **Annexure I**.
4. The requirement of registration for cases covered by paragraph 2 above has been applicable since 23.07.2020. The requirement of registration for bidders covered by paragraph 3 above will be applicable for all procurements where tenders are issued/ published after 01.04.2023.
5. In tenders issued after 23.07.2020 or 01.04.2023, as the case may be, the provisions of requirement of registration of bidders and of other relevant provisions of this Order shall be incorporated in the tender conditions.

Applicability:

6. Apart from Ministries/ Departments, attached and subordinate bodies, notwithstanding anything contained in Rule 1 of the GFRs 2017, the Order shall also be applicable

- a) to all Autonomous Bodies;
- b) to all public sector banks and public sector financial institutions;
- c) to all Central Public Sector Enterprises;
- d) to all procurement in Public Private Partnership projects receiving financial support from the Government or public sector enterprises/ undertakings; and
- e) Union Territories, National Capital Territory of Delhi and all agencies/ undertakings thereof.

7. This order will not be applicable for cases falling under **Annexure II**.

Definitions:

8. "*Bidder*" for the purpose of the Order (including the term 'tenderer', 'consultant' 'vendor' or 'service provider' in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency, branch or office controlled by such person, participating in a procurement process.

9. "*Tender*" for the purpose of the Order will include other forms of procurement, except where the context requires otherwise.

10. "*Transfer of Technology*" means dissemination and transfer of all forms of commercially usable knowledge such as transfer of know-how, skills, technical expertise, designs, processes and procedures, trade secrets, which enables the acquirer of such technology to perform activities using the transferred technology independently. (Matters of interpretation of this term shall be referred to the Registration Committee constituted by the Department for Promotion of Industry and Internal Trade, and the interpretation of the Committee shall be final.)

11. "*Specified Transfer of Technology*" means a transfer of technology in the sectors and/ or technologies, specified in paragraph 15, occurring on or after 23.07.2020.

12. "*Bidder (or entity) from a country which shares a land border with India*" for the purpose of the Order means

- (a) An entity incorporated, established or registered in such a country; or
- (b) A subsidiary of an entity incorporated, established or registered in such a country; or
- (c) An entity substantially controlled through entities incorporated, established or registered in such a country; or
- (d) An entity whose beneficial owner is situated in such a country; or
- (e) An Indian (or other) agent of such an entity; or
- (f) A natural person who is a citizen of such a country; or

- (g) A consortium or joint venture where any member of the consortium or joint venture falls under any of the above

13. *Beneficial owner* for the purposes of Para 12 (d) will be as under:

(i) In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person(s), has a controlling ownership interest or who exercises control through other means.

Explanation:-

a. "Controlling ownership interest" means ownership of, or entitlement to, more than twenty-five per cent of shares or capital or profits of the company;

b. "Control" shall include the right to appoint the majority of the directors or to control the management or policy decisions, including by virtue of their shareholding or management rights or shareholders agreements or voting agreements;

(ii) In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;

(iii) In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;

(iv) Where no natural person is identified under (i) or (ii) or (iii) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;

(v) In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

14. "*Agent*" for the purpose of the Order is a person employed to do any act for another, or to represent another in dealings with third persons.

[Note:

i. A person who procures and supplies finished goods from an entity from a country which shares a land border with India will, regardless of the nature of his legal or commercial relationship with the producer of the goods, be deemed to be an Agent for the purpose of this Order.

ii. However, a bidder who only procures raw material, components etc. from an entity from a country which shares a land border with India and then manufactures or converts them into other goods will not be treated as an Agent.]

Sensitive Sectors/ Technologies (relevant only for the provisions on ToT arrangements):

15. (i) Certain sectors and technologies have been identified as sensitive from the national security point of view. The sectors listed in Schedule I to this Order are considered Category-I sensitive sectors. The sectors listed in Schedule II to this Order are considered Category-II sensitive sectors. The technologies listed in Schedule III are considered sensitive technologies.

(ii) For Category-I sensitive sectors, bidders with ToT arrangement in any technology with an entity from a country which shares a land border with India shall require registration.

(iii) For Category-II sensitive sectors, bidders with ToT arrangement in the sensitive technologies listed in Schedule III, with an entity from a country which shares a land border with India shall require registration.

(iv) In Category-II sensitive sectors, the Secretary (or an officer not below the rank of Joint Secretary to Government of India, so authorized by the Secretary) of the Ministry/ Department of the Government of India is empowered, after due consideration, to waive the requirement of registration for a particular item/ application or a class of items/ applications from the requirement of registration, even if included in Schedule III. The Ministry/ Department concerned shall intimate the Department for Promotion of Industry and Internal Trade (DPIIT) and National Security Council Secretariat (NSCS) of their decision to waive the requirement of registration. Ministries/ Departments of the Government of India are not required to consult the DPIIT/ NSCS before deciding and are only required to intimate the decision to DPIIT/ NSCS. If any point is raised by DPIIT/ NSCS, it should be considered in future procurements; ongoing procurement for which the waiver was granted need not be interrupted or altered.

16. Based on security considerations, a Ministry/ Department in a Category II sensitive sector or other Ministries/ Departments may recommend to DPIIT inclusion of any other technology in the list of sensitive technologies, either generally or for their Ministry/ Department.

Sub-contracting in works contracts

17. In works contracts, including turnkey contracts, contractors shall not be allowed to sub-contract works to any contractor from a country which shares a land border with India unless such contractor is registered with the Competent Authority. The definition of "contractor from a country which shares a land border with India" shall be as in paragraph 12 above. This shall not apply to sub-contracts already awarded on or before 23.07.2020.

[Note: Procurement of raw material, components, etc. does not constitute sub-contracting.]

Certificate regarding compliance

18. An undertaking shall be taken from bidders in the tender documents (**Annexure III**) that the extant guidelines for participation in the tenders (which should include conditions for implementation of this Order) have been complied with. If such certificate given by a bidder whose bid is accepted is found to be false, this would be a ground for debarment and further legal action in accordance with law.

Validity of registration

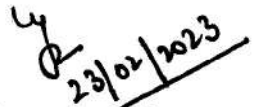
19. In respect of tenders, registration should be valid at the time of submission of bids and at the time of acceptance of bids. In respect of supply otherwise than by tender, registration should be valid at the time of placement of order. If the bidder was validly registered at the time of acceptance / placement of order, registration shall not be a relevant consideration during contract execution.

Government e-Marketplace (GeM)

20. GeM shall remove non-compliant entities from GeM unless/ until they are registered in accordance with this Order.

Model Clauses/ Certificates

21. Model Clauses and Model Certificates which may be inserted in tenders/ obtained from Bidders are given at Annexure-III. While adhering to the substance of the Order, procuring entities are free to appropriately modify the wording of these clauses based on their past experience, local needs etc.


(Kanwalpreet)
Director(PPD)

Tel.No. 2309 3811; email: kanwal.irss@gov.in

To

1. Secretaries of all Ministries/ Departments of Government of India for information and necessary action. They are also requested to inform these provisions to all procuring entities.
2. Secretary, Department of Public Enterprises with a request to immediately reiterate these orders in respect to public enterprises.
3. Secretary, Department of Financial Services with a request to immediately reiterate these orders in respect to public sector and public sector financial institutions.
4. Secretary DPIIT with a request to take action as provided under Annexure I.
5. Chief Secretaries/ Administrators of Union Territories/ National Capital Territory of Delhi.
6. CEO/ GeM with a request to ensure implementation of this order on GeM.

List of Category-I Sensitive sectors:

Sr.No.	Sector
(i)	Atomic Energy
(ii)	Broadcasting/ Print and Digital Media
(iii)	Defence
(iv)	Space
(v)	Telecommunications

List of Category-II Sensitive sectors:

Sr.No.	Sector
(i)	Power and Energy (including exploration/ generation/ transmission/ distribution/ pipeline)
(ii)	Banking and Finance including Insurance
(iii)	Civil Aviation
(iv)	Construction of ports and dams & river valley projects
(v)	Electronics and Microelectronics
(vi)	Meteorology and Ocean Observation
(vii)	Mining and extraction (including deep sea projects)
(viii)	Railways
(ix)	Pharmaceuticals & Medical Devices
(x)	Agriculture
(xi)	Health
(xii)	Urban Transportation

List of Sensitive Technologies:

Sr.No.	Sensitive Technologies
(i)	Additive Manufacturing (e.g. 3D Printing)
(ii)	Any equipment having electronic programmable components or autonomous systems (e.g. SCADA systems)
(iii)	Any technology used for uploading and streaming of data including broadcasting, satellite communication etc.
(iv)	Chemical Technologies
(v)	Biotechnologies including Genetic Engineering and Biological Technologies
(vi)	Information and Communication Technologies
(vii)	Software

Competent Authority and Procedure for Registration

- A. The Competent Authority for the purpose of registration under this order shall be/ continue to be the Registration Committee constituted by the Department for Promotion of Industry and Internal Trade (DPIIT)*. [This Committee was already constituted under Order (Public Procurement) No.1].
- B. The Registration Committee shall have the following members*:
- i. An officer, not below the rank of Joint Secretary, designated for this purpose by DPIIT, who shall be the Chairman;
 - ii. Officers (ordinarily not below the rank of Joint Secretary) representing the Ministry of Home Affairs, Ministry of External Affairs, and of those Departments whose sectors are covered by applications under consideration;
 - iii. Any other officer whose presence is deemed necessary by the Chairman of the Committee.
 - iv. With effect from 01.04.2023, an officer (ordinarily not below the rank of Joint Secretary) representing the National Security Council Secretariat.
- C. DPIIT shall lay down the method of application, format etc. for such bidders as covered by the Order.
- D. On receipt of an application seeking registration from a bidder covered by Para 2 and 3 of this order, the Competent Authority shall first seek political and security clearances from the Ministry of External Affairs and Ministry of Home Affairs, as per guidelines issued from time to time. Registration shall not be given unless political and security clearance have both been received.
- E. The Ministry of External Affairs and Ministry of Home Affairs may issue guidelines for internal use regarding the procedure for scrutiny of such applications by them.
- F. The decision of the Competent Authority, to register such bidder may be for all kinds of tenders or for a specified type(s) of goods or services, and may be for a specified or unspecified duration of time, as deemed fit. The decision of the Competent Authority shall be final.
- G. Registration granted by the Competent Authority of the Government of India shall be valid not only for procurement by the Central Government and its bodies specified in para 6 of this order, but also for procurement by State Governments and their agencies/ public enterprises etc. No fresh registration at the State level shall be required.
- H. The Competent Authority is empowered to cancel the registration already granted if it determines that there is sufficient cause. Such cancellation by itself, however, will

not affect the execution of contracts already awarded. Pending cancellation, it may also suspend the registration of a bidder, and the bidder shall not be eligible to bid in any further tenders during the period of suspension.

- I. For national security reasons, the Competent Authority shall not be required to give reasons for rejection/cancellation of registration of a bidder.

[*Note:

(i) In respect of application of the Order to procurement by/ under State Governments, all functions assigned to DPIIT shall be carried out by the State Government concerned through a specific department or authority designated by it. The composition of the Registration Committee shall be as decided by the State Government. However, the requirement of political and security clearance as per para D shall remain and no registration shall be granted without such clearance.

(ii) Registration granted by State Governments shall be valid only for procurement by the State Government and its agencies/ public enterprises etc. and shall not be valid for procurement in other states or by the Government of India and their agencies/ public enterprises etc.]

Special Cases

- A. In projects which receive international funding with the approval of the Department of Economic Affairs (DEA), Ministry of Finance, the procurement guidelines applicable to the project shall normally be followed, notwithstanding anything contained in this order and without reference to the Competent Authority. Exceptions to this shall be decided in consultation with DEA.
- B. This order shall not apply to procurement by Indian missions and by offices of government agencies/ undertakings located outside India.
- C. This order will not apply to bidders (or entities) from those countries (even if sharing a land border with India) to which the Government of India has extended lines of credit or in which the Government of India is engaged in development projects. Updated lists of countries to which lines of credit have been extended or in which development projects are undertaken are given on the website of the Ministry of External Affairs.
- D. Procurement of spare parts and other essential service support like Annual Maintenance Contract (AMC)/ Comprehensive Maintenance Contract (CMC), including consumables for closed systems, from Original Equipment Manufacturers (OEMs) or their authorized agents, shall be exempted from the requirement of registration.

Model Clause/ Certificate/ Undertaking to be inserted in tenders etc.

[While adhering to the substance of the Order, procuring entities and GeM are free to appropriately modify the wording of the clause/ certificate based on their past experience, local needs etc.

The conditions relating to specified ToT (as shown in italics) should be incorporated only in the tenders which attract the restrictions due to specified ToT.]

A. Model Clauses for Tenders (including tenders issued manually or any electronic portal including GeM):

I. Any bidder from a country which shares a land border with India will be eligible to bid in any procurement whether of goods, services (including consultancy services and non-consultancy services) or works (including turnkey projects) only if the bidder is registered with the Competent Authority. *Further, any bidder (including bidder from India) having specified Transfer of Technology (ToT) arrangement with an entity from a country which shares a land border with India, shall also require to be registered with the same competent authority.*

II. "Bidder" (including the term 'tenderer', 'consultant' or 'service provider' in certain contexts) means any person or firm or company, including any member of a consortium or joint venture (that is an association of several persons, or firms or companies), every artificial juridical person not falling in any of the descriptions of bidders stated hereinbefore, including any agency branch or office controlled by such person, participating in a procurement process.

III. "Bidder (or entity) from a country which shares a land border with India" for the purpose of this Order means: -

- (a) An entity incorporated, established or registered in such a country; or
- (b) A subsidiary of an entity incorporated, established or registered in such a country; or
- (c) An entity substantially controlled through entities incorporated, established or registered in such a country; or
- (d) An entity whose beneficial owner is situated in such a country; or
- (e) An Indian (or other) agent of such an entity; or
- (f) A natural person who is a citizen of such a country; or
- (g) A consortium or joint venture where any member of the consortium or joint venture falls under any of the above

IV. The beneficial owner for the purpose of (iii) above will be as under:

1. In case of a company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has a controlling ownership interest or who exercises control through other means.

Explanation—

a. "Controlling ownership interest" means ownership of or entitlement to more than twenty-five per cent. of shares or capital or profits of the company;

b. "Control" shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholding or management rights or shareholders agreements or voting agreements;

2. In case of a partnership firm, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;

3. In case of an unincorporated association or body of individuals, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;

4. Where no natural person is identified under (1) or (2) or (3) above, the beneficial owner is the relevant natural person who holds the position of senior managing official;

5. In case of a trust, the identification of beneficial owner(s) shall include identification of the author of the trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.

V. An Agent is a person employed to do any act for another, or to represent another in dealings with third person.

VI. [To be inserted in tenders for Works contracts, including Turnkey contracts] The successful bidder shall not be allowed to sub-contract works to any contractor from a country which shares a land border with India unless such contractor is registered with the Competent Authority.

VII. The registration shall be valid at the time of submission of bid and at the time of acceptance of bid.

VIII. If the bidder was validly registered at the time of acceptance / placement of order, registration shall not be a relevant consideration during contract execution

Model Certificate for Tenders:

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority. I hereby certify that this bidder fulfills all requirements in this regard and is eligible to be considered. [Where applicable, evidence of valid registration by the Competent Authority shall be attached.]"

Model Certificate for Tenders for Works involving possibility of sub-contracting:

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries; I certify that this bidder is not from such a country or, if from such a country, has been registered with the Competent Authority and will not sub-contract any

work to a contractor from such countries unless such contractor is registered with the Competent Authority. I hereby certify that this bidder fulfills all requirements in this regard and is eligible to be considered. [Where applicable, evidence of valid registration by the Competent Authority shall be attached.]"

Model additional certificate by Bidders in the cases of specified ToT:

"I have read the clause regarding restrictions on procurement from a bidder having Transfer of Technology (ToT) arrangement. I certify that this bidder does not have any ToT arrangement requiring registration with the competent authority."

OR

"I have read the clause regarding restrictions on procurement from a bidder having Transfer of Technology (ToT) arrangement. I certify that this bidder has valid registration to participate in this procurement."

B. Model Certificate for GeM (to be taken by the GeM from seller during registration on GeM. GeM should also obtain this certificate from all existing bidders as soon as possible):

"I have read the clause regarding restrictions on procurement from a bidder of a country which shares a land border with India; I certify that this vendor/ bidder is not from such a country and does not have any specified Transfer of Technology (ToT) from such a country or, if from such a country or if having specified ToT from such a country has been registered with the Competent Authority. I hereby certify that this vendor/ bidder fulfills all requirements in this regard and is eligible to be considered for procurement on GeM. [Where applicable, evidence of valid registration by the Competent Authority shall be attached.]"

Section – III

GENERAL PURCHASE CONDITIONS (GPC)

CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)	
1.0	DEFINITIONS	
	Unless the context otherwise requires, the following terms whenever used in the Contract have the following meaning:	
	(a)	“Contract” means the Purchase Order/Service Order signed by the Employer, to which these General Purchase Conditions (GPC) are attached together with all the documents listed in such signed Contract and the term “the Contract” shall in all such documents be construed accordingly.
		“GPC” means the General Purchase Conditions.
	(b)	Applicable Law - This Contract including all matters connected with this Contract shall be governed and construed in accordance with the Indian Law both substantive and procedural and shall be subject to the exclusive jurisdiction of Indian courts at Delhi, India.
	(c)	Contract Price means the price to be paid for the performance of the work detailed under Scope of Work, subject to such additions and adjustments thereto or deductions there from, as may be made pursuant to the Contract.
	(d)	Bidder means the party to whom the Invitation for Bid is issued and who submits its Bid..
	(e)	“Contractor” means the person(s) whose bid to perform the Contract has been accepted by the Owner and is named as such in the Contract Agreement, and includes the legal successors or permitted assigns of the Contractor.
	(f)	Government means the Government of India.
	(g)	Local Currency means the currency of the Government of India i.e. Indian Rupees.
	(h)	Party means NTPC or Bidder, as the case may be, and "Parties" means both of them.
	(i)	Personnel mean persons hired by the Contractor as employees and assigned to the performance of the Services or any part thereof.
	(j)	Services means the work to be performed by the Contractor pursuant to the Contract, as detailed in the Bidding Documents, Agreement or Contract or Purchase Order or LOA.
(k)	Law Governing the Contract : The Contract, its meaning and interpretation, and the relation between the Parties shall be governed by the Applicable Law.	
(l)	MT or Ton or Tonne means Metric Tonne which is equivalent to 1000 Kg.	
(m)	TPD means Tons Per Day	
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CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)		
1.1	(n) Quarter - A continuous period of 90 days reckoned from the day 1 shall be treated as one quarter and subsequent period of 90 days after completion of previous quarter shall be treated as following quarter. “Day” means calendar day of the Gregorian Calendar. “Month” means calendar month of the Gregorian Calendar. (o) “Plant” or “Project” or “Site” or “Station” means the Power Plant where the supplies of biomass pellets are to be made. (p) “Owner” or “Purchaser” or “Buyer” or “Employer” or “NTPC” means NTPC Ltd, New Delhi (A Govt. of India Enterprise) and includes the legal successors or permitted assigns of the Purchaser or Buyer or Owner or Employer. (q) “Goods and Services Tax” or “GST” means taxes or cess levied under the Central Goods and Services Tax Act, Integrated Goods and Services Tax Act, Goods and Services Tax (Compensation to States) Act and various State/Union Territory Goods and Services Tax Laws and applicable cesses, if any under the laws in force (hereinafter referred to as relevant GST Laws) which shall be fully complied with by the bidder. (r) Throughout these Bidding Documents, the term “Bid” and “Tender” and their derivatives (Bidder/ Tenderer, Bidding / Tendering, Bidding Document/Tender Document, etc.); Bill of Quantity / Schedule of Quantity/ Schedule of Quantities/ Bill of Quantities; Employer / NTPC; Bid Security/ Earnest Money Deposit; Security Deposit / Performance Security/ Performance Guarantee; Engineer-in-Charge / Engineer, appearing anywhere in the Bidding Documents shall have the same meaning and are synonymous to each other (s) Throughout these Bidding Documents, the term Plant /Project/Station/Site appearing anywhere in the Bidding Documents shall have the same meaning and are synonymous to each other (t) Throughout these Bidding Documents, the term Supplier /Contractor/Vendor appearing anywhere in the Bidding Documents shall have the same meaning and are synonymous to each other (u) Throughout these Bidding Documents, the term Purchase Order / Service order/ Contract Agreement / Letter of award/ Notification of Award appearing anywhere in the Bidding Documents shall have the same meaning and are synonymous to each other		
	“Sub-contractor from a country which shares a land border with India” means; a) An entity incorporated, established or registered in such a country; or		
Procurement of Biomass Pellets on FOR Power Station basis for Western Region (LOT-2)		SECTION III (GPC)	PAGE 2 of 37

CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)	
1.1.1	b)	A subsidiary of an entity incorporated, established or registered in such a country; or
	c)	An entity substantially controlled through entities incorporated, established or registered in such a country; or
	d)	An entity whose beneficial owner is situated in such a country; or
	e)	An Indian (or other) agent of such an entity; or
	f)	A natural person who is a citizen of such a country; or
	g)	A consortium or joint venture where any member of the consortium or joint venture falls under any of the above.
	The beneficial owner for the purpose of clause “1.1 (d)” above will be as under;	
	a)	In case of company or Limited Liability Partnership, the beneficial owner is the natural person(s), who, whether acting alone or together, or through one or more juridical person, has a controlling ownership interest or who exercises control through other means. Explanation- i. “Controlling ownership interest” means ownership of or entitlement to more than twenty-five per cent of shares or capital or profits of the company; ii. “Control” shall include the right to appoint majority of the directors or to control the management or policy decisions including by virtue of their shareholdings or management rights or shareholders agreements or voting agreements;
	b)	In case of a partnership firms, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more judicial person, has ownership of entitlement to more than fifteen percent of capital or profits of the partnership;
	c)	In case of an unincorporated associations or body of individuals, the beneficial owner is the natural person(s) who, whether acting alone or together, or through one or more juridical person, has ownership of or entitlement to more than fifteen percent of the property or capital or profits of such association or body of individuals;
d)	Where no natural person is identified under (a) or (b) or (c) above, the beneficial owner is the relevant natural person who holds the position of senior managing officials;	
e)	In case of a trust, the identifications of beneficial owner(s) shall include identification of the author of trust, the trustee, the beneficiaries with fifteen percent or more interest in the trust and any other natural person exercising ultimate effective control over the trust through a chain of control or ownership.	
f)	An Agent is a person employed to do any act for another, or to represent another in dealings with third person.	
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CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)	
2.0	CONTRACT DOCUMENTS The Employer shall send to the successful Bidder the Purchase Order/Service Order. The Purchase Order/Service Order will constitute the formation of the contract. The contract shall come into effect from the date of issue of Purchase Order/Service Order. The successful bidder shall have sign and return the Purchase Order/Service Order as a token of acceptance. Successful bidder on whom Purchase Order/Service Order is placed shall hereinafter be called Supplier .	
3.0	INTERPRETATION Language 3.1.1 All Contract Documents, all correspondence and communications to be given, and all other documentation to be prepared and supplied under the Contract shall be written in English, and the Contract shall be construed and interpreted in accordance with that language. 3.1.2 If any of the Contract Documents, correspondence or communications are prepared in any language other than the governing language under GPC Sub-Clause 3.1.1 above, the English translation of such documents, correspondence or communications shall prevail in matters of interpretation. 3.2 Singular and Plural The singular shall include the plural and the plural the singular, except where the context otherwise requires. 3.3 Headings The headings and marginal notes in the General Conditions of Contract are included for ease of reference, and shall neither constitute a part of the Contract nor affect its interpretation. 3.4 Persons Any individual, company, corporation, partnership (whether limited or unlimited), proprietorship, trust or any other entity (whether incorporated or not), Hindu undivided family, union or association and in case of a trust shall include the trustee or the trustees for the time being. 3.5 Incoterms Unless inconsistent with any provision of the Contract, the meaning of any trade term and the rights and obligations of parties thereunder shall be as prescribed by Incoterms. Incoterms means international rules for interpreting trade terms published by the International Chamber of Commerce (latest edition), 38 Cours Albert 1er, 75008 Paris, France.	
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CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)
3.6 3.6.1 3.6.2 3.6.3 3.7 3.8 3.9 3.10	Construction of the Contract & Letter of Award The Contract to be entered into between the Employer and the Contractor shall be on FOR NTPC Power Plant(s) basis. NTPC shall place project wise Letter of Award for supplies. Prior to the expiration of the period of bid validity, the Employer will notify the successful Bidder in writing by email or letter, that its bid has been accepted. The Letter of award will constitute the formation of the contract and shall be effective from the date of award. Entire Agreement Subject to GPC Sub-Clause 27.4 hereof, the Contract constitutes the entire Agreement between the Employer and Contractor with respect to the subject matter of Contract and supersedes all communications, negotiations and agreements (whether written or oral) of parties with respect thereto made prior to the date of Contract. Amendment No amendment or other variation of the Contract (Purchase Order) shall be effective unless it is in writing, is dated, expressly refers to the Contract (Purchase Order) , and is signed by a duly authorized representative of each party hereto. Independent Contractor The Contractor shall be an independent contractor performing the Contract. The Contract does not create any agency, partnership, Consortium or other joint relationship between the parties hereto i.e. NTPC and the Contractor. Subject to the provisions of the Contract, the Contractor shall be solely responsible for the manner in which the Contract is performed. All employees, representatives engaged by the Contractor in connection with the performance of the Contract shall be under the complete control of the Contractor and shall not be deemed to be employees of the Owner, and nothing contained in the Contract shall be construed to create any contractual relationship between any such employees, representatives or Subcontractors and the owner. Consortium If the Contractor is a consortium of maximum three (03) firms they shall be jointly and severally bound to the Owner for the fulfillment of the provisions of the Contract and shall designate one of such firms to act as a leader with authority to bind the consortium. The composition or the constitution of the consortium shall not be altered without the prior consent of the Owner.
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CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)
3.11	Non-Waiver
3.11.1	Subject to GPC Sub-Clause 3.11.2 below, no relaxation, forbearance, delay or indulgence by either party in enforcing any of the terms and conditions of the Contract or the granting of time by either party to the other shall prejudice, affect or restrict the rights of that party under the Contract, nor shall any waiver by either party of any breach of Contract operate as waiver of any subsequent or continuing breach of Contract.
3.11.2	Any waiver of a party’s rights, powers or remedies under the Contract must be in writing, must be dated and signed by an authorized representative of the party granting such waiver, and must specify the right and the extent to which it is being waived.
3.12	Severability If any provision or condition of the Contract is prohibited or rendered invalid or unenforceable, such prohibition, invalidity or unenforceability shall not affect the validity or enforceability of any other provisions and conditions of the Contract.
3.13	Country of Origin “Origin” means the place where the materials and other supplies for the Facilities are grown, produced or manufactured, and from which the services are provided.
4.0	NOTICES
4.1	Unless otherwise stated in the Contract, all notices to be given under the Contract shall be in writing, and shall be sent by personal delivery, airmail post, special courier, cable, telegraph, telex, facsimile or Electronic Data Interchange (EDI) to the address of the relevant party set out in the contract.
4.1.1	All notices to be given under the Contract shall be addressed to Engineer-in-charge.
4.1.2	Either party may change its postal, cable, telex, facsimile or EDI address or addressee for receipt of such notices by ten (10) days’ notice to the other party in writing.
4.2	Notices shall be deemed to include any approvals, consents, instructions, orders and certificates to be given under the Contract.
5.0	GOVERNING LAWS The Contract/Agreement shall be governed and interpreted in accordance with laws in force in India. The court of Delhi shall have exclusive jurisdiction in all matters arising under the Contract.
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CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)	
6.3.	The Mediation proceedings shall be completed in a time bound manner, in not more than 45 days from the date of reference to IEMs for Mediation. The IEMs may conduct the Mediation proceedings in the manner, they consider appropriate. In case of 3-member Panel of IEMs, 2 members will constitute a valid quorum and the meeting can take place to proceed in the matter after seeking consent from the member who is not available. However, IEMs recommendations will be signed by all the members. The fees for such meetings shall be as specified in the SCC. The travel and stay arrangement for such meetings shall be equal to that of Independent Board Member of Employer's Organization. However, not more than five meetings shall be held for a particular dispute resolution. The fees/ expenses on dispute resolution shall be equally shared by both the parties. If decision of IEMs is acceptable to both the parties, a Settlement Agreement will be signed to the extent agreed by the parties within 15 days of acceptance by the parties and same shall be authenticated by all the IEMs. Notwithstanding anything contained in any other law for the time being in force, the Mediator and the parties shall keep confidential all matters relating to the Mediation proceedings. Confidentiality shall extend also to the settlement agreement, except where its disclosure is necessary for purposes of implementation and enforcement. The parties shall not rely on or introduce as evidence in Conciliation or Arbitral or Judicial proceedings, whether or not such proceedings relate to the dispute that is the subject of the Mediation proceedings, — a) views expressed or suggestions made by the other party in respect of a possible settlement of the dispute; b) admissions made by the other party in the course of the Mediation proceedings; c) proposals made by the Mediator; and d) the fact that the other party had indicated his willingness to accept a proposal for settlement made by the Mediator. The fees payable to each IEM for mediation proceedings shall be Rs. 25,000/-per sitting and same shall stand revised as and when revised by Central Vigilance Commission	
	Resolution of Dispute through Conciliation If the parties fail to resolve such a dispute or difference by mutual Consultation and/or through Mediation (if applicable) within a period as specified at Cl. 6.1, 6.2 above, the dispute if the parties agree, may be referred to Conciliation.	
	(i) For cases where the disputed amount (Claim/ Counter claim, whichever is higher) is upto Rs. 25 Cr. (excluding interest), the matter for conciliation shall be referred to Expert Settlement Council (ESC), constituted by Employer.	
	(ii) For cases where the disputed amount (Claim/ Counter claim, whichever is higher) is above Rs. 25 Cr. (excluding interest), the matter for conciliation	
	Procurement of Biomass Pellets on FOR Power Station basis for Western Region (LOT-2)	SECTION III (GPC)

CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)				
	shall be referred to Conciliation Committee of Independent Experts (CCIE), constituted by Ministry of Power (MoP). If the claim/Counter-claim is in foreign currency, the SBI Bills Selling Exchange rate prevailing on the date of claim shall be used for the purpose of converting the claim in Indian Rupee. The Conciliation process shall be conducted as per Part III of the Arbitration and Conciliation Act, 1996. In case of failure of the conciliation process at the level of the CCIE, the parties may withdraw from conciliation process and take recourse to the laid down legal process of Courts. The option of Arbitration would not be available once the conciliation mechanism through CCIE has been exercised.				
6.3.1.	Resolution of Dispute through Expert Settlement Council (ESC), constituted by EMPLOYER {For cases with Disputed amount (Claim/ Counter claim, whichever is higher) upto Rs. 25 Crore excl. interest} If the parties fail to resolve such a dispute or difference by mutual consultation and/or through Mediation (if applicable) within a period specified at Cl. 6.1, 6.2, the dispute, if the parties agree, may be referred to Conciliation through Expert Settlement Council (ESC), in cases where the Disputed amount (Claim/ Counter claim, whichever is higher) is upto Rs.25crore (excl. interest).				
6.3.1.1.	Invitation for Conciliation through ESC:				
6.3.1.1.1.	A party shall notify the other party in writing about such a dispute it wishes to refer for Conciliation through ESC within a period of 15 days from the date of failure to resolve the dispute through Mutual Consultation and/or through Mediation (if applicable) within a period as specified at Cl. 6.1, 6.2 above. Such Invitation for Conciliation shall contain sufficient information as to the dispute to enable the other party to be fully informed as to the nature of the dispute, amount of the monetary claim, if any, and apparent cause of action.				
6.3.1.1.2.	Upon acceptance of the invitation to conciliate, the other party shall submit its counter claim, if any, within a period of 15 days from the date of the invitation to conciliate. If the other party rejects the invitation or Disputed amount (Claim/ Counter claim, whichever is higher) exceeds Rs 25crore (excl. Interest), there will be no Conciliation proceedings through ESC. There shall be no Conciliation where disputed amount (Claim/ Counter claim, whichever is higher excl. interest) is only up to Rs 5 lakhs.				
6.3.1.1.3.	If the party initiating Conciliation does not receive a reply within fifteen (15) days from the date on which it sends the invitation, or within such other period of time as specified in the invitation, it shall treat this as a rejection of the invitation to conciliate from the other party.				
6.3.1.2.	Conciliation through ESC:				
<table><tr><td>Procurement of Biomass Pellets on FOR Power Station basis for Western Region (LOT-2)</td><td>SECTION III (GPC)</td><td>PAGE 9 of 37</td></tr></table>			Procurement of Biomass Pellets on FOR Power Station basis for Western Region (LOT-2)	SECTION III (GPC)	PAGE 9 of 37
Procurement of Biomass Pellets on FOR Power Station basis for Western Region (LOT-2)	SECTION III (GPC)	PAGE 9 of 37			

CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)		
6.3.1.2.1.	Where Invitation for Conciliation has been furnished under GCC sub clause 6.3.1.1, the parties shall attempt to settle such dispute through Expert Settlement Council (ESC) which shall be constituted by CMD/Chairman of Employer.		
6.3.1.2.2.	ESC will be formed from experts comprising three members from the panel of Conciliators maintained by EMPLOYER. However, there will be single member ESC for disputes involving disputed amount (Claim/ Counter claim, whichever is higher excl. interest) is up to Rs. 1 crore.		
	CMD/ Chairman of Employer shall have the authority to reconstitute the ESC to fill any vacancy.		
6.3.1.2.3.	The ESC shall be amongst Civil Servants of Govt. of India retired from the level of Joint Secretary and above, Retired Judges, Officers retired from the level of Executive Director and above of any Maharatna /Navratna company in India, other than NTPC Ltd, Retired Independent Directors who have served on the Board of any Maharatna / Navratna company in India, other than NTPC Ltd.		
6.3.1.3.	Proceedings before ESC:		
6.3.1.3.1.	The claimant shall submit its Statement of Claims (SOC) along with relevant documents to ESC members, and to the party(s) indicated in the appointment letter within 15 days of appointment of ESC. The respondent shall file its reply/Statement of Defence (SOD) and counter claim (if any) within 15 days of the receipt of the Statement of claims. Each party shall send a copy of such Statement along with relevant documents to the other party.		
	Parties may file their rejoinder/additional documents, if any in support of their Claim/Counterclaim within next 7 days. No documents shall be allowed thereafter, except with the permission of ESC.		
6.3.1.3.2.	The parties shall file their claim and counterclaim in the following format		
	a. Chronology of the dispute		
	b. Brief of the contract		
	c. Brief history of the dispute		
	d. Issues		
	Sl. No.	Description of Claims/ Counter claims	Amount (in foreign currency/INR)
			Relevant Contract Clause
	e. Details of Claim(s)/Counter Claim(s)		
	f. Basis/Ground of claim(s)/counter claim(s) (along with relevant clause of contract		
	Note: Statement of claims shall be restricted to maximum limit of 20 pages.		
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CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)																					
6.3.1.3.3.	In case of 3 members ESC, 2 members will constitute a valid quorum and the meeting can take place to proceed in the matter after seeking consent from the member who is not available. However, ESC recommendations will be signed by all the members. If required, meetings can be conducted through video conferencing/other digital means subject to the agreement between the parties and the ESC.																					
6.3.1.3.4.	The parties shall be represented by their in house employees. No party shall be allowed to bring any advocate or outside consultant/advisor/agent to contest on their behalf. Ex-officers of Employer's Organization who have handled the subject matter in any capacity shall not be allowed to attend and present the case before ESC on behalf of contractor. However, ex-employees of parties may represent their respective organizations. Parties shall not claim any interest on claims/counter-claims from the date of notice invoking Conciliation till execution of settlement agreement, if so arrived. In case, parties are unable to reach a settlement, no interest shall be claimed by either party for the period from the date of notice invoking Conciliation till the date of ESC recommendations and 30 days thereafter in any further proceeding.																					
6.3.1.3.5.	ESC will conclude its proceedings in maximum 10 meetings, and give its recommendations within 90 days from the date of reference to ESC. ESC will give its recommendations to both the parties recommending possible terms of settlement.CMD/ Chairman of Employer may extend the time/number of meetings, in exceptional cases, if ESC requests for the same with sufficient reasons and as agreed by the parties.																					
6.3.1.3.6.	Depending upon the location of ESC members and the parties, the venue of the ESC meeting shall be either Delhi/Mumbai/Kolkata/Chennai or any other city whichever is most economical from the point of view of travel and stay etc. All the expenditure incurred in ESC proceedings shall be shared by the parties in equal proportion.																					
6.3.1.4.	Fees & Facilities to the Members of the ESC The cost of Conciliation proceedings including but not limited to fees for Conciliator, Airfare, Local transport, Accommodation, cost towards conference facility etc shall be as provided herein below: <table><tr><th>S. No.</th><th>Fees/ Facility</th><th>Entitlement</th></tr><tr><td>1</td><td>Fees</td><td>Rs. 25,000 per meeting subject to max. of Rs. 2,50,000 per case per Conciliator.</td></tr><tr><td>2</td><td>Secretarial expenses</td><td>Rs. 10,000 lump sum (to 1 member only).</td></tr><tr><td>3</td><td>Transportation in the city of the meeting</td><td>Car as per entitlement or Rs. 2,000 per day</td></tr><tr><td>4</td><td>Venue for meeting</td><td>Employer's conference rooms</td></tr><tr><td colspan="3">Facilities to be provided to the out-stationed member</td></tr><tr><td>5</td><td>Travel from the city of residence to the city of meeting</td><td>As per entitlement of Independent Directors. Executive class air tickets / first class AC train tickets/ Luxury car/</td></tr></table>	S. No.	Fees/ Facility	Entitlement	1	Fees	Rs. 25,000 per meeting subject to max. of Rs. 2,50,000 per case per Conciliator.	2	Secretarial expenses	Rs. 10,000 lump sum (to 1 member only).	3	Transportation in the city of the meeting	Car as per entitlement or Rs. 2,000 per day	4	Venue for meeting	Employer's conference rooms	Facilities to be provided to the out-stationed member			5	Travel from the city of residence to the city of meeting	As per entitlement of Independent Directors. Executive class air tickets / first class AC train tickets/ Luxury car/
S. No.	Fees/ Facility	Entitlement																				
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CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)		
			reimbursement of actual fare. However, entitlement of air travel by Business class shall be subject to austerity measures, if any, ordered by Govt of India.
	6	Transport to and fro airport/ railway station in the city of residence	Car as per entitlement or Rs. 3,000
	7	Stay for out stationed members	As per entitlement of Independent Directors.
	8	Transport in the city of meeting	Car as per entitlement or Rs. 2000 per day
	Aforesaid fees is subject to revision by Employer from time to time and subject to government guidelines on austerity measures, if any. All the expenditure incurred in the ESC proceedings shall be shared by the parties in equal proportions. The Parties shall maintain the account of expenditure and present to the other for the purpose of sharing on conclusion of the ESC proceedings.		
6.3.1.5.	If recommendations/ report of ESC is acceptable to both the parties, a Settlement Agreement under Section 73 of the Arbitration and Conciliation Act, 1996 will be signed to the extent agreed by the parties within 15 days of acceptance by the parties and same shall be authenticated by all the ESC members.		
	Parties are free to terminate Conciliation proceedings at any stage as provided under the Arbitration and Conciliation Act 1996.		
6.3.1.6.	Notwithstanding anything contained in any other law for the time being in force, the Conciliator and the parties shall keep confidential all matters relating to the Conciliation proceedings. Confidentiality shall extend also to the settlement agreement, except where its disclosure is necessary for purposes of implementation and enforcement.		
	The parties shall not rely on or introduce as evidence in Arbitral or judicial proceedings, whether or not such proceedings relate to the dispute that is the subject of the Conciliation proceedings,— a) views expressed or suggestions made by the other party in respect of a possible settlement of the dispute; b) admissions made by the other party in the course of the Conciliation proceedings; c) proposals made by the Conciliator; and d) the fact that the other party had indicated his willingness to accept a proposal for settlement made by the Conciliator.		
6.3.2.	Resolution of Dispute through Conciliation Committee of Independent Experts (CCIE), constituted by Ministry of Power (MoP) {For cases with Disputed amount (Claim/ Counter claim whichever is higher) above Rs. 25 Crore excl. interest}		
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	If the parties fail to resolve such a dispute or difference by mutual consultation and/or through Mediation (if applicable) within a period specified at Cl. 6.1, 6.2, above, the dispute, if the parties agree, may be referred to Conciliation Committee of Independent Experts (CCIE), in cases where the Disputed amount (Claim/ Counter claim whichever is higher) is above Rs. 25 crore excl. interest. The option of Arbitration would not be available once the conciliation mechanism through CCIE has been exercised. 6.3.2.1. Invitation for Conciliation through CCIE: 6.3.2.1.1. A party shall notify the other party in writing about such a dispute it wishes to refer for CCIE within a period of 15 days from the date of failure to resolve the dispute through Mutual Consultation and/or through Mediation (if applicable) within a period as specified at Cl. 6.1, 6.2 above. Such Invitation for Conciliation shall contain sufficient information as to the dispute to enable the other party to be fully informed as to the nature of the dispute, amount of the monetary claim, if any, and apparent cause of action. 6.3.2.1.2. If the party initiating Conciliation does not receive a reply within fifteen (15) days from the date on which it sends the invitation, or within such other period of time as specified in the invitation, it shall treat this as a rejection of the invitation to conciliate from the other party. 6.3.2.1.3. If the party initiating Conciliation does not receive a reply within fifteen (15) days from the date on which it sends the invitation, or within such other period of time as specified in the invitation, it shall treat this as a rejection of the invitation to conciliate from the other party. 6.3.2.2. Conciliation Committee of Independent Experts: 6.3.2.2.1. Where Invitation for Conciliation has been consented to under GCC sub clause 6.3.2.1, the same shall be referred to the Conciliation Committee of Independent Experts (CCIE) within 30 days. Conciliation Committees of Independent Experts (CCIE) have been constituted and notified by MoP for settlement of disputes arising in the Contract. There are three CCIEs, as specified in Special Conditions of Contract. 6.3.2.2.2. The Contractor may select three CCIEs, in priority order, from the list of CCIEs enclosed with the Special Conditions of Contract, for finalization by Central Electricity Authority (CEA). There shall not be any conflict of interest for the members of the CCIE due to their past assignments. Individuals CCIE members shall submit an undertaking in this regard to the Employer, prior to appointment. It shall be ensured that they have not been engaged for providing any services to any of the parties i.e. either Employer or the Contractor in the last five years. An Undertaking in this regard, shall also be furnished by the Contractor for the purpose of avoiding any conflict of interest. The Panel of Conciliation Committees of Independent Experts (CCIE) is enclosed as Annexure-I to GPC.
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6.3.2.3.	Proceedings before CCIE:				
6.3.2.3.1.	The procedure of CCIE shall not be treated as alternate arbitration proceedings where both parties come with Statement of claims/defence, arguments/counter arguments, rejoinders, written submissions etc., aided by their respective lawyers.				
6.3.2.3.2.	The parties shall be brief and to the point before the Committee with regard to their respective stance and view the exercise in the spirit of conciliation/settlement.				
6.3.2.3.3.	The possibility of non-availability of any one of the members of CCIE in any proceedings cannot be ruled out. As such, the Committee comprising the other two members shall be competent to proceed in the matter. The proceedings of the Committee shall not be vitiated if one of the three members of CCIE is not present in the deliberations of the Committee. When the parties sign the settlement agreement, at least two members of CCIE shall authenticate the same. Such conciliation proceedings shall be considered valid and the settlement agreement will be binding on the parties.				
6.3.2.3.4.	The parties shall be represented by their in house employees. No party shall be allowed to bring any advocate or outside consultant/advisor/agent to contest on their behalf. Ex-officers of Employer's Organization who have handled the subject matter in any capacity shall not be allowed to attend and present the case before CCIE on behalf of contractor. However, ex-employees of parties may represent their respective organizations.				
6.3.2.3.5.	The Conciliation proceedings shall be completed in each case through 5 sittings in a period of not more than three months from the date the reference made to the CCIE. In exceptional cases, if any dispute so merits, the time period may be extended at the discretion of Conciliation Committee (with reasons to be recorded in writing), for a further period of three months.				
6.3.2.3.6.	The CCIE shall hold day to day sitting at a suitable place (preferably the headquarter of the Employer or New Delhi) and may hold as many sittings every month as it deems appropriate keeping in view the volume of work.				
6.3.2.4.	Fees & Facilities to the Members of the CCIE Each member of CCIE would be paid a sum of Rs. 50,000/- as sitting fee per sitting. In addition, Rs. 5,000/- per sitting will be paid for local transport charges for each day of proceeding. In case, a particular dispute requires more than 5 sittings, the same may be held at the discretion of the CCIE but with a cap on payment of fee for 5 sittings only. The local transport charges shall, however, be paid as provided for each day of sitting beyond the 5 sittings. All expenditure incurred on the conciliation proceedings including payment of fees to the Conciliators, office space, logistic, secretarial assistance and other incidental expenses etc. shall be borne by the Employer initially.				
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	dispute through CCIE not exercised as mentioned at GCC Sub-Clauses 6.1, 6.2, 6.3, above, Employer or the Contractor may, within Thirty (30) days of such failure, give notice to the other party, of its intention to commence arbitration, as hereinafter provided, as to the matter in dispute, and no arbitration in respect of this matter may be commenced unless such notice is given. The mechanism of settling the disputes through arbitration shall be applicable only in cases where the disputed amount (i.e. Claim/ Counter claim, whichever is higher, excluding interest) does not exceed Rs. 25 crores. If the claim/ counter claim is in foreign currency, the SBI Bills Selling Exchange rate prevailing on the date of claim shall be used for the purpose of converting the claim in Indian Rupee In case the disputed amount (Claim/ Counter claim, whichever is higher, excl. interest) exceeds Rs. 25 Crores, the parties shall be within their rights to take recourse to remedies as may be available to them under the applicable law other than Arbitration after prior intimation to the other party. There shall be no arbitration where the disputed amount (Claim/ counter claim, whichever is higher) is only up to Rs. 5 lakhs. The parties at the time of invocation of arbitration shall submit all the details of the claims and the counter-claims including the Heads/Sub-heads of the Claims/Counter-Claims and the documents relied upon by the parties for their respective claims and counter-claims. The parties shall not file any documents/details of the claims and counter-claims thereafter. The claims and the counter claims raised by the parties at the time of invocation of the arbitration shall be final and binding on the parties and no further change shall be allowed in the same at any stage during arbitration under any circumstances whatsoever. The parties to the contract shall invoke arbitration within Six months from the date of completion of the Facilities under the contract or the termination of the contract as the case may be and the parties shall not invoke arbitration later on after expiry of the said period of six months. In case, no claim is filed within this period of six months, it shall be presumed that there is no claim. Any claim filed after the aforesaid period of six months shall not be entertained.	
6.4.2.	Any dispute in respect of which a notice of intention to commence arbitration has been given, in accordance with GCC Sub Clause 6.4.1, shall be finally settled by arbitration.	
6.4.3.	It is agreed between the parties that the Arbitration proceedings shall be conducted as per the provisions of Fast Track Procedure as provided under The Arbitration and Conciliation Act, 1996, as amended from time to time. Any dispute raised by a party to arbitration shall be adjudicated by a Sole Arbitrator appointed by mutual consent from among the List of empanelled Arbitrators maintained by EMPLOYER, in the following manner: (a) A party willing to commence arbitration proceeding shall invoke Arbitration Clause by giving notice to the other party.	
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	(b) EMPLOYER, shall within 30 days from the receipt of such notice shall send a panel of at least four arbitrators from among its empanelled arbitrators to the Contractor for short listing two among them for such appointment, within 15 days from the date of receipt of the Panel of Arbitrators from EMPLOYER. (c) CMD/ Chairman of Employer shall appoint the sole arbitrator from among the two names short listed by the Contractor, within 15 days from the receipt of such nomination. Notice to the Parties of the constitution of the arbitral tribunal shall be issued by EMPLOYER. In case, the contractor fails to inform its shortlisted names for appointment of sole arbitrator from the panel of at least four arbitrators sent by the Employer or no response is received from the contractor, within 15 days from the date of receipt of the Panel of Arbitrators from EMPLOYER, CMD/ Chairman of Employer shall appoint the sole arbitrator from among the four names sent to the contractor earlier. (d) If the Arbitrator so appointed dies, resigns, becomes incapacitated or withdraws for any reason from the proceedings or his mandate is terminated by the Court, it shall be lawful for CMD/ Chairman of Employer to appoint another person in his place in the same manner as aforesaid. Such person shall proceed with the reference from the stage where his predecessor had left. (e) Arbitrator shall be paid fees as per the Fee Schedule (presently Fourth Schedule) provided in 'The Arbitration and Conciliation Act, 1996' as amended from time to time. If the claim/ counter claim is in foreign currency, the SBI Bills Selling Exchange rate prevailing on the date of claim shall be used for the purpose of converting the claim in Indian Rupee which may be used for determining the arbitration fee. (f) If after commencement of the Arbitration proceedings, the parties agree to settle the dispute mutually or refer the dispute to mediation or Conciliation, the arbitrator shall put the proceedings in abeyance until such period as requested by the parties. Where the proceedings are put in abeyance or terminated on account of mutual settlement of dispute by the parties, the fees payable to the arbitrator shall be determined as under: (i) 40% of the fees if the Pleadings are complete. (ii) 60% of the fees if the Hearing has commenced. (iii) 80% of the fees if the Hearing is concluded but the Award is yet to be passed. (g) Each party shall pay its share of arbitrator's fees in stages as under or as per the directions of Arbitrator: (i) 40 % of the fees on Completion of Pleadings. (ii) 40% of the fees on Conclusion of the Final Hearing. (iii) 20% at the time when arbitrator notifies the date of final award. (h) The Claimant shall be responsible for making all necessary arrangements for the travel/ stay of the Arbitrator including venue of arbitration, hearings. The parties shall share the expenses for the same equally.	
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	(i) The Arbitration shall be held at Delhi only. (j) The Arbitrator shall give reasoned and speaking award and it shall be final and binding on the parties. (k) Subject to the aforesaid conditions, provisions of the Arbitration and Conciliation Act, 1996 and any statutory modifications or re-enactment thereof as amended from time to time, shall apply to the arbitration proceedings under this clause.				
6.4.4.	In the event of any dispute or difference relating to the interpretation and application of the provisions of commercial contract (s) between Central Public Sector Enterprises (CPSEs)/ Port Trusts inter se and also between CPSEs and Government Departments/ Organizations (excluding taxation matters), such disputes or difference shall be taken up by either party for resolution through Administrative Mechanism for Resolution of CPSEs Disputes (AMRCD) as mentioned in DPE Office Memorandum No. 4(1)/2013- DPE(GM)/FTS-1835 dated 22.05.2018 issued by Department of Public Enterprises, Ministry of Heavy Industries and Public Enterprises, Government of India and its further clarifications, modifications and amendments, issued from time to time. The aforesaid limit of Rs 25 crore shall not be applicable and matter may be referred to AMRCD irrespective of the amount involved in dispute, if the dispute could not be resolved through Mutual Consultation as brought out at GCC Sub Clause 6.1 above.				
6.5.	Notwithstanding any reference to the Mediation or Conciliation or Arbitration herein, (a) the parties shall continue to perform their respective obligations under the Contract unless they otherwise agree. (b) the Employer shall pay the Contractor any monies due to the Contractor. Settlement of Dispute clause cannot be invoked by the Contractor, if the Contract has been mutually closed or 'No Demand Certificate' has been furnished by the Contractor or any Settlement Agreement has been signed between the Employer and the Contractor.				
7.0	Order of Precedence The order of precedence of documents shall be as under: a) Letter of Award/ Purchase Order/ Letter of Intent/Contract Agreement along with its annexures. b) Amendment to Bidding Documents c) Technical Specifications & Scope of Work & Field Quality Assurance plan, if any d) General Purchase Conditions e) The Bid and BOQ submitted by the Supplier f) Instructions to bidders				
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	An amendment issued after issue of Contract shall take precedent over the formal Contract and all other contract documents	
8.0	SCOPE	
8.1	The Goods and related Services to be supplied shall be as specified in the technical specification and Price Schedule. The Supplier shall supply all the Goods and related Services included in the Scope of Supply, as per the Delivery and Completion Schedule specified in the bidding documents herewith	
8.2	The Supplier shall ensure that the Goods and related Services comply with the technical specifications and other provisions of the Contract.	
8.3	The Goods and related Services supplied under this Contract shall conform to the standards mentioned in Technical Specifications and, when no applicable standard is mentioned, the standard shall be equivalent or superior to the official standards whose application is appropriate.	
9.0	DELIVERY SCHEDULE	
	The delivery Period shall commence from date of the Letter of Award/Purchase Order.	
	The Delivery of the Goods and Completion of the related Services shall be in accordance with the Delivery and Completion Schedule as mentioned at Clause no. 6.0 of Technical specifications of the bidding documents.	
10.0	CONTRACTOR’S RESPONSIBILITIES	
10.1	The Contractor shall supply biomass Pellets at NTPC Power Plant(s) with due care and diligence in accordance with the Contract.	
10.2	The Contractor shall confirm that it has entered into this Contract on the basis of a proper examination of the data relating to the Supplies provided by the Owner, and on the basis of information that the Contractor could have obtained from a visual inspection of the Site (if access thereto was available) and of other data readily available to it relating to the Supplies as at the date seven days prior to bid submission. The Contractor acknowledges that any failure to acquaint itself with all such data and information shall not relieve its responsibility for properly estimating the difficulty or cost of successfully performing the Supplies.	
10.3	The Contractor shall acquire in its name all permits, approvals and/or licenses from all local, state or national government authorities or public service undertakings in the country where the Site is located that are necessary for the performance of the Contract. The Contractor shall acquire all other permits, approvals and/or licenses hereof and that are necessary for the performance of the Contract.	
10.4	The Contractor shall comply with all laws in force, including in the country where the Biomass Pellets Supplies are to be carried out. The laws will	
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	include all national, provincial, municipal or other laws that affect the performance of the Contract and bind upon the Contractor. The Contractor shall indemnify and hold harmless the Owner from and against any and all liabilities, damages, claims, fines, penalties and expenses of whatever nature arising or resulting from the violation of such laws by the Contractor or its personnel.				
10.5	Any Plant, Material and Services that will be incorporated in or be required for the Facilities and other supplies shall have their origin as specified under GPC Clause 3.13 (Country of Origin).				
10.6	Supplier shall comply with the provisions of e-way bill notified by appropriate authorities from time to time. The Supplier shall be responsible for issuance of e-way bill and other compliances relating to e-way bill as per GST Law.				
10.7	Passage of Title: The title of shipment shall pass on from Contractor to owner shall takes place at respective NTPC stations upon receipt of biomass Pellets.				
11.0	AUTHORISED REPRESENTATIVE Any action required or permitted to be taken, and any document required or permitted to be executed, under the Contract by the Employer or the Bidder may be taken or executed by the officials authorized for the purpose.				
12.0	PACKING The Supplier shall provide such packing of the Goods as is required to prevent their damage or deterioration during transit to their final destination, handling and storage. The Supplier will be responsible for any loss or damage during transportation, handling and storage due to improper packing. All packages should be marked with Purchase Order/Service Order no. and date. Each package must contain packing slip and literature, if any.				
13.0	MODE OF TRANSPORT As per Clause 16 of Technical Specifications.				
14.0	PATENTS All royalties and fees for patents covering material/equipment/ software or processes used in executing the work shall be to the account of the bidder. The supplier shall satisfy all demands that may be made at any time for such royalties and fees. The Supplier shall hold harmless and indemnify the Employer from and against damage, loss and expenses arising from any claim for infringement of patent, copy right, design and other such rights in existence or to be granted on and application published prior to the completion of this engagement with respect to or arising out of the use or supply of design or any work in accordance with the specifications and plans furnished or recommended by				
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15.0	the Contractor. The Supplier shall promptly notify the Employer in writing if the Supplier has or has acquired knowledge of any patent under which claim or suit for infringement could reasonably be brought because of the use by the Employer of any information, recommendation or specifications, services rendered by the Contractor. The Supplier, in such case, shall furnish at its own cost make and furnish to the Employer alternative specifications or recommendations to avoid the same and without putting the Employer to any additional cost. INDEMNIFICATION The Supplier shall, at its own expense, defend and indemnify the Employer against all third party claims of infringement of Intellectual Property Rights, including patent, trade mark, copy right, trade secret or industrial design rules arising from use of the products or any part thereof. The Supplier shall expeditiously extinguish any such claims and shall have full rights to defend itself there from. The Employer shall not pay any compensation to a third party resulting from such infringement and the Supplier shall be fully responsible for the same, including all expenses and court and legal fees. The Employer will give notice to the Supplier of any such claim without delay, shall provide reasonable assistance to the Contractor in disposing of the claim, and shall at no time admit any liability for or express any intent to settle the claim. Final payment to the Supplier by the Employer will not be made while any such suit or claim remains unsettled.
16.0	CONTRACT PRICE
16.1	The Contract Price shall be as specified in the LOA/ Purchase Order.
17.0	TAXES AND DUTIES
17.1	Except as otherwise specifically provided in the Contract, the Contractor shall bear and pay all taxes, duties, levies and charges assessed on the Contractor, its Sub-contractor or their employees by all municipal, state or national government authorities in connection with the Facilities in and outside of the country where the Site is located.
17.2	The Bidder shall quote the prices giving breakup in the manner specified in the Price Schedule. The Bidder shall quote the applicable rate of GST in the Excel Sheet format as uploaded in the GeM Portal.
17.3	For the purpose of Evaluation, GST shall be @5%.
17.4	The Bidder shall indicate the taxes and duties as applicable seven (7) days prior to last date of Techno-Commercial Bid Submission.
17.5	The Bidder is required to quote the rate of GST applicable under GST Law in the Excel Sheet format as uploaded in the GeM Portal.
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17.6	GST will be applicable @5%.
17.7	Notwithstanding anything to contrary contained in the Purchase Order/Contract, the Supplier's right to payment under the Order/Contract is subject to issuance of valid tax invoice/bill of supply as the case may be, payment of applicable GST to the credit of appropriate Government and submission of valid particulars of tax invoice under GST returns in accordance with GST Law.
17.8	The implications of GST on return of goods will be as per the provisions of the relevant GST Laws.
17.9	The Supplier shall issue tax invoices/bill of supply as applicable, file appropriate returns, and deposit the applicable GST to the account of appropriate government within the time limit prescribed under the GST Law. In the event of any default, Supplier shall be liable to pay the amount which may be imposed on NTPC due to such default.
17.10	Supplier should comply with the provisions of e-way bill notified by appropriate authorities from time to time. The existing provisions regarding road permit will continue till such time if applicable.
17.11	The Employer shall make necessary tax deductions under Income Tax Act or any other laws, if applicable.
17.11	a If any rates of tax are increased or decreased, a new tax is introduced, an existing tax is abolished, or any change in interpretation or application of any tax occurs in the course of the performance of Oder/Contract, which was or will be assessed on the Supplier in connection with performance of the Order/Contract, an equitable adjustment shall be made to take into account any such change to fully take into account such change pertaining to GST on FOR Price and GST Compensation Cess by addition to the Contract Price or deduction therefrom, as the case may be, in accordance with GPC Clause 24 (Change in Laws and Regulations) hereof. However, these adjustments shall not be applicable on procurement of raw materials, intermediary components and intermediary services etc. by the Contractor.
17.12	The Contractor will be required to submit PAN details to the Project Manager before the submission of the first bill
17.13	The payment/reimbursement of statutory variations in the rates of tax and/or of new tax, duty or levy imposed under statute or law in India as above would be restricted only to direct transactions between the Owner and the Bidder.
17.14	The Contractor shall be responsible for the issuance of e-way bill and other compliances relating to e-way bill as per GST law.
17.15	The Employer will deduct GST at source at the applicable rates in case transactions under the contract are liable to GST deduction at source as per the prevailing provisions of GST Law.
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CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)	
17.16	ENTRY TAX: Subsumed in GST.	
17.17	Under GST regime, party is eligible for input tax credit (ITC) on supply of goods which is to be taken into account while submitting their bid price. Contractor is solely responsible to get such ITC from the concerned authorities. NTPC shall have no role in availing such benefits.	
18.0	COMMENCEMENT/ COMPLETION AND MODIFICATION OF CONTRACT	
18.1	Effectiveness of Contract: The Contract shall come into force with effect from the date of award.	
18.2	Contract Period: Notwithstanding anything to contrary contained in the Contract, A Bidder shall offer to supply of biomass pellets as stipulated in Clause no. 5.0 of Technical Specifications of the Bidding Documents.	
18.3	Modification: Modification of the terms and conditions of the Contract, including any modification of the Scope of work or of the Contract Price may only be made by written Agreement between the parties.	
19.0	PAYMENTS TO THE CONTRACTOR	
19.1	Payment will be made to the account of the Contractor according to the payment terms stated here-in-after, based on the certification of Engineer-in-Charge at respective NTPC Power Plant. Respective NTPC Plant shall process the payments after the conditions listed for such payment have been met, and the Contractor has submitted an invoice to respective NTPC Plant specifying the amount due. In case of payments to Consortium, NTPC may release payment to the Leader and/or to any of the Consortium Partner (s) duly authenticated by the Leader. However, the above is without any additional liability of whatsoever nature to NTPC, in case of award of contract to a Consortium. Further, Successful Bidder/Consortium shall be required to comply with the requirements as laid down by RBI/Government of India from time to time, including for receiving the payments.	
19.2	All supply payments, including transportation, Insurance, taxes and duties (wherever admissible) etc. shall be made direct to the Contractor by the Employer. In order to facilitate the owner to release payments electronically through Electronic Fund Transfer System, wherever technically feasible. These payments shall be made electronically only as per details of bank Account indicated in the contract, wherever technically feasible. In case of any changes to the bank account indicated in the Bidding documents, the Bidder shall immediately inform the NTPC. The Bidder shall hold NTPC harmless and NTPC shall not be liable for any direct, indirect or	
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	consequential loss or damage sustained by the Bidder on the account of any error in the information or change in bank details provided to the NTPC in the prescribed form without intimation to NTPC duly acknowledged.	
19.3	Payment shall be released on submission of invoice in quadruplicate along with supporting documents to the respective NTPC Power Plant, verifiable by the respective NTPC Plant. Payment shall be released within fifteen (15) working days of receipt of invoice complete in all respect with supporting documents pursuant to the Contract.	
19.4	The Employer has established a Vendor Payment portal where Vendor/Contractor shall submit their digital bill/invoice and may track its status. The Application for Payment along with all the supporting documents shall be submitted by the Vendor/Contractor in digital form i.e. digitally signed with Class-2/3 digital Signature and must be uploaded in the Employer's Vendor Payment Portal. No hard/physical copy of such documents will be accepted by the Employer unless otherwise asked for in the PO or instructed by Employer. FAQ (Frequently asked questions with answers) regarding Invoice submission in digital mode can be accessed through the following link: https://pradip.ntpc.co.in/VendorFinal/Login.jsp	
20.0	PAYMENT TERMS	
20.1	100% of payable amount shall be paid within 15 days of receipt of material at site subject to submission of CPG/SD as per GPC clause 28.0 and fulfillment of relevant clause of GPC 19.0	
20.2	Price Adjustment on account of GCV: The final payments to the vendor shall be done according to the Adjusted Price mechanism where Adjusted prices shall be calculated as detailed in Technical Specification. Wherever technically feasible, such payments shall be made electronically only as per details of Bank account indicated in the Contract. The payment shall be processed by Engr-in -Charge (EIC). The bills are to be submitted to EIC. All the relevant payments due as per the contract shall be released to the Contractor on production of documentary evidence such as LR copy/ e-way bill/ toll tax receipts etc. Payment shall be processed only after receipt of invoice complete in all respects with supporting documents.	
20.3	The Consortium shall necessarily identify one of the partners as lead partner. However, the partners of the Consortium are jointly and severally liable to the Owner to perform all the contractual obligations. The Lead Partner shall be authorised to receive instructions for and on behalf of any and all Partners of the consortium and the entire execution of the Contract,	
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20.4	shall be done exclusively with the Lead Partner. NTPC may release payment to the Lead Partner and/or to any of the consortium Partner (s) duly authorized by the Lead Partner. However, the above is without any additional liability of whatsoever nature to NTPC, in case of award of contract to a consortium. Any addition due to adjustment to the Contract Price shall be payable in the similar manner as provided in the clauses 20.1, 20.2 and 20.3 of GPC. Reduction to the Contract Price, if any, due to price adjustment provisions, shall be effected by recovering 100% of the reduction amount (including advance) from any of the Contractor's bills falling immediately due for payment. Wherever technically feasible, such payments shall be made electronically only as per details of Bank account indicated in the Contract. The payment shall be processed by Engr-in-Charge (EIC). The bills are to be submitted to EIC.
20.5	All the relevant payments due as per the contract shall be released to the Contractor on production of documentary evidence such as LR copy/ e-way bill/ toll tax receipts etc, to ensure that Biomass Pellets have been supplied from bidder's declared place (District) of manufacturing plant as mentioned in Attachment-6 for the respective project .
20.6	The Consortium shall necessarily identify one of the partners as lead partner. However, the partners of the Consortium are jointly and severally liable to the Owner to perform all the contractual obligations. The Lead Partner shall be authorised to receive instructions for and on behalf of any and all Partners of the consortium and the entire execution of the Contract, shall be done exclusively with the Lead Partner. NTPC may release payment to the Lead Partner and/or to any of the consortium Partner (s) duly authorized by the Lead Partner. However, the above is without any additional liability of whatsoever nature to NTPC, in case of award of contract to a consortium.
20.7	PAYMENT TERMS: Alternate Mode of Payment for Micro Small & Medium Enterprises (MSMEs) “Trade Receivables e-Discounting System (TReDS) is a regulatory framework put in place by the Reserve Bank of India under the Payment and Settlement Systems Act 2007 (PSS Act) to facilitate the financing of trade receivables (invoices) of MSMEs through invoice financing by multiple financiers. The Reserve Bank of India has granted approval to (i) Mynd Solutions Pvt Limited, (ii) A.TReDS Ltd. and (iii) Receivables Exchange of India Ltd to set up and operate TReDS platform. The name of respective
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	TReDS platform of the above-mentioned entities are M1xchange, Invoicemart and RXIL. Presently, NTPC Limited is transacting with M1xchange and RXIL TReDS platforms. MSME Vendors may choose from the aforesaid TReDS platforms as an alternate payment mechanism. For queries/ details, the vendor may directly contact M1xchange or RXIL at:- (i) M1XCHANGE:- URL: https:\\m1xchange.com Toll free No.: 1800-103-7261 (ii) RXIL:- URL: https:\\www.rxil.in/Home/Index Phone: 022-40771424, 40771426 Toll free No.: 1800 1038 311” The aforesaid provision may not be applicable for payments envisaged through “Letter of Credit (LC)” or “Escrow Account” or “A separate account with a Scheduled Bank at Site”.				
21.0	TAX DEDUCTION AT SOURCE				
	Tax deduction at source shall be governed as per prevailing rules.				
22.0	PRICE ADJUSTMENT FOR GCV VARIATION				
	AS PER CLAUSE 10 OF “TECHNICAL SPECIFICATIONS”				
23.0	QUANTITY ADJUSTMENT				
	AS PER CLAUSE 11 OF “TECHNICAL SPECIFICATIONS”				
24.0	CHANGE IN LAWS AND REGULATIONS				
	If, after the date seven (7) days prior to the date of Bid submission, in the country where the Site is located, any law, regulation, ordinance, order or by-law having the force of law is enacted, promulgated, abrogated or changed (which shall be deemed to include any change in interpretation or application by the competent authorities) that subsequently affects the costs and expenses of the Contractor and/or the supply period, the Contract Price shall be correspondingly increased or decreased, and/or the supply period shall be reasonably adjusted to the extent that the Contractor has thereby been affected in the performance of any of its obligations under the Contract. However, these adjustments would be restricted to direct transactions between the Owner and the Contractor. These adjustments shall not be applicable on procurement of raw materials, intermediary components, and intermediary services etc. by the Contractor.				
25.0	No breach of contract				
	The failure of a party to fulfill any of its obligations under the Contract shall not be considered to be a breach of or default under the Contract in so far as such inability arises from an event of Force Majeure, provided that the Party affected by such an event (a) has taken all reasonable precautions, due care and reasonable				
<table><tr><td>Procurement of Biomass Pellets on FOR Power Station basis for Western Region (LOT-2)</td><td>SECTION III (GPC)</td><td>PAGE 26 of 37</td></tr></table>			Procurement of Biomass Pellets on FOR Power Station basis for Western Region (LOT-2)	SECTION III (GPC)	PAGE 26 of 37
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26.0	alternative measures in order to carry out the terms and conditions of this Contract and (b) has informed the other Party as soon as possible about the occurrence of such an event.	
	FORCE MAJEURE Force Majeure is herein defined as any cause which is beyond the control of either party of the Agreement as the case may be, which they could not foresee or with a reasonable amount of diligence could not have foreseen or which when foreseen could not have prevented and which materially and adversely affected the performance by either party (the Affected Party) of its obligation under the Agreement such as but not limited to: a) Act of God, natural phenomena including but not limited to floods, droughts, earthquakes epidemics, lightening and cyclone; b) Acts of any Government (domestic or foreign) including but not limited to war, declared or undeclared, hostilities, priorities, quarantines, embargoes; c) Civil disturbances including riot, civil commotion, sabotage or terrorism; revolution, rebellion, insurrection; d) Strikes and lock outs. Burden of Proof: The burden of proof as to whether a Force Majeure event has occurred shall be upon the party claiming the Force Majeure event. If operation of such circumstances exceed three months, either party will have the right to refuse further performance of the agreement, in which case, neither party shall have the right to claim eventual damages. The party, which is unable to fulfill its obligations under this agreement, shall within 15 days of occurrence of any of the causes mentioned in this clause shall inform the other party in writing of the existence or termination of the circumstances preventing the performance of the contract. Certificate issued by Chamber of Commerce or any other competent authority connected with the case in the country of Contractors or the buyers shall be sufficient proof of the existence of the above circumstances and their duration. The Contractor who has given such notice shall be excused from the performance or punctual performance of its obligations under the Contract for so long as the relevant event of Force Majeure continues and to the extent that such party's performance is prevented, hindered or delayed. The Time for Completion shall be extended accordingly.	
	27.0	HANDLING OF DOCUMENTS / CONFIDENTIALTIY
27.1	The Owner and the Contractor shall keep confidential and shall not, without the written consent of the other party hereto, divulge to any third party any documents, data or other information furnished directly or indirectly by the	
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CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)
27.2 27.3 27.4 27.5 28.0	other party hereto in connection with the Contract, whether such information has been furnished prior to, during or following termination of the Contract. The Owner shall not use such documents, data and other information received from the Contractor for any purpose other than the Supplies of biomass Pellets. Similarly, the Contractor shall not use such documents, data and other information received from the Owner for any purpose other than Supplies of biomass pellets as are required for the performance of the Contract. The obligation of a party under GPC Sub-Clauses 27.1 and 27.2 above, however, shall not apply to that information which (a) now or hereafter enters the public domain through no fault of that party (b) can be proven to have been possessed by that party at the time of disclosure and which was not previously obtained, directly or indirectly, from the other party hereto (c) otherwise lawfully becomes available to that party from a third party that has no obligation of confidentiality. The above provisions of this GPC Clause 27 shall not in any way modify any undertaking of confidentiality given by either of the parties hereto prior to the date of the Contract in respect of the Facilities or any part thereof. The provisions of this GPC Clause 27 shall survive termination, for whatever reason, of the Contract. The Contractor shall take necessary steps to ensure that all persons employed on any work in connection with this engagement are fully aware that the Indian Official Secrets Act 1923 (XIX of 1923) applies to them and shall continue to apply even after the execution of such work(s) under the Contract. CONTRACT PERFORMANCE GAURANTEEE Security Deposit: CPG/SD is to be kept @ 5 % of total contract value The CPG/SD shall be either deposited 100% within 30 days of placement of LOA/LoI or Alternatively, 25% of CPG shall be submitted as initial Security deposit within 30 days of LOA/LoI and the remaining amount shall be collected by deduction of 10% in each bill till the total security deposit is collected. 100% of total Security deposit shall be submitted within 30 days of placement of LOA. Alternatively, 25% of total Security deposit shall be submitted as initial Security deposit within 30 days of LOA and the remaining amount of security
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	deposit shall be collected by deduction of 10% in each bill till the total security deposit is collected. The Successful bidder(s) shall furnish the Performance Bank Guarantee to NTPC as per format enclosed at Annexure-F6 of Bidding Documents inclusive of estimated Taxes & Duties as applicable, CPG may be submitted in any of the following forms: - A crossed Demand Draft / Bankers cheque drawn in favour of NTPC Ltd. Payable at (station inviting tender as per bidding document) - An irrevocable Bank Guarantee as per the NTPC standard format from any Nationalized bank / Scheduled Bank as acceptable to NTPC from any of the Banks listed at Annexure-F8 to Volume V of the bidding documents. The Performance Bank Guarantee shall be valid till three months beyond the expiry of Contract and shall remain in full force and effect during the period that would be taken for satisfactory performance and fulfilment in all respect of the contract. Extension of BG should also be on Stamp paper of same value as that of the original BG and minimum extension of any BG should be three months. The Bank guarantee submitted from within India towards, Contract Performance Security, shall be issued on Non-Judicial Stamp Paper of appropriate value as per Stamp Act prevailing in the State(s) where the BG is submitted or is to be acted upon or the rate prevailing in the State where the BG is executed whichever is higher. Employer's name and address in respect of EOC, Noida and for the purpose of BG may be taken as mentioned in IFB under address for Communication in IFB. In certain States, the Rules permit levy of stamp duty by the process of franking under signature of empowered officer. Such BG may also be accepted as duly stamped. The date, purpose of purchase and name of the purchaser should be indicated on the stamp paper. The stamp papers (other than e-stamp paper) should be duly signed by the stamp vendor. The date of sale of the non-judicial stamp paper, as indicated on the stamp paper should be of any date on or before the date of execution of the BG. The name of the Purchaser of stamp paper may either be the executing Bank or the party on whose behalf the BG is being issued. The name and designation of the Officer of the Bank executing the BG and his power of Attorney/ Signing Power No. should be duly indicated in the B.G.
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	Each page of the BG should be duly signed/ initialed by the executants and Stamp of the Bank is affixed thereon. The last page of BG should be signed with full particulars including the name of authorized signatory, full postal addresses, telephone number, fax number etc. under the seal of the Bank as required as per the prescribed proforma in the Bid documents. Confirmation of BGs through Structured Financial Messaging System (SFMS) While issuing the physical BG, the Bidder's Bank shall also send electronic message to Employer's Beneficiary Bank whose details are provided herein below (a) Bank Name: ICICI Bank Limited (b) Branch: CONNAUGHT PLACE BRANCH (c) Bank Address: 9A, PHELPS BUILDING, INNER CIRCLE, NEW DELHI-110001 (d) IFSC Code: ICIC0000007 BG issuing/amending bank must send the BG advice in the form of message format via SFMS (Structured Financial Messaging System) as provided by RBI. The format of the message for confirmation of the BG shall be as below: BG advising message: IFN 760COV/ IFN 767COV via SFMS Field Number: Particulars (to be mentioned in Row 1) 7037: NTPCBG (unique identifier) Extension of BG should also be on Stamp paper of same value as that of the original BG and minimum extension of any BG should be three months. In case of Consortium, in the event of award to the Successful bidder, Performance Bank Guarantee, shall be in the name of all the Partners of the Consortium. Failure of the supplier to submit the above-mentioned Contract Performance Guarantee shall constitute sufficient grounds for the annulment of the award and forfeiture of the Bid Security. 28.1 Reimbursement of Bank Guarantee for the extended period: If the Contractor's performance of its obligations is suspended or the rate of progress is reduced pursuant to this GPC Clause 28, then the Time for Completion shall be extended in accordance with ITB clause 15, and any and all additional costs or expenses incurred by the Contractor as a result of such suspension or reduction shall be paid by the Employer to the Contractor in addition to the Contract Price, except in the case of suspension order or reduction in the rate of progress by reason of the Contractor's default or breach of the Contract. The Bank Guarantee Charges for the extended period shall be reimbursed at actuals based on the written request of Contractor.
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CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)
29.0 30.0 31.0 32.0	The reimbursement of BG charges shall be made on the basis of documentary evidence submitted by the Contractor (such as debit advice of Bank) along with a Certificate from the issuing Bank, as per the format enclosed in Section-V (FORMS & FORMATS). The aforesaid reimbursement of Bank Guarantee Charges shall be inclusive of GST. SUSPENSION OF OBLIGATIONS The obligation stipulated in the bidding documents can only be suspended in the case of any particular item of work, in the event of Force Majeure as defined in Clause 26.0 or as the result of an Agreement between the parties. In the event of Force Majeure, neither of the parties may be considered in default of its obligations under the terms of the Contract/Agreement. NO WAIVER OF RIGHTS Neither the inspection by NTPC or any of their agents nor any order by NTPC for payment of money or any payment for or acceptance of, the whole or any part of the Works by NTPC, nor any extension of time, nor any possession taken by NTPC shall operate as a waiver of any provision of the Contract, or of any power reserved to NTPC, or any right to damages herein provided, nor shall any waiver of any breach in the Contract be held to be a waiver of any other or subsequent breach. CERTIFICATE NOT TO AFFECT RIGHT OF NTPC AND LIABILITY OF CONTRACTOR Neither the payment made by NTPC nor any extension of time for execution of the Works granted by NTPC shall affect or prejudice the rights of NTPC against the Successful Bidder or relieve the Contractor of his obligations for the due performance of the Contract, or be interpreted as approval of the Works done or discharge the liability of the Contractor for the payment of damages whether due, ascertained, or certified or not, or any sum against the payment of which they are bound to indemnify NTPC, nor the acceptance by them of any sum paid affect or prejudice the rights of the Contractor against NTPC. GRAFTS, COMMISSIONS, GIFTS ETC Any graft, commission, gift or advantage given, promised or offered by or on behalf of the Contractor or their partner, agent, officers, director, employee or servant or any one on their behalf in relation to the obtaining or to the execution of this or any other Contract with NTPC, shall, in addition to any criminal liability which it may incur, subject the Contractor to the cancellation of this and all other contracts and also to payment of any loss or damage to NTPC resulting from any cancellation. NTPC shall then be entitled to deduct the amount so payable from any monies otherwise due to the Contractor under the Contract.
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CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)
35.0	TERMINATION In addition to provisions specified elsewhere in the bidding document, The Employer may terminate the Order/Contract, by not less than thirty (30) days' written notice of termination to the Supplier , to be given after the occurrence of any of the events specified in paragraphs(a) to (d) of this Clause and sixty(60) days' in the case of the event referred to in (e) below : (a) if the Supplier does not remedy a failure in the performance of their obligations under the Contract, within thirty (30) days after being notified or within any further period as the Employer may have subsequently approved in writing; (b) if the Supplier becomes insolvent or bankrupt; (c) if as a result of Force Majeure, the Supplier is unable to perform a material portion of the Services for a period of not less than sixty(60) days; or (d) if the Supplier, in the judgment of the Employer has engaged in corrupt or fraudulent practices in competing or in executing the Contract. For the purpose of this clause: "Corrupt Practice" means the offering, giving, receiving or soliciting of anything of value to influence the action of a public official in the selection process or in contract execution. "Fraudulent Practice" means a misrepresentation of facts in order to influence a selection process or the execution of a contract to the detriment of the Employer. (e) if the Employer, at its sole discretion, decides to terminate this Contract. (f) If the Contractor, sub-contracts any part of the works in violation of the provision of ITB Clause 50.0. In event of termination of Order/Contract, the Employer shall pay to the Supplier/Contractor the Contract Price, properly attributable to the works/ supplies executed by the Supplier/ Contractor as on the date of termination. However, any sums due to the Employer from the Contractor accruing prior to the date of termination shall be deducted from the amount to be paid to the Supplier under this Order/Contract. Delivery schedule already finalized and intimated to the Contractor shall not be terminated. The owner shall not be liable to the Contractor for any loss, costs, damages or expenses on account of termination of the Contract
36.0	DEFENSE OF SUITS If any action in court is brought against for the failure or neglect on the part of the Contractor to perform any acts, matter, covenants or things under the Contract, or any damage or injury caused by the alleged omission or negligence on the part of the Contractor, their employees, the Contractor shall in all such cases indemnify and keep NTPC or their representatives, harmless from all losses, damages, expenses or decrees arising of such action.
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CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)
37.0	JURISDICTION The courts in Delhi shall have the exclusive jurisdiction in matters arising under the Contract.
38.0	ASSIGNMENT The Contractor shall not, without the express prior written consent of the Employer, assign to any third party the Contract or any part thereof, or any right, benefit, obligation or interest therein or thereunder, except that the Contractor shall be entitled to assign either absolutely or by way of charge any monies due and payable to it or that may become due and payable to it under the Contract.
39.0	DEFAULT / RISK PURCHASE: The Owner may, without prejudice to any other remedy for breach of contract, by written notice of default sent to the Seller, terminate the contract in whole or part (at the option of the Owner) if:
39.1	The Seller fails to deliver any or all of the goods within the time period(s) specified in the Contract or any extension thereof granted by the Owner; or (b) the Seller fails to perform any other obligation(s) under the Contract.
39.2	In the event the Owner terminates the contract in whole or in part, pursuant to above, the Owner may procure, upon such terms and in such manner as it deems appropriate, biomass pellets supplies of similar specifications and the bidder shall be liable to the Owner for any excess costs for such similar biomass pellets. However, the bidder shall continue performance of the Contract to the extent not terminated.
39.3	In the event of Suppliers failure to supply the material of acceptable quality in scheduled delivery period, NTPC reserves the right to procure the materials from any other source at the Suppliers risk and cost and the difference in cost shall be borne by the Supplier. Further, NTPC shall retain the right of forfeiture of CPG and or any other action as deemed fit.
39.3	The aforementioned right of termination shall be without prejudice to any other rights and remedies that the Owner has under the Contract or in law including but not limited to claiming liquidated damages on account of delay in delivery of biomass pellets to the Destination site. Further any termination of the Contract shall be without prejudice to any rights and remedies that have accrued prior to the termination of the Contract.
40.0	COMPLIANCE WITH GOVERNMENT ORDERS The biomass pellets supply under the Contract, is meant for the purpose of generation of power at NTPC power Plants. The Contractor shall ensure compliance of all regulations/conventions/ policies/ guidelines/ orders etc. of Govt. of India/State in force related to any or all of the activities covered in insurance, clearing, handling & forwarding, and insurance. In case of any modifications in any of the provisions in respect of supply of biomass pellets, during the currency of the contract, the same shall become applicable and binding on Contractor and NTPC with immediate effect.
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CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)
41.0 42.0 43.0	Price variation shall not apply on FOR Price (including transportation). However, if the benchmark price is revised during the tenure of the contract, such revised price shall be applicable as per the notification of such revision without any change in transportation cost. INSPECTION AND TESTS All materials shall be inspected as per provisions of Technical Specification. The Supplier shall execute the Purchase Order/Services in compliance with the provisions of the Contract. REMOVAL OF REJECTED GOODS AND REPLACEMENT a) If upon delivery, whether inspected and approved earlier or otherwise, the biomass pellets supplies is not in conformity with the specifications, the same shall be rejected by the Employer or his duly authorised representative and notification to this effect will be issued to the Supplier within 30 days from the date of receipt of the material at site. b) The supplier shall arrange for removal of the rejected item(s) within 15 days from the date of notification. In the event, the supplier fails to lift the materials within the said 15 days, the Employer shall be at liberty to dispose of such rejected item(s) in any manner as he may think fit and recover all the expenses from the Supplier. LIQUIDATED DAMAGES (LD) In case of the award, the contractor shall have to start delivery of material within 30 days from date of LOA. However, to facilitate initial capacity ramp up, no Liquidated Damage (LD) shall be levied for initial 60 days from LoA date (herein after referred as 'NO LD period'). For the future manufacturers, NO LD period shall be 210 days from Lol date. However, the contracted quantity shall remain same. After NO LD period, for supply shortfall more than 30% from the total of monthly delivery schedule during the Supply period, Liquidated Damage (LD) at the rate of 5% of quoted FOR price (excluding taxes) per tonne shall be levied for supply shortfall beyond 30% and shall be adjusted against running bills. For supply shortfall up to 30% from the total of monthly delivery schedule in Supply period, no liquidated damage shall be levied. The total amount of liquidated damages for shortfall in supply of materials under the contract shall not exceed five percent (5%) of the total Contract Price. Although the contractor shall supply the material as per quantity offered on daily basis, contractor shall have the flexibility to supply the material in greater quantity than offered to supply on daily basis on mutual consent basis to meet the supply requirement. In such case, Contractor shall give one week advance intimation to NTPC site and NTPC site shall give the
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CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)
44.0 45.0 46.0 i) ii) iii) iv) 47.0	consent to supply material in greater quantity after assessing traffic congestion or other aspects as required. DIVERSION OF SUPPLIES -Deleted INTEGRITY PACT If the Employer has terminated the contract pursuant to Section-3 of the Integrity Pact (IP), the Employer shall encash the Contract Performance Bank Guarantee, in accordance with Section-4 of Integrity Pact'. INDEPENDENT EXTERNAL MONITORS (IEMS): The nodal officer for necessary coordination with Independent External Monitors (IEMs) shall be as under: <i>Concerned Group : if the issue pertains to Head in CC&M awarding of Contract by CC&M</i> <i>Concerned Group : if the issue pertains to Head of C&M under awarding of Contract by respective CPG of USSC</i> <i>Concerned Head of : if the issue pertains to other Department departments</i> <i>Head of Project/ : if the issue pertains to post-award execution or award of Contract by Project/ Station</i> CONTRACTOR PERFORMANCE FEEDBACK AND EVALUATION SYSTEM The Owner has in place an established 'Contractor Performance and Feedback System' against which the Contractor's performance during the execution of Contract shall be evaluated on a continuous basis at regular intervals. In case the performance of the Contractor is found unsatisfactory on any of the following four parameters, the Contractor shall be considered ineligible for participating in future tenders for two years: - Financial Status - Contract Execution Capability - Claims & Disputes
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CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)				
	On completion of above ineligibility period, the Contractor would be required to submit a request to NTPC for participating in future tenders specifying the measures taken to improve their performance. On receipt of such request, the performance of the Contractor shall be assessed/re-evaluated by NTPC and if the performance is found to be satisfactory, the Contractor shall be considered eligible for participation in future tenders’.				
48.0	WITHHOLDING/BANNING/SUSPENSION The Employer has in place a Policy for Debarment from Business Dealings may please go through NTPC Tender website https://ntpctender.ntpc.co.in/ Policy Docs “Policy for Debarment from Business Dealings (Rev-4 dated 05.05.2023)”. Business dealings may be withheld or banned with the Contractor on account of any Default by the Contractor under any of the grounds as detailed in the said Policy for Debarment from Business Dealings.”				
49.0	SUB-CONTRACTING The Contractor shall not be allowed to sub-contract works to any sub-contractor/ sub-vendor from a country which shares a land border with India unless such contractor is registered with the competent Authority. The Competent Authority for the purpose of registration shall be as mentioned in Annexure-II to ITB. However, the said requirement of registration will not apply to sub-contractors from those countries (even if sharing a land border with India) to which the Government of India has extended lines of credit or in which the Government of India is engaged in development projects. The Contractor may apprise itself of the updated lists of such countries available in the website of the Ministry of External Affairs.				
50.0	FRAUD PREVENTION POLICY The Supplier along with their associate / collaborator / subcontractors / sub-vendors / consultants / service providers shall strictly adhere to the Fraud Prevention policy of the Employer displayed on its tender website https://ntpctender.ntpc.co.in/. The Supplier along with their associate / collaborator / subcontractors / sub-vendors / consultants / service providers shall observe the highest standard of ethics and shall not indulge or allow anybody else working in their organization to indulge in fraudulent activities during execution of the Contract (Purchase Order/Service Order). The Supplier shall immediately apprise the Employer about any fraud or suspected fraud as soon as it comes to their notice. 51. Anti-Bribery and Anti-Corruption (ABAC) Policy: The Contractor and its employees along with its Associate/ Collaborator/ Sub- Contractors / Sub-Vendors / Consultants / Service Providers and all other persons associated with Employer in the performance of Contract				
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CLAUSE NO.	GENERAL PURCHASE CONDITIONS (GPC)
	shall strictly adhere to Employer's Anti-Bribery and Anti-Corruption (ABAC) Policy displayed on website https://ntpctender.ntpc.co.in/ under section 'policy docs'. The Contractor and its employees along with its Associate/ Collaborator/ Sub- Contractors / Sub-Vendors / Consultants / Service Providers and all other persons associated with Employer in the performance of Contract shall comply with all applicable laws and regulations relating to anti-corruption and anti-bribery and the ABAC Policy of Employer. Enclosers to GPC: Annexure-I <u>Conciliation Committee panel</u>
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Annexure-I to GPC

F. No. 11/22/2021-Th.II
 Government of India
 (Bharat Sarkar)
 Ministry of Power
 (Vidyut Mantralay)

Shram Shakti Bhawan, Rafi Marg
 New Delhi, the 22nd March, 2022

OFFICE MEMORANDUM

Subject: Constitution of Conciliation Committee of Independent Experts for resolution of contractual disputes in respect of the projects implemented by CPSUs / Statutory Bodies under administrative control of Ministry of Power – regarding.

With the approval of Hon'ble Minister of Power and New & Renewable Energy, Ministry of Power, vide OM of even number dated 29.12.2021 (**Annex-I**), introduced a conciliation mechanism for settlement of contractual disputes in contracts of CPSUs / Statutory Bodies under Ministry of Power executing power projects. For this purpose, it was decided to constitute three numbers of Conciliation Committees of Independent Experts (CCIEs).

2. Accordingly, a Notification of even number was issued on 07.01.2022 inviting Expression of Interest from the eligible candidates for empanelment as Independent Expert for constitution of the CCIEs. Consequently, with the approval of Hon'ble Minister of Power, a Search-cum-Selection Committee was also constituted for scrutiny of the EoIs as well as screening of the candidates.

3. Based on the recommendations of the Search-cum-Selection Committee, following three nos. of Conciliation Committee of Independent Experts are hereby constituted for settlement of contractual disputes in contracts of CPSUs / Statutory Bodies under Ministry of Power executing power projects:-

CCIE	Members of CCIE
CCIE-1	Shri Anup Wadhawan, Ex-Secretary (Commerce), GoI
	Shri Ravinder Kumar Sharma, Ex-MD, HBSEBL
	Shri Mrinal Kanti Bhattacharya, Ex-Executive Director, Indian Bank
CCIE-2	Ms. Rashmi Verma, Ex-Secretary (Tourism), GoI
	Shri Dharendra Veer Singh, Ex-CMD, THDC (India) Ltd.
	Shri Naveen Bhushan Gupta, Ex-Director (Finance), PFC Ltd.
CCIE-3	Shri P. S. Kharola, Ex-Secretary (Civil Aviation), GoI
	Shri Anil Kumar Jha, Ex-Director (Technical), NTPC Ltd.
	Shri Chinmaya Gangopadhyaya, Ex-Director (Projects), PFC Ltd.

4. The aforementioned CCIEs shall function as per the Standard Operating Procedure enumerated in this Ministry's Office Memorandum of even number dated 29.12.2021. Moreover, the tenure, remuneration and other terms and conditions of the engagement of above Members of CCIEs shall also be governed by the aforesaid OM.

This issues with the approval of Hon'ble Minister of Power and New & Renewable Energy.

Encl: as above.

*Second member in the CCIE(s) shall stand substituted by coal-mining expert Member (presently, Shri Tapas Kumar Nag, Ex-CMD, NCL), as notified by Ministry of Power from time to time, in case of disputes relating to captive coal mines


 (Vikrant S. Dhillon)
 Deputy Director
 Email: hydro2-mop@gov.in

Section – IV

TECHNICAL SPECIFICATIONS

**Technical specifications for Procurement of Non Torrefied Biomass pellets for
NTPC stations at Benchmark price.**

S.No		Description
1.	About NTPC	NTPC Ltd. (A Govt. of India Enterprises), a Maharatna Company, is India's largest power generation company with its roots planted way back in 1975 to accelerate power development in India. Since then it has established itself as the dominant power major with presence in the entire value chain of the power generation business. From fossil fuels, it has forayed into generating electricity from hydro and renewable energy sources.). NTPC has an ambitious plan to become 130 GW plus company by 2032.
2.	Introduction	From largely coal based generation, NTPC will have a diversified fuel mix by 2032, with non-fossil fuel based generation capacity making up more than 30% of NTPC's portfolio. In this direction, NTPC has led the way in co-firing agro-residue based Biomass pellets (Biomass Pellets would mean both Non-torrefied pellets and torrefied pellets taken together, unless specified otherwise) with coal for power generation. Biomass pellets firing in boilers result in net zero CO₂ emissions as the emitted CO₂ gets absorbed in next crop cycle by photosynthesis. Thus, it is a carbon neutral fuel and a renewable source of energy. Even after considering energy use in agro-residue collection, processing and transportation, there is significant net CO₂ reduction as compared to coal firing, making it a greener alternative. This initiative would also address the issue of burning of stubble (i.e. paddy straw and other agro-residues) in the fields by farmers, while also generating additional revenue for them. Stubble burning in fields emits large amount of ash/soot/ unburnt carbon to the atmosphere which is the real cause of air pollution and elevates the PM 2.5 and PM 10 level in atmosphere. When agro-residue based fuel is utilized in coal fired power plants, it undergoes complete combustion and the resulting ash is also almost completely absorbed in Electrostatic Precipitator (ESP), preventing air pollution while generating power.
3.	Intent of Specification	The intent of technical specification is to outline critical requirements and parameters for procurement of agro-residue based biomass pellets for co-firing in pulverized coal fired units.

4.	Scope	4.1 The scope of work under this package shall include supply, loading, transport and delivery of agro-residue based biomass pellets at NTPC site. 4.2 Unloading at NTPC site shall be in the scope of NTPC Plants (Annexure III) provided pellets are loose filled in the carriage vehicle. Carriage vehicle should be fully covered and waterproof during transportation to prevent the material from rain, sunlight and to prevent dusting. 4.3 If supplier supplies the material packed in bags, consignment shall not be accepted, or supplier shall unload and unpack the material at his own cost. In such case, any additional cost, including demurrage, if any, will be borne by the vendor. supplier must take back the empty bags from plant premises. 4.4 The pellets shall meet the technical specification given clause 8 (Table -1). 4.5 Supplies against any other contract awarded at lower price (long term) or any short-term contract) have to be completed before start of supply under this contract for the concerned station/plant
5.	Supply Duration	5.1 The bidder shall offer to supply Biomass pellets on daily basis for 01 Years. 5.2 However, if due to any reason attributed to NTPC or reason mentioned in the force majeure clause, party is not able to supply allocated quantity of Non Torrefied Biomass pellets to NTPC as per the schedule, additional grace period for completion of supplies may be given at the sole discretion of NTPC
6.	Delivery start date and delivery address	6.1 In case of award, the supplier shall start delivery of material within 30 days from the issue of LOA based on mutually agreed schedule. 6.2 The consignment of pellets shall be delivered to the station (Annexure III)

7.	Delivery Schedule	7.1 Default delivery schedule shall be the quantity allocated to supplier for supply of pellets on TPD (Tons per Day) basis. However, the contract will have flexibility of revising the default schedule as elaborated below. 7.2 To meet the ordered supply requirement, supplier shall have the flexibility to supply the material in greater quantity than default delivery schedule with a formal consent of the station. 7.3 Option of supplying higher quantity shall be subject to one week of advance intimation by the vendor to NTPC site and a formal consent of the site in this regard. 7.4 NTPC can also give reduced delivery schedule to supplier by giving one week of formal advance notice and the supplier shall dispatch the consignment accordingly. 7.5 Formal communication from NTPC would mean communication through official e-mail ID of engineer-in-charge or e-mail ID of any other person authorized by him.
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Technical Specification of Biomass pellets	The Biomass pellets shall meet the technical specification as given in following table-1 and the Bidder shall submit declaration for the same as per format enclosed at Annexure-I of this document. Table: 1 Technical Specification for Biomass Pellets <table><tr><th>S.No</th><th>Technical data</th><th>Unit</th><th>Non Torrefied Biomass pellets specification</th></tr><tr><td>1</td><td>Base material</td><td>-</td><td>Agro residue</td></tr><tr><td>2</td><td>Shape and Size**</td><td>Mm</td><td>cylindrical shape : Diameter : Not more than 25 mm Length : should not exceed 35 mm.</td></tr><tr><td>3</td><td>Fines% (length<3 mm) (ARB*)</td><td>Wt %</td><td>finest ≤ 5% [Less than 5% by weight]</td></tr><tr><td>4</td><td>Gross Calorific Value (GCV-ARB*)</td><td>kCal/kg</td><td>Acceptable range 2800 Kcal/Kg to 4000 kcal/Kg [both inclusive]</td></tr><tr><td>5</td><td>Moisture (ARB*)</td><td>Wt %</td><td>Not more than 14%</td></tr></table> *ARB – As Received Basis **During contract period, diameter of pellets may be revised/modified based on result of test firing on mutual consent basis without any financial/cost implication to either NTPC or supplier.	S.No	Technical data	Unit	Non Torrefied Biomass pellets specification	1	Base material	-	Agro residue	2	Shape and Size**	Mm	cylindrical shape : Diameter : Not more than 25 mm Length : should not exceed 35 mm.	3	Fines% (length<3 mm) (ARB*)	Wt %	finest ≤ 5% [Less than 5% by weight]	4	Gross Calorific Value (GCV-ARB*)	kCal/kg	Acceptable range 2800 Kcal/Kg to 4000 kcal/Kg [both inclusive]	5	Moisture (ARB*)	Wt %	Not more than 14%
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9.	Raw Material for pellet Manufacturing	9.1 Base material for pellet manufacturing shall be agro residue, which means the leftover portion of the agriculture produce, such as stubble/straw/stalk/husk of those agro residues which are surplus and not being used as animal fodder, such as paddy, soya, arhar, gwar, cotton, gram, jawar, bajara, moong, mustard, seasam, til, maize, sunflower, jute, coffee etc., groundnut shell, coconut shell, castor seed shell etc., pine needle, elephant grass, sarkanda, bamboo and its by product (e.g. Bamboo chips, Cuttings, Bamboo Dust etc.) and horticulture waste such as dry leaves and trimmings generated during the maintenance and pruning of trees and plants. 9.2 Agro residue-based biomass pellets can be manufactured by single base material or mixing multiple base materials together. 9.3 Mixing materials such as by product of wood work factory such as wood chips, saw dust, furniture waste etc., bagasse, press mud, molasses or natural additives/binder such as lignin, starch, and animal dung may also be used with agro residue in limited proportion to enhance material properties and same shall be explicitly mentioned by supplier in consignment details. 9.4 Wood obtained from tree cutting shall not be treated as agro residue and shall be not to be used as base material or mixing purpose whatsoever. 9.5 NTPC shall reserve the right to exclude any mixing material/additive/ binder or modify their proportion, if any adverse technical impact is observed during operation of the plant. 9.6 If required NTPC representative can visit the pellet manufacturing unit to verify the type of raw material being used for pellet manufacturing. During visit, If NTPC team found that vendor is using raw material other than mentioned in point 9.1 , then the order of pellet supplier will be terminated
10.	Price adjustment for GCV variation	1. The Ex factory benchmark price has been notified by the MOP, which is Rs. 2.24 per 1000 Kcal basis(Excluding GST). The base rate shall be calculated based on GCV of 3400 Kcal/Kg. based on these, the per MT FOR origin price (Including GST) will be Rs 7996.8 per Metric Ton. 2. The above price is including GST, which shall be paid as per the actual rate of GST as applicable from time to time (Presently 5%). 3. The transportation cost shall be paid separately and the rates for the same a vendor has to quote in (Rs/MT) @3400 kcal/Kg excluding GST. The transportation cost shall be upto NTPC station and shall include all levies. The transportation rate with GST will be calculated in BOQ sheet that is FOR transportation cost. The FOR destination price (Total Price) for a vendor shall be the sum of above 3 (three) components. 4. The price adjustment of GCV variation is applicable on FOR destination price (Total price).

Bidder is required to supply Non Torrefied Biomass pellets in Kcal/Kg within the acceptable range as given below in the table.

	Biomass pellets
Acceptable GCV range for biomass pellets without penalty	Between 2800 Kcal/Kg to 4000 kcal/Kg [both inclusive]

For any variation in the GCV (ARB) from the quoted GCV, impact on biomass pellets price and transportation rate will be calculated as per the following formula.

Adjusted biomass pellets FOR origin (exfactory) Price = (Biomass pellets FOR Origin price * Actual GCV (ARB)) / 3400 kcal/kg

Adjusted transportation cost= (Total transportation cost inclusive of GST and Taxes * Actual GCV (ARB)) /3400 kcal/kg

The payable price shall be as given in the following tables-

Impact of GCV variation on biomass pellet price and Transportation rate		
GCV range	Biomass pellets price/ Exfactory price of pellets	Transportation rate
Less than 2000 kcal/KG	No payment shall be made	No payment shall be made
2000 kcal/KG to Less than 2400 kcal/KG	0.0.50 * Adjusted biomass pellets FOR origin Price	0.50* Adjusted transportation cost
2400 kcal/KG to less than 2800 kcal/KG	0.75* Adjusted biomass pellets FOR origin Price	0.75* Adjusted transportation cost
2800-3400 kcal/KG	Adjusted biomass pellets FOR origin Price	Adjusted transportation cost
3400-4000 Kcal/KG	Adjusted biomass pellets FOR origin Price	Transportation rate will be limited to 3400 Kcal/KG that is quoted price
Above 4000 Kcal/KG	GCV(ARB) will be taken as 4000 kcal/Kg for calculation of biomass pellet price, that will be no extra payment for GCV more than 4000 Kcal/kg, however the material will be accepted	Transportation rate will be limited to 3400 Kcal/KG that is quoted price

		Note: In case, supplier is found to frequently supply the material of GCV less than the minimum level below which no payment is to be made as per above methodology or is found to take deviations in other technical parameters, warning letter shall be issued to supplier. Further, if material is supplied below this threshold on more than 3 (Three) instances during the currency of contract even after issuing warning letter, then Contract shall be liable for cancellation.															
11.	Recovery On Account of Excess Fines In Consignment	11.1 Biomass dust, crushed/ broken/ damaged pellets of length less than 3 mm in consignment as received at NTPC site shall be treated as fines, and there shall be recovery on account of excess fines (ARB) if it is beyond 5%. The recovery on account of excess fines will be worked out as per the following formula. Recovery = (Adjusted payable price of Biomass pellets) * W * (Actual Weight % of fines - 5%) “W” - Weight of consignment as received However, there shall be no additional payment to vendor if fines are less than 5%. The “Recovery” amount shall be recovered from the payment of that consignment.															
12.	Rejection of consignment	The consignment of biomass pellets arrived at NTPC shall initially be tested for following before unloading and shall be rejected in case parameter exceeds the rejection level given in following table- Table:2 <table border="1"> <thead> <tr> <th>Technical data</th><th>Unit</th><th>Rejection level</th></tr> </thead> <tbody> <tr> <td>Moisture (ARB*)</td><td>Wt %</td><td>More than 14%</td></tr> </tbody> </table> *ARB – As Received Basis	Technical data	Unit	Rejection level	Moisture (ARB*)	Wt %	More than 14%									
Technical data	Unit	Rejection level															
Moisture (ARB*)	Wt %	More than 14%															
13.	Testing standard/ Method	Biomass pellets sample shall be tested in the NTPC site lab as per following or their equivalent standards - <table border="1"> <thead> <tr> <th>S.,No</th><th>Technical data</th><th>Testing Standard/Method</th></tr> </thead> <tbody> <tr> <td>1.</td><td>Diameter</td><td>IS 17643 : 2021</td></tr> <tr> <td>2.</td><td>Fines% (Length< 3 mm) (ARB)</td><td>IS 17656 : 2021</td></tr> <tr> <td>3.</td><td>Determination of calorific value ,Gross Calorific Value (ARB)</td><td>IS 17654 : 2021</td></tr> <tr> <td>4.</td><td>Moisture (ARB)</td><td>IS 17655 (Part 1) :2021/, IS 17655 (Part 2) :2021/, IS 17655 (Part 3) :2021, / Hand held moisture meter may also be used.</td></tr> </tbody> </table>	S.,No	Technical data	Testing Standard/Method	1.	Diameter	IS 17643 : 2021	2.	Fines% (Length< 3 mm) (ARB)	IS 17656 : 2021	3.	Determination of calorific value ,Gross Calorific Value (ARB)	IS 17654 : 2021	4.	Moisture (ARB)	IS 17655 (Part 1) :2021/, IS 17655 (Part 2) :2021/, IS 17655 (Part 3) :2021, / Hand held moisture meter may also be used.
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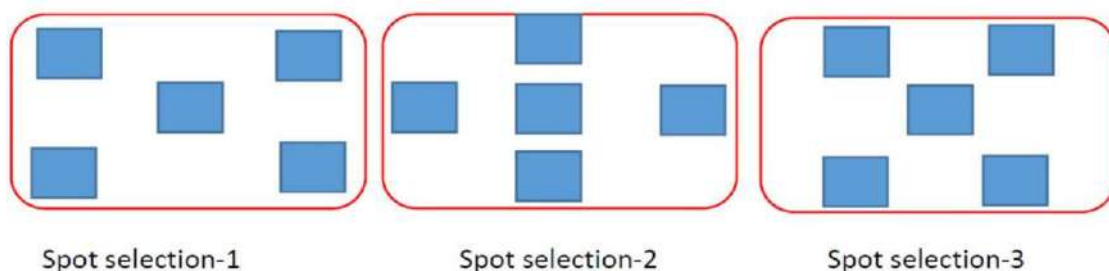
		ARB – As Received Basis BIS standard for sample collection of biomass pellets is under preparation, when sample collection standard will be released by BIS, it will be applicable for biomass pellets sample collection. Till then sampling methodology mentioned in serial no. 06 of specific scope of works and terms will be followed.
14.	Sampling and analysis at receiving end (NTPC site)	14.1 Sampling shall be done by NTPC, preferably in the presence of representative of the pellet supplier. The samples shall be collected and prepared as per BIS norms. 14.2 The authorized representatives of NTPC and pellet supplier shall jointly witness the process of sample collection and preparation of the laboratory samples. The representatives shall put their signature on the sample tags in evidence of the process of sampling. Both- consumer (NTPC) and pellet supplier - shall also sign on the samples register maintained by the NTPC at the unloading end. 14.3 For purpose of rejection test, before unloading, samples shall be tested for moisture by NTPC. If value comes out to be more than rejection level as given in clause 12 (Table 2), the consignment shall be rejected, and it shall be the supplier's responsibility to carry it back at his own cost. 14.4 For recovery on account of excess fines, NTPC shall arrange for analysis of fines part of pellets at NTPC site, and if fines percentage exceeds more than 5%, proportionate recovery shall be done for excess fine as per clause 11. 14.5 For testing of GCV and other Technical parameters, single sample shall be prepared for all the consignments received in a day from a particular vendor. For avoidance of doubt, in case supply is from multiple vendors in a day, vendor-wise sample shall be prepared for all the consignment received in a day. 14.6 The final laboratory sample shall be divided into 3 (three) parts. Part-1 of the sample is for analysis of GCV and moisture by NTPC lab at site. Part-2 sample is to be handed over to the pellet supplier for its own analysis. Part- 3 of the sample, called Referee sample, shall be sealed jointly, and shall be kept with NTPC under proper lock and key arrangement. 14.7 The Referee sample shall be preserved for a period of 15 days from the date of sample collection.

		14.8 Mere absence of or failure of participation by any representative of pellet supplier shall not be a ground to negate the sampling process undertaken. 14.9 NTPC shall communicate the Analysis Results to the pellet supplier within 7 working days of the sample collection. 14.10 The pellet supplier may raise dispute regarding GCV only, if any, within 07 (seven) days of submission of the result by NTPC. 14.11 In case a dispute is raised within the stipulated time period, the Referee sample shall be analysed in a NABL accredited laboratory as notified by National biomass mission from time to time, expense of which shall be borne equally by both NTPC and pellet supplier. Expense borne on supplier part shall be adjusted against payment to the supplier. NABL accredited laboratory report of referee sample shall be final and binding on both the parties. Referee labs notified by Biomass Mission are mentioned Annexure IV. However, it shall be noted that notified referee laboratories by Biomass Mission changes from time to time and referee lab list prevalent at the time of raise of dispute as circulated by Biomass mission will be followed. 14.12 Dispute raised after the stipulated time period shall not be entertained. In case a dispute is raised within the stipulated time period, 80% of the payment will be released and the Referee sample shall be analysed in a notified NABL accredited laboratory. Based on the test results from the referee lab, difference in the amount, whether positive or negative, will be settled in the subsequent billing cycle. 14.13 NTPC shall communicate the referee result within 15 days from date of raise of referee or when dispute is raised by pellet supplier. 14.14 As regards rejection parameter as per clause 12, NTPC test shall be sufficient and binding. Third party testing shall not be applicable for rejected consignment.
15	Tagging of consignment	Each consignment should be accompanied/tagged by general details (such as name of company/firm/agency, address, date of dispatch, batch number, vehicle type and number, weight of consignment etc.), and technical details as per Annexure-II given at the end of this document.
16	Mode of transport	16.1 Default mode of transport is covered truck with water proofing arrangement; however, the supplier may also offer transport by rail subject to prior consent of respective plant management. 16.2 Further, bidder shall have flexibility to switch to any mode of transport. However, the FOR price will remain unchanged. 16.3 The switch shall be subject to availability of material unloading facility at site and specific prior consent of respective plant management. The decision of plant management shall be final and binding on the vendor.

17.	Quantity allocation to a vendor	1. Quantity allocation will be restricted to the manufacturing capacity of the vendor or spare capacity available with vendor after adjusting for existing orders (to be certified by a Chartered Accountant) 2. Quantity allocation (Bucket Filling) will be done from the lowest total Price onwards till the total quantity on offer is allocated, as outline in para 17.1
18	Quantity Variation	The permissible limit of deviation over the original quantity of each item will be (+) 50% for Biomass pellets, on same rates and terms and conditions on mutual consent basis between vendor and NTPC station.

SPECIFIC SCOPE OF WORKS & TERMS:

1. **Sampling, Weighment and Unloading Point:** The site/location for Sampling, Weighment and Unloading Point will be identified by NTPC station. The trucks shall be sent for Sampling, Weighment and Unloading after verifying all the documents. For any extra halt of carriage vehicle for any of these activities, demurrage shall not be payable by NTPC. Sampling may be done at unloading yard or any other site identified by NTPC station.
2. **Handling of rejected consignment:** In case of rejection of consignment as per Clause 12 of this volume, it's supplier responsibility to carry it back at its own cost as per Clause 14 of Technical Specification.
3. **Weighment:** NTPC-Station will collect the gross weight and the tare weight of the carriage vehicle and the net weight will be calculated. Net Weight Quantity of Pellets received at NTPC power station will be final for the purpose of assessment of executed quantity and payment. However, if invoiced quantity is lower, payment shall be restricted to invoiced quantity. The vendor shall submit Credit /Debit note accordingly.
4. **Extraneous Material:** (For material other than specified in Technical Specification at Clause 9) Successful Bidder is to ensure that Pellet is free of foreign /extraneous material, failing which NTPC shall ask Supplier to segregate as well as recover up to contracted landed price for ten times of weight of the extraneous material or 0.5% of FOR Biomass Pellet value of particular truck whichever is higher.
5. **Raw Materials for pellet Manufacturing:** Successful Bidder is to ensure that raw materials such as Base material and Mixing material are sourced from domestic sources only as specified in the Clause 9 of Technical Specification: Raw Materials for pellet Manufacturing.
6. **Sampling methodology:** The biomass sample should be representative sample of the truck/ consignment. Methodology for collecting a representative sample is elaborated in the following paragraphs. For the purpose of rejection test before clearance for unloading, each truck/consignment shall be tested for moisture by NTPC. For testing of GCV and other Technical parameters, single composite sample shall be prepared for all the consignments received in a day from a particular vendor. For avoidance of doubt, in case supply is from multiple vendors in a day, vendor-wise sample shall be prepared for all the consignment received in a day.
 - 6.1. **Truck/wagon sample:** The sample quantity of approximately 30 Kg is to be collected from each truck/consignment from 4-5 randomly selected spots on the truck top after removing biomass pellet layer of approximately 25-30 cm depth from the top. Approximately 5-6 kg of sample is to be collected from each spot.
 - 6.2. **Spot selection:** Five spots are selected for sampling of biomass pallet as shown in figure below. Any one spot selection option will be decided by NTPC sampling staff after viewing the biomass loading pattern. Spot selection is not in vendor's scope.



7. Sample preparation for testing: For the purpose of rejection test before clearance for unloading, each truck/consignment shall be tested for moisture by NTPC. For testing of GCV and other Technical parameters, single composite sample shall be prepared for all the consignments received in a day from a particular vendor.

7.1. For testing of moisture for rejection test for unloading clearance: After collection of samples from the truck as stated above at para 6, thoroughly mix the pellet samples and collect approximately 1 Kg of representative sample for carrying out rejection test as per Clause 14.

7.2. For testing of GCV and other technical parameters: Do the conning and quartering of the rest of the sample, till the sample quantity is reduced to 4-5 Kg as explained below:

Example

Suppose one collects 30 Kg sample from One truck and total no of trucks received in a day from a particular vendor is 'N' then the total pellet sample collected will be around '30N' Kg. 'N' can be 1,2,3 ...or so on.

Prepare a cone (heap) of '30N' Kg and divide the cone from top to bottom and remove the half portion (left or right). Further, prepare the cone for remaining '15N' Kg of pellet and divide the heap and remove the pellet of side opposite to the side of previous removal. Now, the balance available qty of pellet is '7.5N' Kg and continue this process till the pellet sample is reduced to '4-5' Kg. The final laboratory sample shall be distributed as per Clause 14.6 for determination of GCV and other technical parameters.

Declaration by Bidder

(To be submitted on Companies letter head along with technical bid)

We, the undersigned, have read the technical specifications for agro residue based biomass pellets, volume- IV and declare the following:

- (a) We have read and completely understood the technical specification document and have no reservations to it including amendments/clarifications.
- (b) We have quoted the transportation price (Per MT) in price bid for the agro residue based biomass pellets having technical specification as follows:

S.No	Technical data	Unit	Biomass pellet specification
1	Base material	-	Agro residue
2	Shape and Size**	Mm	In case of cylindrical shape : Diameter : Not more than 25 mm Length : should not exceed 35 mm.
3	Fines% (length<3 mm)(ARB*)	Wt %	finest ≤ 5% [Less than 5% by weight]
4	Gross Calorific Value (GCV-ARB*)	kCal/kg	Acceptable range 2800 Kcal/Kg to 4000 kcal/Kg [both inclusive]
5	Moisture (ARB*)	Wt %	Not more than 14%

- (c) We understand that quantity and price adjustment shall be made for supplying the material deviating from acceptable range given in the technical specification as per clause 10 and 11 of technical specification (Volume-IV).
- (d) We understand that consignment not meeting acceptance limits of parameters as per clause 12 of technical specification (Volume-IV) shall be rejected.
- (e) We understand that liquidated damage (LD) shall be recovered for supply shortfall as per tender conditions.
- (f) We declare that we have read the bid document and have no reservation to it and shall abide by its provisions.

Name/ Designation: Name of Company/firm/agency

Signature:

Date:

Place

Tag for Consignment

(To be tagged along with each consignment on Agency's letter head)

General Details				
1.	Name of company/ Firm /Agency	-		
2.	Address of manufacturing location	-		
3.	Date of dispatch	-		
4.	Batch number	-		
5.	Carriage Vehicle type/ Number	-		
6.	Weight	Kg	Gross weight	
			Tare weight	
			Material weight	
7.	(any other details as applicable)			
8.	(any other details as applicable)			
Technical Details				
1	Dimension of Biomass pellets (in mm) • Maximum Diameter (in mm) • Maximum length (in mm) Further, certify that "No dimension exceeds 35 mm"			
2	Name of base materials and its percentage			
3	Mixing material and its percentage			
4	Additive and percentage			
Name/ Designation: Signature: Place:				
Date :				

List of Power Plants and Maximum pellet requirement

Sr. No.	Plant	Address	QTY in TPD	QTY in MT
1	Vindhyachal Super Thermal Power Station	NTPC Vindhyachal, P.O. Vindhyanagar-486 885, Dist. Singrauli, Madhya Pradesh	2730	9,96,450
2	Sipat Super Thermal Power Station	NTPC Sipat, Dist - Bilaspur (Chhattisgarh) - 495555	1990	7,26,350
3	Korba Super Thermal Power Station	NTPC Korba, Jamnipali, District Korba, Chattisgarh-495450	1850	6,75,250
4	Lara Super Thermal Power Station	NTPC Lara, Village - Chhapora, Tehsil - Pussore, Distt - Raigarh (CG) - 496440	1090	3,97,850

Annexure-IV

Referee lab list

Sr. No.	Lab Name	City	State	Country	Address
1	IDMA LABORATORIES LIMITED	Panchkula	HARYANA	INDIA	PLOT NO 391, INDUSTRIAL AREA, PHASE-1 Panchkula HARYANA INDIA
2	AES LABORATORIES PVT. LTD.	Noida	UTTAR PRADESH	INDIA	B - 118, PHASE - 2 Noida UTTAR PRADESH INDIA
3	SHIVA ANALYTICALS (INDIA) PRIVATE LIMITED	Bengaluru	KARNATAKA	INDIA	PLOT NO. 24D(P) AND 34D, KIADB INDUSTRIAL AREA Bengaluru KARNATAKA INDIA
4	Pollucon Laboratories Pvt. Ltd.	Surat	GUJARAT	INDIA	5/6 "Pollucon House", Old Shantinath Mill Lane, Navjivan Circle, Udhana Magdalla Road Surat GUJARAT INDIA
5	HARYANA TEST HOUSE & CONSULTANCY SERVICES	Panipat	HARYANA	INDIA	PLOT NO. 50-C , SECTOR-25, PART-II, HUDA Panipat HARYANA INDIA
6	FARE LABS PRIVATE LIMITED	Gurgaon	HARYANA	INDIA	L-17/3, DLF PHASE-II, IFFCO CHOWK, M. G. ROAD Gurgaon HARYANA INDIA
7	TEAM TEST HOUSE (A UNIT OF TEAM INSTITUTE OF SCIENCE & TECHNOLOGY PVT. LTD.)	Jaipur	RAJASTHAN	INDIA	G1-584, SITAPURA INDUSTRIAL AREA Jaipur RAJASTHAN INDIA
8	Ganesh Consultancy & Analytical Services	Mysore	KARNATAKA	INDIA	294/A, Hebbal Industrial Area Mysore KARNATAKA INDIA
9	KAILTECH TEST AND RESEARCH CENTRE PRIVATE LIMITED	Indore	MADHYA PRADESH	INDIA	141-C, ELECTRONIC COMPLEX INDUSTRIAL AREA, PARDESIPURA Indore MADHYA PRADESH INDIA

10	COAL AND COMBUSTION LABOATORY, NCPS, NTPC LIMITED	Ghaziabad	UTTAR PRADESH	INDIA	NCPS DADRI, GAUTAM BUDH NAGAR Ghaziabad UTTAR PRADESH INDIA
11	ENVIROCHEM RESEARCH & TEST LABS PVT. LTD.	Lucknow	UTTAR PRADESH	INDIA	HIG-79, SECTOR-E, ALIGANJ Lucknow UTTAR PRADESH INDIA
12	PRECITECH LABORATORIES PVT. LTD.	Vapi	GUJARAT	INDIA	1ST FLOOR BHANUJYOT COMPLEX, PLOT NO. C5/27 Vapi GUJARAT INDIA
13	LEON INSPECTION & TESTING INDIA PRIVATE LIMITED	Chennai	TAMIL NADU	INDIA	NO.4, 1ST & 3RD FLOOR, 5TH CROSS STREET, DR. RADHAKRISHNAN SALAI MYLAPORE Chennai TAMIL NADU INDIA
14	INTERSTELLAR TESTING CENTRE PVT LTD	Panchkula	HARYANA	INDIA	PLOT NO. 86, INDUSTRIAL AREA, PHASE-1 Panchkula HARYANA INDIA
15	QA TESTING LABORATORIES PRIVATE LIMITED	Noida	UTTAR PRADESH	INDIA	B-76 ,SECTOR- 64 Noida UTTAR PRADESH INDIA
16	KULKARNI LABORATORY	Pune	MAHARASHTRA	INDIA	3RD,SAVALI PRESTIGE BUILDING , 1ST FLOOR, NANDED PHATA SINGHGAD ROAD, NANDED PHATA Pune MAHARASHTRA INDIA

It shall be noted that notified referee laboratories by Biomass Mission changes from time to time and referee lab list prevalent at the time of raise of dispute as circulated by Biomass mission will be followed.

SECTION– V

ANNEXURES AND FORMS & FORMATS

Procurement of Biomass Pellets on FOR Power Station basis for Western Region (LOT-2)	SECTION V (FORMS AND FORMATS)	Page 1 of 73
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LIST OF ATTACHMENTS & ANNEXURES AND FORMS & FORMATS

S. No	ATTACHMENTS & ANNEXURES	Description
1.	Annexure C	Certificate of Compliance
2.	Annexure T	BID SUBMISSION FORM
3.	Attachment 1	Bid Security
4.	Attachment 2	Power of Attorney
5.	Attachment-3	Bidder details
6.	Attachment-4	Declaration regarding Ownership/Partnership cum submission of single financial bid and no common controlling shareholders or ownership or cross holding directly and/or indirectly in any manner whatsoever with any other participating bidder in the same station and the details of Foreign Principals of Indian Bidders.
7.	Attachment-5	Form of Consortium Agreement
8.	Attachment- 6	Declaration of Number of Plants Bidder is interested to participate and Under taking for availing Benefits as "Punjab, Haryana and NCR bidders
9.	Attachment- 7	Participation Criteria
10.	Attachment -7A	For declaration of Traders/ Aggregators
11.	Attachment-7B	Certificate by Chartered Accountant on Letter Head for bidders' manufacturing capacity
12.	Attachment-7C	Certificate by Chartered Accountant on Letter Head for future pellet manufacturers
13.	Attachment- 8	Certificate by Chartered Accountant on Letter Head for bidders for Declaration of past orders
14.	Attachment-9	Undertaking to be given by MSE Bidder for Availing Benefits
15.	Attachment-10	Technical Data Sheets
16.	Attachment-11	Check List of documents to be submitted for Techno-Commercial Bid
B	Forms & Formats	

S. No	ATTACHMENTS & ANNEXURES	Description
1	Annexure- F1	Format of Bid Security - Bank Guarantee
2	Annexure- F2	Format of Bid Security - Insurance Surety Bond
3	Annexure- F3	Bid Security Form - Letter of Credit (Not Applicable)
4	Annexure- F4	List of Banks for Bid Security
5	Annexure- F5	Bank Guarantee Extension
6	Annexure- F6	Format of Performance Security
7	Annexure- F7	Format of Performance Security - Insurance Surety Bond
8	Annexure- F8	Bank Guarantee Verification checklist
9	Annexure- F9	List of Banks for Performance Security
10	Annexure- F10	No Deviation Certificate
11	Annexure- F11	Compliance on Eligibility Criteria -through Certificate of Compliance (Annexure C)
12	Annexure- F12	Acceptance of Fraud Prevention Policy of NTPC through Certificate of Compliance (Annexure C)
13	Annexure- F13	Format for Declaration on Policy for Debarment from Business Dealings through Certificate of Compliance (Annexure C)
14	Annexure- F14	NOT APPLICABLE
15	Annexure- F15	Commitment to all the provisions of the Integrity Pact through Annexure-C
16	Annexure- F16	Declaration of Absence of Conflict of Interest with Conciliation Committees of Independent Experts (CCIE)
17	Annexure- F17	Format for Certificate from Bank regarding BG charges
18	Annexure- F18	Compliance to “Conflict of Interest” provisions through Certificate of Compliance (Annexure C)
19	Annexure- F19	Adherence to Employer’s Anti-Bribery and Anti-Corruption (ABAC) Policy through Certificate of Compliance (Annexure C)
20	Annexure- F20	BG Forwarding letter from Bank to Unified Treasury in Banks Letterhead

Certificate of Compliance
(Please Insert name of the NTPC Station for which bidder is interested to participate)

Bid Ref No. and Date :
Bidder's Name and Address :

To,
NTPC Limited, Contract Services
6th Floor, Engg. Office Complex,
Plot A-8A, Sector-24, Noida- 201301

Sub: Invitation for Bid for “Procurement of Non-Torrefied Biomass Pellets on FOR Power station basis; Bidding Documents No. CS-0011-112R-9

With Reference to our Bid No. datedfor the subject package, we hereby confirm our compliance to the following attributes:

1. Total Compliance to all provisions of Bidding Documents/ Nil Deviation
2. Compliance on Qualifying Requirement
3. Commit to all the provisions of the Integrity Pact
4. Compliance on Restriction on Procurement from a Bidder of a country which shares a land Border with India
5. Compliance on Fraud Prevention Policy
6. Compliance on Policy for Debarment from Business Dealings
7. Compliance to Preference to Make in India and eligibility for participation
8. compliance to “Conflict of Interest” provisions.
9. compliance on “Anti-Bribery and Anti-Corruption (ABAC) Policy” of Employer

Date: Signature)
(Printed Name)
Place: (Designation)
(Seal)

Procurement of Biomass Pellets on FOR Power Station basis for Western Region (LOT-2)	SECTION V (FORMS AND FORMATS)	Page 4 of 73
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BID SUBMISSION FORM**(Please Insert name of the NTPC Station for which bidder is interested to participate)**

Bid Ref No. and Date :
 Bidder's Name and Address :

To,

NTPC Limited, Contract Services
 6th Floor, Engg. Office Complex,
 Plot A-8A, Sector-24, Noida- 201301

Sub: **Invitation for Bid for “Procurement of Non-Torrefied Biomass Pellets on FOR Power station basis; Bidding Documents No. CS-0011-112R-9**

Dear Sirs,

1. Having examined the Bidding Documents including subsequent Amendment(s)/ Clarification(s)/ Addenda/ Errata (if any), the receipt of which is hereby acknowledged, we, the undersigned, offer to execute the supply of biomass pellets under the above-named Package in full conformity with the said Bidding Documents and hereby furnish our Techno-Commercial Bid Proposal.

We have thoroughly examined and understood the instructions, Scope of work and the terms and conditions etc. covered in the bidding documents issued by NTPC Ltd being fully aware of nature and Scope of Work required.

We hereby confirm our acceptance and compliance to the entire provisions of Technical specifications, Scope of Work, and terms and conditions covered in the bidding documents. We declare that the work will be executed strictly in accordance with the requirement and bidding documents provisions.

- 1.1 We confirm that we have furnished all the requisite information/documents in relevance to our quoted NTPC power station. Further, we confirm that we have furnished the price bids along with price schedule(s). We understood that the price bids for NTPC shall be considered by for which we are considered to be qualified and techno-commercial bid as acceptable.

2.0 COMPLIANCE TO THE PROVISIONS OF THE BIDDING DOCUMENTS

- 2.1 We have read all the provisions of the Bidding Documents including “**Restrictions on procurement from a Bidder of a country which shares a land border with India**” and confirm that notwithstanding anything stated elsewhere in our bid to the contrary, the provisions of the Bidding Documents, are acceptable to us and we further confirm that we have not taken any deviation to the provisions of the Bidding Documents anywhere in our bid.

Procurement of Biomass Pellets on FOR Power Station basis for Western Region (LOT-2)	SECTION V (FORMS AND FORMATS)	Page 5 of 73
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Any deviation, variation or additional condition etc. or any mention, contrary to the provisions of Bidding Documents and its subsequent Amendment(s)/ Clarification(s)/Addenda/Errata (if any) found anywhere in our bid proposal, implicit or explicit shall stand unconditionally withdrawn, without any cost implication whatsoever to the Employer, failing which our bid security shall be forfeited.

- 2.2 We further declare that additional conditions, variations, deviations, if any, found anywhere in the proposal, shall not be given effect to.
- 2.3 We confirm that we fulfill the requirements of Local content for Class-I local supplier. The details of the location(s) at which the local value has been added are as under:

Sl. No.	Description of Goods & Services	Details of the location(s) at which the local value addition is made
	(Bidders to fill the details)	(Bidders to fill the details)

We confirm that we fulfill the requirements of Local content for Class-I local supplier for Item(s) mentioned at Annexure-V in Technical Specifications, as applicable. We further confirm that in case such item(s) are bought-out for us, we shall source the same from Class-I local supplier only.

We undertake that a certificate from the statutory auditor or cost auditor (in the case the bidder is a company) or from a practicing cost accountant or practicing chartered accountant (in respect of bidders other than companies) certifying the percentage of local content shall be submitted by us prior to submission of our last bill for payment.

- 2.4 We further confirm that we are presently not debarred / banned by any other procuring entity for violation of 'Public Procurement (Preference to Make in India), Order 2017' (PPP-MII Order) dated 15.06.2017 and its subsequent revisions / amendments issued by Department for Promotion of Industry and Internal trade (DPIIT)."

In case a Bidder has been banned/debarred by any other procuring entity for violation of 'Public Procurement (Preference to Make In India), Order 2017' (PPP-MII Order) dated 15.06.2017 and its subsequent revisions / amendments issued by Department of Industrial Policy and Promotion (DIPP), the same may be declared by Bidder by striking off para above and declaring the details of banning using additional sheets.

Bidder may also enclose additional sheets in similar format (if required), for providing details pertaining.

2.5 We have read the ITB clause regarding **“Restrictions on procurement from a bidder of a country which shares a land border with India and on sub-contracting to contractors from such countries”**. We certify that we/our Collaborator/JV Partner/Consortium member/Assignee are/is not from such a country or, if from such a country, have/has been registered with the Competent Authority and we will not sub- contract any work to a contractor from such countries unless such contractor is registered with the Competent Authority. We hereby certify that we fulfill all requirements in this regard and are eligible to be considered.

2.6 Attachments for Techno-Commercial Bid:

2.7 In line with the requirement of the Bidding Documents, we hereby confirm that we have submitted the Unconditional Techno-Commercial Bid Submission Form duly completed together with the following attachments in Technical bid:

- a) **Annexure C: Certificate of Compliance**
- b) **Annexure T: Techno-Commercial Bid Submission Form**
- c) **Attachment 1: Bid Security furnished in accordance with ITB Clause 7.0**
- d) **Attachment 2: Power of Attorney** furnished in accordance with ITB Clause 20.1.1
- e) **Attachment-3: Bidder details** as per Employer format along with required documents as mentioned therewith.
- f) **Attachment-4:** Declaration regarding Ownership/Partnership cum submission of single financial bid and no common controlling shareholders or ownership or cross holding directly and/or indirectly in any manner whatsoever with any other participating bidder in the same station and the details of Foreign Principals of Indian Bidders.
- g) **Attachment-5 (in Bidder's format): Consortium agreement** (if applicable) entered into by the consortium partners shall be submitted with the bid.
- h) **Attachment- 6: Declaration of Number of Plants Bidder is interested to participate and Under taking for availing Benefits as “Punjab, Haryana and NCR bidders”**
- i) **Attachment 7: Participation Criteria**

Documents in accordance with Clause ITB clause 1.5 seeking Quantity allocation as per Bidding Documents provision

- **Attachment 7A: For declaration of Traders/ Aggregators as per Employer's format along with supporting documents**
- **Attachment 7B: Certificate by Chartered Accountant on Letter Head for Bidders' manufacturing capacity and also availing MSE benefits/ Purchase preference (If applicable) as per Employer's format.**

Procurement of Biomass Pellets on FOR Power Station basis for Western Region (LOT-2)	SECTION V (FORMS AND FORMATS)	Page 7 of 73
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- **Attachment 7C: Certificate by Chartered Accountant on Letter Head for future pellet manufacturers as per Employer's format along with supporting document**

Any other document, bidder feels is important to establish the allocation and fulfill the tender requirements.

- j) **Attachment- 8: Certificate by Chartered Accountant on Letter Head for Bidders for Declaration of past orders (If applicable)** as per Employer's format.
- k) **Attachment-9: Undertaking to be given by MSE Bidder for Availing Benefits** [as applicable].
- l) **Attachment-10 Technical Data Sheets** duly filled in as per the Employer's format
- m) **Attachment-11: Additional Information-** Additional Information which the bidder wishes to provide in their bid.
- n) **Attachment-11: Check List of documents to be submitted for Techno-Commercial Bid**

We confirm that our Techno-Commercial Bid should not contain any price content entry. Further we understand that in case, our Techno-Commercial Bid is found to contain any price content, then the decision made by employer regarding rejection/acceptance of bid shall be final.

3.0 Attachments for Price Bid:

In line with the requirement of the Bidding Documents, we have submitted the duly completed following attachments in Price bid **Financial Document (Excel Sheet converted to pdf)**

3.1 We further confirm the following:

We have quoted for the entire quantity as mentioned in the Price schedule of Bidding Document and also quoted the prices for as per annexure III of section IV technical specification , covered in the package for which we are intended to offer biomass pellets, as per provisions of the bidding documents.

3.2 We further understand that discount letter, if any, separately uploaded online or submitted in physical form shall not be considered for the purpose of evaluation.

3.3 We are aware that the Price Schedules do not generally give a full description of the work to be performed under each item and we shall be deemed to have read the Technical Specifications, and other sections of the Bidding Documents to ascertain the full scope of work included in each item while filling in the rates and prices. We agree that the entered Rates / prices shall be deemed to include the full scope as aforesaid, including overheads and profit, as per bidding document provisions.

3.4 We understand that NTPC are not bound to accept our bid or any other bid, NTPC may receive.

4.1 We further declare that additional conditions, variations, deviations, if any, found in the bid, shall not be given effect to.

Procurement of Biomass Pellets on FOR Power Station basis for Western Region (LOT-2)	SECTION V (FORMS AND FORMATS)	Page 8 of 73
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- 4.2 We undertake, if our bid is accepted, to commence work on supply of biomass pellets immediately upon your Letter of Award to us and to achieve the requirements specified in the bidding documents.
- 5.0 We undertake, if our bid is accepted, to provide Bank Guarantees towards Contract Performance Security etc. as per stipulated formats and amounts and within the time specified in the bidding documents.
- 6.0 We agree to abide by this bid for a **period of 120 days** from the date of opening of Techno-Commercial bids, as stipulated in the Bidding Documents; and it shall remain binding upon us and may be accepted by NTPC at any time before expiration of that period.
- 7.0 We understand that NTPC is not bound to accept the lowest or any other bid NTPC may receive.
- 8.0 We, hereby, declare that only the persons or firms interested in this proposal as principals are named here and that no other persons or firms other than those mentioned herein have any interest in this proposal or in the Contract to be entered into, if the award is made on us, that this proposal is made without any connection with any other person, firm or party likewise submitting a proposal, is in all respects for and in good faith, without collusion or fraud.

Dated this.....day of.....20.....

Thanking you, we remain,

Yours faithfully,

Date : _____

Place : _____

(authorised signatory Name).

(Designation)

Business Address : _____

Country of Incorporation (Province also to be indicated) : _____

Email : _____

Phone No. : _____

Procurement of Biomass Pellets on FOR Power Station basis for Western Region (LOT-2)	SECTION V (FORMS AND FORMATS)	Page 9 of 73
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BID SECURITY

BIDDER TO FURNISH BID SECURITY IN LINE WITH ITB CLAUSE 7.0 & 20.1.1

AND

AS PER FORMAT GIVEN AT Annexure-F1 OF SECTION V (FORMS & PROCEDURES)

Procurement of Biomass Pellets on FOR Power Station basis for Western Region (LOT-2)	SECTION V (FORMS AND FORMATS)	Page 10 of 73
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POWER OF ATTORNEY

**BIDDER TO ATTACH THE POWER OF ATTORNEY AND COPY OF BOARD RESOLUTION/
OTHER RELEVANT DOCUMENTS TO DEMONSTRATE THE AUTHORITY OF THE PERSON
ISSUING THE POWER OF ATTORNEY IN ACCORDANCE WITH ITB CLAUSE 20.1.5 (b)**

Procurement of Biomass Pellets on FOR Power Station basis for Western Region (LOT-2)	SECTION V (FORMS AND FORMATS)	Page 11 of 73
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Bidder's detail (to be submitted by the bidder)**Bidder should fill-in the following information and upload the same in the offer)****Bid Ref. No:****DATED:**

Bidder's Name & Address:

To

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

Bidder's detail (to be submitted by the bidder)**Bidder should fill-in the following information and upload the same in the offer**

Name of the Bidder	
Type of Bidder (Proprietary/ Partnership/Company/ Consortium /Individual/ Cooperative Societies registered in India AND / OR Non- Resident Indians / Persons of Indian Origin AND / OR a Multi-National Company having its registered office in India registered / Overseas Corporate Bodies having its registered office in India.)	
UDYAM REGISTRATION CERTIFICATE No. & date (Validity) (Applicable for MSE bidders)	
GSTIN No	
Address of the Manufacturing Plant from which supplies shall be made in case of Award for(Name of Plant)	

NIT / BID No	
HSN Code of the materials / Place of Dispatch	
CONTACT PERSONS /ADDRESS	
Telephone	
Fax	
E mail ID	
Name and Address of Supplying and Invoicing vendor along with NTPC vendor code, if known to the bidder.	

Documents Required

1. Individual applicant to attach ADHAR CARD, PASSPORT, PAN CARD AS PROOF OF AGE FOR MEETING QUALIFICATION REQUIREMENT
2. Supporting Document for Type of Company as mentioned in sl no. 2 of this attachment
3. Copy of UDYAM REGISTRATION CERTIFICATE (Applicable for MSE bidders) as mentioned in sl no. 3 of this attachment
4. GST Registration Certificate

Bidder shall submit valid GST registration certificate. Bidder is required to upload scanned copy of Attachment-3 along with the bid on the GeM Website.

Declaration regarding Ownership/Partnership cum submission of single financial bid and no common controlling shareholders or ownership or cross holding directly and/or indirectly in any manner whatsoever with any other participating bidder in the same station and the details of Foreign Principals of Indian Bidders .

Bidder's Name and Address:

To

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

Dear Sirs,

1. We have not submitted bid in conjunction with any other bidder or have not submitted bid in any other name, either directly or indirectly.
2. We hereby declare details of Directors/ Shareholders of Company's/Partnership Firm/ Proprietorship Firm/ Consortium/ JV as under:

S.No	Name of Director / Partner / Proprietor /Consortium Partner etc.
1	
2	
3	
4	
5	
6	

If it is found at any stage of bidding or during currency of the Contract (if awarded), that we have any common controlling shareholders or ownership, directly or indirectly, with any other participating bidder(s), for a particular project, then our Bid or Contract (if awarded) shall be rejected / terminated.

Details of Foreign Principals of Indian Bidders (if applicable)

We hereby declare the details of our foreign principals or associates as below:

S.No	Name of foreign principals or associates	Address
1		
2		
3		
4		
5		
6		

3. We fully understand that NTPC, would deal directly and exclusively with us for the subject tender and no agency arrangements are acceptable to NTPC,.
4. We, hereby, undertake that we shall deal directly with NTPC, and have not engaged any Agent to deal with NTPC, for the subject tender.

Date:

Signature)

(Printed Name)

Place:

(Designation)

(Seal)

(On Non-Judicial Stamp Paper of Appropriate Value)

FORM OF CONSORTIUM AGREEMENT

BETWEEN

M/S.....

AND

M/S.....

AND

**M/S..... (STRIKE OFF IF NOT APPLICABLE)
FOR SUCCESSFUL PERFORMANCE OF THE CONTRACT FOR
[PACKAGE NAME]**

BIDDING DOCUMENT NO. [.....]

THIS Consortium Agreement (Agreement) executed on this..... day of Two thousand between M/s..... a Company incorporated under the law of and having its Registered Office at (hereinafter called the "Partner-1," which expression shall include its successors, executors and permitted assigns) and M/s a company incorporated under the laws ofand having its Registered Office at (hereinafter called the "Partner-2", which expression shall include its successors, administrators, executors and permitted assigns) and M/s a company incorporated under the laws ofand having its Registered Office at (hereinafter called the "Partner-3", which expression shall include its successors, administrators, executors and permitted assigns) **(STRIKE OFF IF NOT APPLICABLE)** for the purpose of making a bid and entering into the Contract (in case of award) against Bidding Document No[.....]for **['Name of the PACKAGE']** of NTPC Limited, a Government Company incorporated under the Company Act, 1956, and having its Registered Office at NTPC Bhawan, Scope Complex, 7, Institutional Area, Lodhi Road, New Delhi-110003, INDIA (hereinafter called the "Owner").

Partner 1, 2 & 3 are collectively referred to as "The Parties/Consortium" and each is individually referred to as "Party".

WHEREAS, the Owner invited Bids for **['Name of the PACKAGE']** vide its Bidding Document No. **[.....]** The Parties are interested in jointly bidding for the Contract as members of a Consortium and in accordance with the terms and conditions of the tender bidding documents in respect of the Contract.

AND WHEREAS ITB Clause No 1.4 of Bidding Documents stipulates that the bidder can be a Consortium of Domestic partners. The Consortium shall also necessarily identify one of the partners as Lead Partner. Further it stipulates that in this case, the bidder shall provide along with the bid, a Consortium Agreement in which the partners in the Consortium are jointly and severally liable to the Owner to perform all contractual obligations. The Consortium Agreement shall be submitted along with the bid, failing which the Bid liable for rejection.

AND WHEREAS M/S.....(Partner-1) has been designated as Lead partner of Consortium.

AND WHEREAS the bid has been submitted to the Owner vide proposal no.....dated based on Consortium Agreement being these presents and the bid in accordance with requirement of Bidding Documents have been signed jointly by all the partners and submitted to NTPC/Owner.

NOW THEREFORE, THIS AGREEMENT WITNESS AS UNDER:

In this agreement, capitalized terms shall, unless context otherwise requires, have the meaning prescribed thereto under the bidding documents.

1. That in consideration of the Award of the Contract by the Owner to the Consortium, we the partners to the Consortium Agreement do hereby agree that Partner-1 (M/s.....), shall act as the Lead Partner for self and formed on behalf of Partner-2 and partner-3 (*strike off if not applicable*), and further declare and confirm that we shall be jointly and severally be bound unto the Owner for the successful performance of the contract in accordance with the Contract Terms and shall be jointly and severally liable to the Owner to perform all the Technical and Contractual obligations. Further, the Lead Partner is authorised to incur liabilities and receive instructions for and on behalf of any and all partners of the Consortium and the entire execution of the Contract shall be done exclusively with the Lead Partner.

- 1.1 In case of any breach of the said Contract by any of the partner(s) of the Consortium Agreement, the other partner(s) hereby agree to be fully liable and responsible for the successful performance of the Contract in accordance with the terms of the Contract.

2. Notwithstanding anything contained herein, the other partners do hereby undertake, declare and confirm that we shall be fully responsible for the successful performance of the Contract and undertake to carry out all the obligations and responsibilities under this Consortium Agreement in order to discharge the obligations and responsibilities stipulated in the contract. Further, if the Owner sustains any loss or damage on account of any breach of the contract, we the Consortium partners jointly and severally undertake to promptly indemnify, and pay such loss/damages, caused to the Owner on its written demand without any demur, reservation, contest or protest in any manner whatsoever. This is without prejudice to any rights of the Owner against the Lead Partner under the contract and / or guarantees. It shall not be necessary or obligatory for the Owner to proceed against the Partner-1 to these presents before proceeding against the Partner-2 and Partner-3., if any.

We also confirm that any extension of time or relaxation given by the Owner to us shall not prejudice any rights of the Owner under this Consortium Agreement to proceed against us.

3. The financial liability of the partners of the Consortium Agreement, to the Owner with respect to any and all claims arising out of the performance or non- performance of the Contract shall, however, be not limited in any way so as to restrict or limit the liabilities of any of the partner.

In case of an award of Contract we the partners to the Consortium Agreement do hereby agree that we shall furnish the Contract Performance Guarantee within____days of Award of Contract, from a Bank in favour of Owner for a value as stipulated under the Contract and this shall be in the name of all partners of the Consortium.

4. It is expressly understood and agreed between the partners to this Agreement that the responsibilities and obligations of each of the partners shall be delineated in **Appendix-1** to this Agreement. It is further agreed by the partners that the above sharing of responsibility and obligations shall not in any way be a limitation of joint and several responsibilities of the partners under the Contract.
5. We, the Consortium partners agree and undertake that this Agreement shall be irrevocable and shall form an integral part of the Contract. We further agree that this Agreement shall continue to be enforceable till the successful performance of Contract and till the Employer discharges it. We further, agree that this Agreement shall be without any prejudice to the various liabilities of the Consortium partners as well as other obligations of Consortium partners in terms of the Contract.
6. The Parties hereby undertakes to participate in the bidding process for each project(s) of the subject tender only through the Consortium and not individually and/or through any other Consortium constituted for this Contract, either directly or indirectly or through any of their associates.
7. This agreement is legal and binding obligation of each party, enforceable in accordance with its terms against it. There is no litigation pending, or to the best of party's knowledge, threatened to which it or any of its affiliate is a party that presently affect or which would have a material adverse effect on the financial condition or business of such party in fulfilment of its obligations under this agreement.
8. The parties herein undertake to take all necessary measures in order to avoid any conflict of interest during the performance of the contract.
9. All Consortium partners of this agreement shall fully indemnify, hold harmless and defend Owner and its officers etc., from and against all claims, liabilities, suits, damages including any criminal liability due to false declaration by the Consortium with regards to this Agreement, tender or Contract etc., cause due to negligence/commission/omission of any or all of the consortium partners , its employees and agents including representative or sub-contractor or any other person claiming under this Contract.
10. The Consortium partners shall be jointly and severally - responsible for the quality of all the works and timely execution thereof to meet the completion schedule under the Contract.
11. This agreement shall be construed and interpreted in accordance with the Laws of India and the Courts of Delhi shall have exclusive jurisdiction.
12. That this Agreement shall be operative from effective date of the Contract.
IN WITNESS WHEREOF, the Consortium partners through their authorised representatives executed these present and affixed common seal company on the day, month and year first mentioned above.

Witness: **(Consortium Partner-1)**

1. Name.....
Signature..... (Signature of the authorized representative)
Designation.....
Name..... Company.....
Company.....

Witness: **(Consortium Partner-2)**

1. Name.....

Signature..... (Signature of the authorized representative)
Designation.....
Name..... Company.....
Designation.....

(STRIKE OFF THE PORTION BELOW IF THERE ARE ONLY TWO PARTNERS IN THE CONSORTIUM)

For M/s

Witness: **(Consortium Partner-3)**

1. Name.....
Signature..... (Signature of the authorized representative)
Designation.....
Name..... Company.....
Designation.....

Declaration for availing Benefits as “Punjab, Haryana and NCR bidders”

Bid Ref. No:

DATED:

Bidder's Name and Address:

To

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

Dear Sirs,

I. Projects intended for supply of the biomass pellets

1. In terms of ITB Clause 1.1, We declare that we are interested in participating for the following Projects for Non-Torrefied Biomass Pellets Procurement Package for various Plants of NTPC as mentioned in column A & column B of below mentioned table

Sl. No.	Name of Project interested in participating.	Indicate YES/NO for supply of Non-Torrefied biomass pellets	Indicate YES/NO if procuring Non Torrefied biomass pellets from Punjab, Haryana, NCR
1.			
2.			
3.			
4.			

2. We understand that we shall be considered for award subject to a limitation of orders (quantity) as specified in the clause 1.5 of ITB and other provisions of bidding document
3. We understand that the above declaration regarding the Projects we are interested in participating cannot be changed at any stage of bidding and shall be binding on us and we shall not raise any disputes/claims in this regard at any stage.

II. AVAILING BENEFITS AS PUNJAB, HARYANA, AND NCR BIDDERS [hereinafter called as Punjab bidders] (If applicable)

1. To avail the benefit of Punjab/Haryana/NCR State as per bidding documents, Bidder must indicate Yes/No in the designated column **A** & column **B** in the above mentioned table, failing which their bid will be considered for evaluation under Unreserved quantity only.
2. In case bidder intends to be considered under Punjab, Haryana and NCR quota, it may be noted that action may be taken as per the terms of contract, if it is found during the execution that the raw material is not sourced from Punjab / Haryana / NCR .

Date: (Signature)

(Printed Name)

Place: (Designation)

(Seal)

Participation Criteria

Bidder's Name & Address:

To

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

Dear Sirs,

We seek allocation under Clause 1.5 of ITB, our qualification data in support thereof is enclosed in the Attachments enclosed at Annexures as per following:

S.no	Category	Indicate Yes/No
1	Attachment 7A: Certificate by Traders/ Aggregators	
2	Attachment 7B: Certificate by Chartered Accountant on Letter Head for Bidders' manufacturing capacity and availing MSE benefits/ Purchase preference (If applicable).	
3	Attachment 7C: Certificate by Chartered Accountant on Letter Head for future pellet manufacturers	

Date: (Signature)

(Printed Name)

Place: (Designation)

(Seal)

Aggregators and trader details

Bidder's Name and Address:

To

NTPC Limited, Contract Services
6th Floor, Engg. Office Complex,
Plot A-8A, Sector-24, Noida- 201301

S.no	Attributes	Details
1	Ware house location	
2	Office address	
3	Presently trading quantity for biomass pellets in last 6 months	
4	GST No	

Date:

(Signature)

(Printed Name)

(Designation)

Place:

(Seal)

Certificate by Chartered Accountant on Letter Head for Bidders' manufacturing capacity and also availing MSE benefits/ Purchase preference (If applicable)**To,**

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

Bidders' Manufacturing Capacity

This is to certify that M/s (Name of the Bidder) is having its registered office at and its Manufacturing plant is/are located at which is/are in operation since Details of Plants are mentioned below:

S. No.	Plant location	Type of palletization Machine (Ring Dye, Flat Dye, Piston type, Other)	Palletization Machine Make	Number of palletization Machines	Capacity in TPH per machine
1*					
2*					
3*					
Total					

* Bidder may add more rows, if required

Notes:

1. Bidders may please note that for Capacity evaluation purpose, the average TPD capacity will be calculated based on 10 Hr operation per day. For example, for one 2 TPH machine, the TPD capacity will be taken as 20 TPD. If the declared capacity is more than the calculated capacity as per this formula, the same shall be restricted to calculated capacity.
2. If the total TPD capacity works out to 60 TPD or more, NTPC may verify the capacity before allocation of quantity.
3. In case of any misrepresentation of the facts, the bid shall be rejected, and action may be taken as per the terms and conditions of the tender.

Further, it is certified that M/s _____ (Name of the bidder) is a manufacturer of Agro-residue based biomass pellets having Total manufacturing capacity of TPD(Tonnes per Day) for above mentioned plant/s.

(Authorised Signatory with stamp/seal)

Name of Chartered Accountant

1. *** (If applicable) availing MSE benefits/ Purchase preference**

It is verified from the Books of Accounts of M/s(Name of the Bidder) that they have completed the setting up of the Agro-residue based Biomass Pellet Manufacturing Plant located at..... (address of Manufacturing Plant) is registered under MSMED Act 2006, (UDYAM REGISTRATION CERTIFICATE with biomass code) Dated....., category:(Micro/Small). (copy enclosed)

(Authorised Signatory with stamp/seal)

Name & address of Chartered Accountant

Membership Number-

UDIN -

*strike off whichever is not applicable.

Certificate by Chartered Accountant on Letter Head for future pellet manufacturers project details

To

NTPC Limited, Contract Services
6th Floor, Engg. Office Complex,
Plot A-8A, Sector-24, Noida- 201301

Dear Sirs,

This is to certify that M/s (Name of the Bidder) is having its registered office at Details of the pellet plant that will be established by vendor are as follow:

S.no	Attributes	Details
1	Plant location	
2	Land purchase status	
2	Pelletization machine type (Ring Dye, Flat Dye, Piston type, Other)	
3	Pelletization machine make	
4	No of pelletization machine	
5	Pelletization machine capacity in TPH	
6	Hammer mill make	
7	No. of hammer mill	
8	Investment to be done in Crores	
9	Financial tie up details to set up pellet plant	

(Authorised Signatory with stamp/seal)

Name & address of Chartered Accountant

Membership Number-

UDIN -.....

Certificate by Chartered Accountant on Letter Head for Bidders' DECLARATION OF PAST ORDERS (If applicable)

Ref no: CS-0011-112R-9

Dated:

To,

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

Dear Sirs,

We declare that we are executing following Orders for #Non- Torrefied Biomass Pellets Procurement Package other than NTPC /JV/Subsidiary of NTPC:

S.No	Name of Project	Ordered Quantity (in Million Tonnes)	Quantity Supplied on 07 days prior to Techno-Commercial Bid opening date	*Period of Contract
1				
2				
3				

Strike off whichever not applicable.

We understand that the above declaration shall be used in line with the provisions of bidding document

Authorised Signatory with stamp/seal)

Name & address of Chartered Accountant

Membership Number-

UDIN -

Note: Continuation sheets of like size and format may be used as per Bidder's requirement and shall be annexed to this Attachment.

“UNDERTAKING TO BE GIVEN BY MSE BIDDER FOR AVAILING BENEFITS”

Bid Ref. No:

DATED:

Bidder's Name and Address:

To

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin –
201301, INDIA

With reference to our bid against subject Tender Invitation, we have attached relevant documents for availing benefits to MSEs as per PPP 2012 and its subsequent amendments, if any. We are aware that benefits of MSEs under PPP 2012 are available to manufacturer of goods and not to traders/dealers and accordingly, we hereby undertake that:

- * We are ***Producer/ manufacturer of the quoted item*** and understand that the benefits as applicable to MSEs under PPP 2012 including Purchase Preference shall be applicable as per provisions of Bidding Document for all the quoted item of our bid.

We also understand that in case documents submitted by us for availing benefits/ exemptions applicable to MSEs under PPP 2012 are not found to be in order by NTPC Limited/ Employer at any stage of Bid Evaluation and Bid security declaration form and/or cost of Bid Documents (wherever applicable) have also not been submitted by us then our bid shall not be considered further for evaluation and be rejected.

Thanking you,

Date: (Signature)

(Printed Name)

Place: (Designation)

(Seal)

Technical Data Sheets

Technical Data Sheets duly filled in as per the Employer's format, enclosed as Annex-I to Technical Specifications.

Declaration by Bidder

(To be submitted on Companies letter head along with technical bid)

We, the undersigned, have read the technical specifications for agro residue-based biomass pellets, volume- IV and declare the following:

1. We have read and completely understood the technical specification document and have no reservations to it including amendments/clarifications.
2. We confirm to comply the technical specifications as follows:

S.No	Technical data	Unit	Biomass pellet specification
1	Base material	-	Agro residue
2	Shape and Size**	Mm	Cylindrical shape : Diameter: Not more than 25 mm Length: should not exceed 35 mm.
3	Fines% (length<3 mm) (ARB*)	Wt %	fines $\leq$ 5% [Less than 5% by weight]
4	Gross Calorific Value (GCV-ARB*)	kCal/kg	Acceptable range 2800 Kcal/Kg to 4000 kcal/Kg [both inclusive]
5	Moisture (ARB*)	Wt %	Not more than 14%

3. We understand that quantity and price adjustment shall be made for supplying the material deviating from acceptable range given in the technical specification as per clause 10 and 11 of technical specification (Volume-IV).
4. We understand that consignment not meeting acceptance limits of parameters as per clause 12 of technical specification (Volume-IV) shall be rejected.
5. We understand that liquidated damage (LD) shall be recovered for supply shortfall as per tender conditions.
6. We declare that we have read the bid document and have no reservation to it and shall abide by its provisions.

Thanking you,

(Signature)

(Printed Name)

Place:

(Designation)

(Seal)

CHECKLIST OF DOCUMENTS

1. Envelope I - Techno-Commercial Bid

Documents to be enclosed in Envelope No I -Techno-Commercial Bid (Comprising documents to be submitted online)		
S. No.	Description	Enclosed (Yes/No)
Documents to be submitted online Techno-Commercial Bid		
1	Certificate of Compliance as per Annexure-C	(Yes* / No*)
2	Attachment 1: Bid Security (MSE bidders shall also upload a copy of UDYAM REGISTRATION CERTIFICATE containing code for biomass pallets)	(Yes* / No*)
3	Attachment 2: Power of Attorney in terms of clause 20.1.1 of ITB along with the Authority of the person issuing the Power of Attorney	(Yes* / No*)
4	Techno-Commercial Bid Submission Form as per Annexure-T	(Yes* / No*)
5	Attachment-3: Bidder details as per Employer format along with required documents as mentioned therewith.	(Yes* / No*)
6	Attachment-4: Declaration regarding Ownership/Partnership cum submission of single financial bid and no common controlling shareholders or ownership or cross holding directly and/or indirectly in any manner whatsoever with any other participating bidder in the same station and the details of Foreign Principals of Indian Bidders. The Bidder shall furnish information with regards to disclosure of the ownership details including its foreign principals or associates	(Yes* / No*)
7	Attachment-5 (in Bidder's format): Consortium agreement (if applicable) entered into by the consortium partners shall be submitted with the bid.	(Yes* / No*)

8.	Attachment 7: Allocation Criteria	(Yes* / No*)
	Documents in accordance with Clause ITB clause 1.5 allocation criteria for seeking Quantity allocation as per Bidding Documents provision	
	Attachment 7B: Certificate by Chartered Accountant on Letter Head for Bidders' manufacturing capacity and also availing MSE benefits/ Purchase preference (If applicable) as per Employer's format	(Yes* / No*)
9	Attachment- 6: Declaration of Number of Plants Bidder is interested to participate and Under taking for availing Benefits as "Punjab, Haryana and NCR bidders	(Yes* / No*)

10	Attachment- 8: Certificate by Chartered Accountant on Letter Head for Bidders for Declaration of past orders	(Yes* / No*)
11	Attachment-9: Undertaking to be given by MSE bidder for availing benefits (if applicable) as per format ANNEXURE- Alloc-A-3	(Yes* / No*)
12	Attachment-10: Technical Data Sheets Technical Data Sheets duly filled in as per the Employer's format.	(Yes* / No*)
13	Attachment 11: Additional Information Additional Information which the bidder wishes to provide in his bid	(Yes* / No*)
14	Attachment 12: EFT Form Electronic Fund Transfer Form duly filled in as per Employer's format.	(Yes* / No*)
15	Attachment-11: Check List of documents to be submitted for Techno-Commercial Bid	(Yes* / No*)

* Strike out whichever is not applicable.

2. Envelope II: Price Bid

Documents to be enclosed in Price Bid		
Documents to be submitted online Price Bid		
1.	Financial Document (Excel sheet converted to PDF)	(Yes* / No*)

Important Clause to be Noted by bidder before submission of Bid:

If bidder fails to submit following documents (but not limited to) in required format, the bid shall be considered as substantially non-responsive and shall be summarily rejected. No clarifications shall be sought in this regard:

- A. Documents/ credential in support of QR
- B. Annexure C: Certificate of Compliance
- C. Certification from Chartered Accountant (As per Attachment 7B)
- D. Declaration by Bidder (Attachment 10) to be submitted on bidder letter head along with technical bid
- E. BOQ/Excel sheet in pdf format with quoted quantity
- F. Bid Security* (Attachment-1)

*Further, Bid shall be not opened in the absence of Bid Security (Attachment- 1)

Date : (Signature).....

Place : (Printed Name).....

(Designation).....

(Seal of the firm)

FORMS & FORMATS

Bid Security Form

Bank Guarantee

(To be stamped in accordance with Stamp Act,
if any, of the Country/ state of the issuing Bank)

Bank Guarantee No.

Date.....

To :

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

Dear Sirs,

In accordance with Invitation for Bids under your Bid Document No , M/s
.....(***)..... having its Registered/Head Office at
.....hereafter called the 'Bidder') wish to participate in the said bid for [Name
of Package].....

As an irrevocable bank guarantee against Bid Security for an amount of

.....(*).....valid fordays

from.....(**).....required to be submitted

by the Bidder as a condition precedent for participation in the said bid which amount is liable to be
forfeited on the happening of any contingencies mentioned in the Bidding Documents.

We, the[Name & address of
the Bank].....having our Head Office

at.....(#).....guarantee and undertake to

pay immediately on demand by.....[NTPC Ltd.]

(hereinafter called the 'Employer').....the amount of

.....(*) without any reservation, protest, demand
and recourse. Any such demand made by the 'Employer' shall be conclusive and binding on us
irrespective of any dispute or difference raised by the Bidder.

This Guarantee shall be irrevocable and shall remain valid up to(@)..... If any further
extension of this guarantee is required, the same shall be extended to such required period (not
exceeding one year) on receiving instructions from M/s.....(***).....[Bidder's
Name]..... on whose behalf this guarantee is issued.

In witness whereof the Bank, through its authorised officer, has set its hand and stamp on
this.....day of.....20.....at.....

.....

(Signature)

.....
(Name)

.....
(Designation with Bank Stamp)

Authorised Vide

Power of Attorney No.....

Date.....

NOTE : 1. (*) The amount shall be as specified in the bidding documents. (**) This shall be the date of opening of bids.

(#) Complete mailing address of the Head Office of the Bank to be given.

(@) This date shall be forty five (45) days beyond the validity of bid.

2. The Bank Guarantee (BG) shall be from a Bank as per provisions of the bidding documents.

3. The BG should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the State(s) where the BG is submitted or is to be acted upon or the rate prevailing in the State where the BG is executed, whichever is higher. The Stamp Paper/e-Stamp paper shall be purchased in the name of Bidder/Bank issuing the guarantee.

4. While getting the Bank Guarantee issued, Bidders are required to ensure compliance to the points mentioned in Bank Guarantee Verification Check List in the bidding documents. Bidders are required to fill up this Check List and enclose the same along with the Bank Guarantee.

5. In case, Bank Guarantee is getting issued from State Bank of India, Bidder to take note of NTPC letter ref. NTPC/FC/CS/BG/01 dated 03.09.2014 and SBI letter ref. CAG-I/AMT-1/2014-15/370 dated 04.09.2014 (attached with Section-III of Bidding Documents).

Form of Insurance Surety Bond towards Bid Security

(To be stamped in accordance with Stamp Act of India)

Insurance Surety Bond No.

Date.....

To

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

Dear Sirs,

In accordance with Invitation for Bids under your Bid Document No., M/s.....[Bidder's Name]..... having its Registered/Head Office at (hereinafter called the 'Bidder') wish to participate in the said bid for [Name of Package] As an irrevocable Insurance Surety Bond against Bid Security for an amount of(*) valid for..... days from(**)..... required to be submitted by the Bidder as a condition precedent for participation in the said bid which amount is liable to be forfeited on the happening of any contingencies as mentioned under the Bidding Documents.

We, the [Name & address of the Insurer]having our Head Office at (#) guarantee and undertake to pay immediately on demand by NTPC Limited (hereinafter called the 'Employer') the amount of(*).....without any reservation, protest, demand and recourse. Any such demand made by the 'Employer' shall be conclusive and binding on us irrespective of any dispute or difference raised by the Bidder and/or any right/remedy available to the bidder in terms thereof.

This Insurance Surety Bond shall be unconditional as well as irrevocable and shall remain valid upto(@)..... If any further extension of this Insurance Surety Bond is required, the same shall be extended to such required period (not exceeding one year) on receiving instructions from M/s[Bidder's Name]..... on whose behalf this Insurance Surety Bond is issued.

In witness where of the Insurer, through its authorised officer, has set its hand and stamp on this.....day of.....20.....at.....
.....

(Signature).....

(Name).....

(Designation with Insurer Stamp)

Authorised Vide

Power of Attorney No.....

Date.....

NOTE : 1. (*) The amount shall be as specified in the Bid Data Sheets.

(**) This shall be the date of opening of Techno-Commercial bids.

(#) Complete mailing address of the Head Office of the Insurer to be given.

(@) This date shall be forty five (45) days after the last date for which the bid is valid.

2. The Insurance Surety Bond shall be from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI) as amended from time to time.

3. The Employer shall be the Creditor, the Bidder shall be the Principal debtor and the Insurance company/Insurer shall be the Surety in respect of the Insurance Surety Bond to be issued by the Insurer.

4. The Insurance Surety Bond should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the state(s) where the Insurance Surety Bond is submitted or is to be acted upon or the rate prevailing in State where the Insurance Surety Bond is executed, whichever is higher. The Stamp Paper/e-stamp paper shall be purchased in the name of Bidder/Insurer issuing the Insurance Surety Bond.

5. While getting the Insurance Surety Bond issued, Bidders are required to ensure compliance to the points mentioned in Form of Bank Guarantee/Insurance Surety Bond Verification Check List enclosed in this Section of Bidding Documents. Further, Bidders are required to fill up this Form and enclose the same with the Insurance Surety Bond.

**BID SECURITY - LETTER OF CREDIT
- NOT APPLICABLE -**

LIST OF BANKS ACCEPTABLE FOR SUBMISSION OF BANK GUARANTEE

SCHEDULED COMMERCIAL BANKS

1. STATE BANK OF INDIA

2. NATIONALISED BANKS

1. Bank of Baroda
2. Bank of India
3. Bank of Maharashtra
4. Canara Bank
5. Central Bank of India
6. Indian Overseas Bank
7. Indian Bank
8. Punjab National Bank
9. Union Bank of India
10. Punjab & Sind Bank
11. UCO Bank

3. SCHEDULED PRIVATE BANKS (INDIAN BANKS)

- 1 Axis Bank Ltd
- 2 Bandhan Bank Limited
- 3 CSB Bank
- 4 City Union Bank
- 5 DCB Bank Ltd
- 6 Dhanlaxmi Bank Ltd
- 7 Federal Bank Ltd
- 8 HDFC Bank Ltd
- 9 ICICI Bank Ltd
- 10 IndusInd Bank Ltd
- 11 IDFC FIRST Bank Limited
- 12 Jammu & Kashmir Bank Ltd
- 13 Karnataka Bank Ltd
- 14 Karur Vysya Bank Ltd
- 15 Kotak Mahindra Bank
- 16 Lakshmi Vilas Bank Ltd
- 17 Nainital Bank Ltd
- 18 RBL Bank Limited
- 19 South Indian Bank Ltd

20 Tamilnad Mercantile Bank Ltd
21 Yes Bank Ltd
22 IDBI Bank Ltd.

4. SCHEDULED PRIVATE BANKS (FOREIGN BANKS)

1 AB Bank Ltd
2 Abu Dhabi Commercial Bank PJSC
3 American Express Banking Corporation
4 Australia & Newzealand Banking Group Limited
5 Barclays Bank Plc
6 Bank of America
7 Bank of Bahrain & Kuwait B.S.C.
8 Bank of Ceylon
9 Bank of China Limited
10 Bank of Nova Scotia
11 BNP Paribas
12 Citi Bank NA
13 Cooperatieve Rabobank UA
14 Crédit Agricole Corporate and Investment Bank
15 Credit Suisse AG
16 CTBC Bank Co Ltd
17 DBS Bank India Ltd
18 Deutsche Bank A.G.
19 Doha Bank Q.P.S.C
20 Emirates NBD Bank (PJSC)
21 First Abu Dhabi Bank PJSC
22 FirstRand Bank Ltd
23 HSBC Ltd
24 Industrial & Commercial Bank of China Ltd
25 Industrial Bank of Korea
26 JP Morgan Chase Bank, National Association
27 JSC VTB Bank
28 KEB Hana Bank
29 Kookmin Bank
30 Krung Thai Bank Public Company Ltd
31 Mashreq Bank PSC
32 Mizuho Bank Ltd
33 MUFG Bank, Ltd
34 NatWest Markets Plc
35 PT Bank Maybank Indonesia TBK
36 Qatar National Bank (Q.P.S.C.)
37 Sberbank
38 SBM Bank (India) Ltd

- 39 Shinhan Bank
- 40 Societe Generale
- 41 Sonali Bank Ltd
- 42 Standard Chartered Bank
- 43 Sumitomo Mitsui Banking Corporation
- 44 United Overseas Bank Ltd
- 45 Westpac Banking Corporation
- 46 Woori Bank

Note - Any Addition/ Deletion/ Modification in Bank list shall be as per changes in Second Schedule List by RBI from time to time.

* Bidder to take note of NTPC letter ref. NTPC/FC/CS/BG/01 dated 03.09.2014 and SBI letter ref. CAG-I/AMT-1/2014-15/370 dated 04.09.2014 attached herewith this Annexure-F4



भारतीय स्टेट बैंक
State Bank of India

कॉरपोरेट लेखा समूह शाखा, जवाहर व्यापार भवन,
11-12 वां तल, 1, टॉलस्टोय मार्ग, नई दिल्ली-110 001
Corporate Accounts Group Branch, Jawahar Vyapar Bhawan,
11th & 12th Floor, 1, Tolstoy Marg, New Delhi-110 001

Tel.: 23374525, 23374505, 23374541 (AMT-1), 23353022 (DGM & COO), 23701043, 23359506 (A & A), 23352995 (CS), 23352968 (IB)
Fax: 23353101 (Sectt.), 23352793 (CS), 23353029 (IB)

Shri K.P. Gupta,
General Manager (Finance),
NTPC Limited
Scope Complex, 7, Institutional Area,
Lodhi Road,
New Delhi: 110 003.

CAG-I/AMT-1/2014-15/370

04.09.2014

Dear Sir,

Format of the Bank Guarantee (BG) issued by State Bank of India

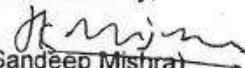
We refer to your letter dated 3rd September 2014 wherein you have requested for excluding bidders/vendors of NTPC from insertion of additional Clause restraining assignment/transferability of BG.

Looking at our relationship with NTPC, as a very special case, we have since obtained waiver from our Authorities for excluding NTPC from insertion of the referred clause for BGs issued in your favour.

We are taking steps to issue suitable instructions to our offices for exclusion of this clause for BGs issued in favour of NTPC. In case any bidder or vendor submits to you a Bank Guarantee issued by any of our Branches containing the additional clause as mentioned above, request you to please bring it to our notice and advise us so that we can take-up with the concerned Branch for excluding it.

This is for your information and necessary action please.

Yours faithfully,


(Sandeep Mishra)

Deputy General Manager &
Relationship Manager, AMT-1



एन टी पी सी लिमिटेड
(भारत सरकार का उद्यम)

NTPC Limited
(A Govt. of India Enterprise)

केन्द्रीय कार्यालय/Corporate Centre

Date : 03rd September 2014

Ref. No.: NTPC/FC/CS/BG/01
Deputy General Manager,
State Bank of India,
CAG Branch,
12 th floor, Jawahar Vyapar Bhavan, 1, Tolstoy Marg,
New Delhi 110 001

Kind Atten: Sh. Sandeep Mishra

Sub: Format of the Bank Guarantee (BG) issued by State Bank of India – reg.

Dear Sir,

NTPC Limited is India's largest Power Company and a 'Maharatna PSU' with a significant presence in the entire value chain of power generation business. The procurement process of NTPC requires its participating Bidders to submit Bank Guarantees (BGs) as Bid security/other securities in a fixed format provided by NTPC.

It has been observed recently that BGs issued by various branches of State Bank of India are inserting the following additional clause.

QUOTE

Notwithstanding anything contrary contained in any law for the time being in force or banking practice, this guarantee shall not be assignable or transferable by the beneficiary. Notice or invocation by any person such as assignee, transferee or agent of beneficiary shall not be entertained by the bank. Any invocation of guarantee can be made only by the beneficiary directly.

UNQUOTE

The inclusion of the aforesaid clause in the BGs restricts the rights of NTPC under the BG and it may not be possible for NTPC to accept the aforesaid clause in the BGs submitted to us by our Bidders. It may also be mentioned that incorporation of the above additional clause in the BG results in the BG being returned by NTPC and consequently rejection of the bids of parties that have submitted such BGs.

In view of the above, it is requested that please take up at appropriate levels so that suitable instructions are issued to all your branches not to incorporate any such additional clause and henceforth BGs may be issued strictly as per NTPC format only.

Kindly acknowledge the receipt of this letter

Yours faithfully,

(K.P.Gupta)
General Manager (Finance)

Copy for Kind information: ED(CC&M) for kind info of u.s.

एन टी पी सी भवन इलेक्ट्रिकल कॉम्प्लेक्स, 7, इंस्टीट्यूशनल एरिया, लोधी रोड, नई दिल्ली-110003 टेल/Tel.: 24360100, फैक्स/Fax: 011-24361018
NTPC Bhawan, SCOPE Complex, 7, Institutional Area, Lodhi Road, New Delhi-110003, वेबसाइट/Website: www.ntpc.co.in

FORM OF EXTENSION OF BANK GUARANTEE

(On Non-judicial stamp paper of same value on which original BG was executed)

Ref. No.

Dated :

To,
NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

Dear Sirs,

Sub : Extension of Bank Guarantee No. dated..... for
.....[indicate value of bank guarantee]..... favouring yourselves,
expiring on..... on account of
M/s*.....(Name of Bidder)..... in respect of Contract for (Insert
package name)..... for (Insert Project name) project,
Contract No. dated..... (hereinafter called original Bank
Guarantee).

At the request of M/s..... we Bank branch
office at and having its Head Office at
..... do hereby extend our liability under the above mentioned
Bank Guarantee No..... dated for a further period of.....Years/Months
from to expire on

Except as provided above, all other terms and conditions of the original Bank Guarantee
No..... dated shall remain unaltered and binding.

Please treat this as an integral part of the original guarantee to which it would be deemed to have
been attached.

(Signature
(Name & Designation)
(Bank's Seal)

Authorised vide Power of Attorney No.....

Date

Dated _____
SEAL OF BANK

Note:

- 1.@ The extension of the Bank Guarantee should be forwarded to the Unit/Project/Corporate Centre, from where the extension has been sought.
2. The extension of BG should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the State(s) where the BG is submitted or is to be acted upon or the rate prevailing in the State where the BG is executed, whichever is higher. The Stamp Paper/e-Stamp paper shall be purchased in the name of Bidder/Bank issuing the guarantee.

PERFORMANCE SECURITY FORM

(To be stamped in accordance with Stamp Act)

Bank Guarantee No.....

To,

Date.....

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

Dear Sirs,

In consideration of the NTPC LTD., (hereinafter referred to as the 'Purchaser' which expression shall unless repugnant to the context or meaning thereof include its successors, administrators and assigns) having awarded to M/s with its Registered/Head Office at (hereinafter referred to as the 'Seller' which expression shall unless repugnant to the context or meaning thereof, includes its successors, administrators, executors & assigns) a Contract by issue of Purchaser's Order No. dated and the same having been unequivocally accepted by the seller resulting in a 'Contract' valued at for

..... (scope of work/contract) and the seller having agreed to provide a contract performance guarantee of the faithful performance of the entire contract equivalent to **Rs. (amount in words)**** to the purchaser.

We,(Name & Address of Bank)..... having our Head Office at

..... (hereinafter referred to as the 'Bank' which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators, executors & assigns), do hereby guarantee and undertake to pay the Purchaser, on demand any and all monies payable by the Seller to the extent of

..... as aforesaid at any time up to (*) without any demur, reservation contest, recourse, or protest and/or without any reference to the Seller. Any such demand made by the Purchaser on the Bank shall be conclusive and binding notwithstanding any difference

between the Purchaser and Seller or any dispute pending before any court Tribunal, Arbitrator or any other Authority. The bank undertakes not to revoke this guarantee during its currency without previous consent of the purchaser and further agrees that this guarantee herein contained shall continue to be enforceable till the purchaser discharges this guarantee.

The Purchaser shall have the fullest liberty without affecting in any way the liability of the Bank under this guarantee, from time to time to extend the time for performance of Contract by the Seller. The Purchaser shall have the fullest liberty, without affecting this guarantee to postpone from time to time the exercise of any powers vested in them or of any right which they might have against the Seller, and to exercise the same at any time in any manner, and either to enforce or to forbear to enforce any covenants, contained or implied in the contract between the Purchaser and the Seller or any other course of remedy or security available to the Purchaser. The Bank shall not be released of its obligations under these presents by any exercise by the Purchaser of its liberty with reference to the matters aforesaid or any of them or by reason of any other act or forbearance or other acts of omission or commission on the part of the purchaser or any other indulgence shown by the Purchaser or by any other matter or thing whatsoever which under law would, but for this provision, have the effect of relieving the Bank.

The Bank also agrees that the purchaser at its option shall be entitled to enforce this guarantee against the bank as a principal debtor, in the first instance without proceeding against the seller and notwithstanding any security or other guarantee that the purchaser may have in relation to the seller's liabilities.

Notwithstanding anything contained hereinabove our liability under this guarantee is restricted to and it shall remain in force up to and including (*)..... and shall be extended from time to time for such period (not exceeding one year), as may be desired by M/s on whose behalf this guarantee has been given.

Dated this day of 20..... at
.....

WITNESS

1) SIGNATURE	SIGNATURE
NAME	NAME
OFFICIAL ADDRESS	DESIGNATION
	BANK'S COMMON SEAL
2) SIGNATURE	ATTORNEY AS PER POWER OF ATTORNEY
NAME	NO.....
OFFICIAL ADDRESS	DATE

NOTE :

1. (*) The Date will be Three Months beyond the expiry of the Contract as specified in the order.
- (**) Security deposit @ 5% of total contract value has to be submitted. Total Security deposit shall be submitted within 30 days of placement as per GPC Clause 28.0.
2. The Bank Guarantee shall be from a bank as per provisions of bidding documents.
3. While getting the Bank Guarantee issued, Bidders are required to ensure compliance to the points mentioned in the Bank Guarantee Verification Check List in the bidding documents. Bidders are required to fill up this check List and enclose the same along with the Bank Guarantee.
4. The Stamp paper of appropriate value shall be purchased in the name of guarantee issuing bank or the party on whose behalf the BG is being issued. The Bank Guarantee shall be issued on non-judicial Stamp paper of appropriate value as per Stamp act prevailing in the States where the BG is to be submitted or is to be acted upon or the rate prevailing in the state where the BG is executed, whichever is higher.
5. The details of secure SFMS (in case of BGs issued from within India) or SWIFT (in case of BGs issued from outside India) sent by Supplier's Bank to Employer's Beneficiary Bank details of which are given in GPC must be furnished with the BG.

**Form of Insurance Surety Bond towards Performance Security
(To be suitably incorporated by concerned package coordinator)**

(To be stamped in accordance with Stamp Act of India)

Insurance Surety Bond No.

Date.....

To,

NTPC Limited,

Engineering Office Complex,

Plot No. A-8A, Sector 24, NOIDA,

Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

Dear Sirs,

In consideration of the [Employer's Name] (Hereinafter referred to as the 'Employer' which expression shall unless repugnant to the context or meaning thereof, include its successors, administrators and assigns) having awarded to M/s..... [Contractor's Name]..... with its Registered /Head Office at (Hereinafter referred to as the 'Contractor', which expression shall unless repugnant to the context or meaning thereof, include its successors administrators, executors and assigns), a Contract by issue of Employer's Notification of Award No. dated..... and the same having been unequivocally accepted by the contractor, resulting into a Contract bearing No..... dated, valued at for and the Contractor having agreed to provide a Contract Performance Guarantee for the faithful performance of the entire Contract equivalent to(*).....%(..... percent) of the said value of the Contract to the Employer.

We[Name & Address of the Insurer].....having its Head Office at.....(hereinafter referred to as the 'Insurer', which expression shall, unless repugnant to the context or meaning thereof, include its successors, administrators, executors and assigns) do hereby guarantee and undertake to pay the Employer, on demand any and all amount payable by the Contractor to the extent of(*)..... as aforesaid at any time up to(@).....[days/month/year] without any condition, demur, reservation, contest, recourse or protest and/or without any reference to the Contractor. Any such demand made by the Employer on the Insurer shall be conclusive and binding notwithstanding any difference between the Employer and the Contractor or any dispute pending before any Court, Tribunal, Arbitrator or any other authority. The Insurer undertakes not to revoke this Insurance Surety Bond during its currency and or any period extended under the contract, without prior consent of the Employer and further agrees that the guarantee herein contained shall be enforceable till ninety (90) days after expiry of its validity.

The Employer shall have the fullest liberty, without affecting in any way the liability of the Insurer under this Insurance Surety Bond, from time to time to extend the performance of the Contract by the Contractor for the purpose of which, the Insurer shall be liable to extend the validity of the present Insurance Surety Bond without any demur, condition, protest and the Insurer shall at no point in time have an option of revoking the same, The Employer shall have the fullest liberty, without affecting this Insurance Surety Bond, to postpone from time to time the exercise of any powers vested in them or of any right which they might have against the Contractor, and to exercise the same at any time in any manner, and either to enforce or to forbear to enforce any covenants, contained or implied, in the Contract between the Employer and the Contractor or any other course or remedy or security available to the Employer. The Insurer shall not be released of

its obligations under these presents by any exercise by the Employer of its liberty with reference to the aforesaid or any of them or by reason of any other act or forbearance or other acts of omission or commission on the part of the Employer or any other indulgence shown by the Employer or by any other matter or thing whatsoever

which under law would, but for this provision, have the effect of relieving the Insurer. The Insurer also agrees and undertakes that the Employer at its option shall be entitled to enforce this Insurance Surety Bond against the Insurer as a Surety, in the first instance without proceeding against the

Contractor and notwithstanding any security or other guarantee that the Employer may have in relation to the Contractor's liabilities.

Notwithstanding anything contained hereinabove our liability under this Insurance Surety Bond is restricted to.....(*)..... and it shall remain in force upto and including(@)..... and shall be extended from time to time for such period (not exceeding one year), as may be desired by M/s[Contractor's Name]..... on whose behalf this Insurance Surety Bond has been given.

Dated this day of 20..... at.....

WITNESS :

1.

(Signature)

.....

(Name)

.....

(Official Address)

.....

(Signature)

.....

(Name)

.....

(Designation with

Insurer Stamp)

Authorised Vide Power of

Attorney No.....

Date.....

2.

(Signature)

.....

(Name)

.....

(Official Address)

Notes : 1. (*) This sum shall be Five percent (05%) of the Contract Price.

(@) This date will be ninety (90) days beyond the Defect liability period as specified in the Contract.

2. The Insurance Surety Bond shall be from an Insurer as per guidelines issued by Insurance Regulatory and Development Authority of India (IRDAI).

3. The Employer shall be the Creditor, the Contractor shall be the Principal debtor and the Insurance company/Insurer shall be the Surety in respect of the Insurance Surety Bond to be issued by the Insurer.

4. The Insurance Surety Bond should be on Non-Judicial stamp paper/e-stamp paper of appropriate value as per Stamp Act prevailing in the state(s) where the Insurance Surety Bond is submitted or is to be acted upon or the rate prevailing in State where the Insurance Surety Bond is executed, whichever is higher. The Stamp Paper/e-stamp paper shall be purchased in the name of Bidder/Insurer issuing the Insurance Surety Bond.

5. While getting the Insurance Surety Bond issued, the Contractor is required to ensure compliance to the points mentioned in Form of Bank Guarantee/ Insurance Surety Bond Verification Check List. Further, the Contractor is required to fill up this Form and enclose the same with the Insurance Surety Bond.

CHECK LIST FOR BANK GUARANTEE VERIFICATION BY BIDDER**BANK GUARANTEE VERIFICATION CHECKLIST
FOR BID SECURITY**

1. Bank Guarantee No.
2. Issuing Bank
3. Amount of BG
4. Nature of BG & No. of Pages
5. Validity of BG
6. Package Description
7. Bidder / Contracts Ref.
(Name, Address, Tel. & Fax No., email)
8. Bank Reference
(Name, Address, Tel. & Fax No., email)

CHECK LIST

S.No.	Details of Checks	Yes/No
a)	Is the BG on non-judicial stamp paper of appropriate value, as per Stamp Act ?[i.e.]	
b)	Whether date, purpose of purchase of stamp paper and name of the Owner are indicated on the back of stamp paper under the Signature of Stamp vendor ? (The date of purchase of stamp paper should be of any date on or before the date of execution of BG and the stamp paper should be purchased either in the name of the executing Bank or the Bidder on whose behalf the BG has been issued. The Stamp Papers (other than e-stamp paper) should be duly signed by the stamp vendor).	

S.No.	Details of Checks	Yes/No
c)	In case of BGs from Banks abroad, has the BG been executed on Letter Head of the Bank.	
d)	Has the executing officer of BG indicated his name, designation and Power of Attorney No. / Signing Power No., on the BG?	
e)	Is each page of BG duly signed/initialed by executant and whether stamp of Bank is affixed thereon? Whether the last page is signed with full particulars including two (2) witnesses under seal of Bank as required in the prescribed proforma?	
f)	Does the Bank Guarantee compare verbatim with the Proforma prescribed in the Bidding Documents?	
g)	Are the factual details such as Bidding Documents No./ Specification No., Amount of BG and Validity of BG correctly mentioned in the BG?	
h)	Whether overwriting / cutting, if any on the BG have been properly authenticated under signature & seal of executants?	
i)	Whether the BG has been issued by a Bank in line with the provisions of Bidding Documents?	
j)	In case BG has been issued by a Bank other than those specified in Bidding Document, is the BG confirmed by a Bank in India acceptable as per Bidding Documents?	

Date: _____ Signature

Place: _____ Printed Name

(Designation)

(Seal of the firm)

Note: The Bidder is required to fill up this form and enclose along with the Bid Security / Bank Guarantee.

**LIST OF BANKS FOR SUBMISSION OF BANK GUARANTEE AS BID SECURITY AND
CONTRACT PERFORMANCE GUARANTEE**

SCHEDULED COMMERCIAL BANK LIST

A STATE BANK OF INDIA

B NATIONALISED BANKS

- 1 Bank of Baroda
- 2 Bank of India
- 3 Bank of Maharashtra
- 4 Canara Bank
- 5 Central Bank of India
- 6 Indian Overseas Bank
- 7 Indian Bank
- 8 Punjab National Bank
- 9 Union Bank of India
- 10 Punjab & Sind Bank
- 11 UCO Bank

C SCHEDULED PRIVATE BANKS (INDIAN BANKS)

- 1 Axis Bank Ltd
- 2 Bandhan Bank Limited
- 3 CSB Bank
- 4 City Union Bank
- 5 DCB Bank Ltd
- 6 Dhanlaxmi Bank Ltd
- 7 Federal Bank Ltd
- 8 HDFC Bank Ltd
- 9 ICICI Bank Ltd
- 10 IndusInd Bank Ltd
- 11 IDFC FIRST Bank Limited
- 12 Jammu & Kashmir Bank Ltd
- 13 Karnataka Bank Ltd
- 14 Karur Vysya Bank Ltd

- 15 Kotak Mahindra Bank
- 16 Lakshmi Vilas Bank Ltd
- 17 Nainital Bank Ltd
- 18 RBL Bank Limited
- 19 South Indian Bank Ltd
- 20 Tamilnad Mercantile Bank Ltd
- 21 Yes Bank Ltd
- 22 IDBI Bank Ltd

.D SCHEDULED PRIVATE BANKS (FOREIGN BANKS)

- 1 AB Bank Ltd
- 2 Abu Dhabi Commercial Bank PJSC
- 3 American Express Banking Corporation
- 4 Australia & Newzealand Banking Group Limited
- 5 Barclays Bank Plc
- 6 Bank of America
- 7 Bank of Bahrain & Kuwait B.S.C.
- 8 Bank of Ceylon
- 9 Bank of China Limited
- 10 Bank of Nova Scotia
- 11 BNP Paribas
- 12 Citi Bank NA
- 13 Cooperatieve Rabobank UA
- 14 Crédit Agricole Corporate and Investment Bank
- 15 Credit Suisse AG
- 16 CTBC Bank Co Ltd
- 17 DBS Bank India Ltd
- 18 Deutsche Bank A.G.
- 19 Doha Bank Q.P.S.C
- 20 Emirates NBD Bank (PJSC)
- 21 First Abu Dhabi Bank PJSC
- 22 FirstRand Bank Ltd
- 23 HSBC Ltd

- 24 Industrial & Commercial Bank of China Ltd
- 25 Industrial Bank of Korea
- 26 JP Morgan Chase Bank, National Association
- 27 JSC VTB Bank
- 28 KEB Hana Bank
- 29 Kookmin Bank
- 30 Krung Thai Bank Public Company Ltd
- 31 Mashreq Bank PSC
- 32 Mizuho Bank Ltd
- 33 MUFG Bank, Ltd
- 34 NatWest Markets Plc
- 35 PT Bank Maybank Indonesia TBK
- 36 Qatar National Bank (Q.P.S.C.)
- 37 Sberbank
- 38 SBM Bank (India) Ltd
- 39 Shinhan Bank
- 40 Societe Generale
- 41 Sonali Bank Ltd
- 42 Standard Chartered Bank
- 43 Sumitomo Mitsui Banking Corporation
- 44 United Overseas Bank Ltd
- 45 Westpac Banking Corporation
- 46 Woori Bank

*Note - Any Addition/ Deletion/ Modification in Bank list shall be as per changes in Second Schedule List by RBI from time to time



भारतीय स्टेट बैंक
State Bank of India

कॉरपोरेट लेखा समूह शाखा, जवाहर व्यापार भवन,
11-12 वां तल, 1, टॉलस्टोय मार्ग, नई दिल्ली-110 001
Corporate Accounts Group Branch, Jawahar Vyapar Bhawan,
11th & 12th Floor, 1, Tolstoy Marg, New Delhi-110 001

Tel.: 23374525, 23374505, 23374541 (AMT-1), 23353022 (DGM & COO), 23701043, 23359506 (A & A), 23352995 (CS), 23352968 (IB)
Fax: 23353101 (Sectt.), 23352793 (CS), 23353029 (IB)

Shri K.P. Gupta,
General Manager (Finance),
NTPC Limited
Scope Complex, 7, Institutional Area,
Lodhi Road,
New Delhi: 110 003.

CAG-I/AMT-1/2014-15/370

04.09.2014

Dear Sir,

Format of the Bank Guarantee (BG) issued by State Bank of India

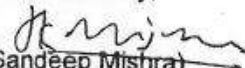
We refer to your letter dated 3rd September 2014 wherein you have requested for excluding bidders/vendors of NTPC from insertion of additional Clause restraining assignment/transferability of BG.

Looking at our relationship with NTPC, as a very special case, we have since obtained waiver from our Authorities for excluding NTPC from insertion of the referred clause for BGs issued in your favour.

We are taking steps to issue suitable instructions to our offices for exclusion of this clause for BGs issued in favour of NTPC. In case any bidder or vendor submits to you a Bank Guarantee issued by any of our Branches containing the additional clause as mentioned above, request you to please bring it to our notice and advise us so that we can take-up with the concerned Branch for excluding it.

This is for your information and necessary action please.

Yours faithfully,


(Sandeep Mishra)

Deputy General Manager &
Relationship Manager, AMT-1



एन टी पी सी लिमिटेड
(भारत सरकार का उद्यम)

NTPC Limited
(A Govt. of India Enterprise)

केन्द्रीय कार्यालय/Corporate Centre

Date : 03rd September 2014

Ref. No.: NTPC/FC/CS/BG/01

Deputy General Manager,
State Bank of India,
CAG Branch,
12 th floor, Jawahar Vyapar Bhavan, 1, Tolstoy Marg,
New Delhi 110 001

Kind Atten: Sh. Sandeep Mishra

Sub: Format of the Bank Guarantee (BG) issued by State Bank of India – reg.

Dear Sir,

NTPC Limited is India's largest Power Company and a 'Maharatna PSU' with a significant presence in the entire value chain of power generation business. The procurement process of NTPC requires its participating Bidders to submit Bank Guarantees (BGs) as Bid security/other securities in a fixed format provided by NTPC.

It has been observed recently that BGs issued by various branches of State Bank of India are inserting the following additional clause.

QUOTE

Notwithstanding anything contrary contained in any law for the time being in force or banking practice, this guarantee shall not be assignable or transferable by the beneficiary. Notice or invocation by any person such as assignee, transferee of agent of beneficiary shall not be entertained by the bank. Any invocation of guarantee can be made only by the beneficiary directly.

UNQUOTE

The inclusion of the aforesaid clause in the BGs restricts the rights of NTPC under the BG and it may not be possible for NTPC to accept the aforesaid clause in the BGs submitted to us by our Bidders. It may also be mentioned that incorporation of the above additional clause in the BG results in the BG being returned by NTPC and consequently rejection of the bids of parties that have submitted such BGs.

In view of the above, it is requested that please take up at appropriate levels so that suitable instructions are issued to all your branches not to incorporate any such additional clause and henceforth BGs may be issued strictly as per NTPC format only.

Kindly acknowledge the receipt of this letter

Yours faithfully,

(K.P.Gupta)
General Manager (Finance)

Copy for Kind information: ED(CC&M) for kind info of u.s.

एन टी पी सी भवन स्कोप कॉम्प्लेक्स, 7, इंस्टीट्यूशनल एरिया, लोधी रोड, नई दिल्ली-110003 टेल/Tel.: 24360100, फैक्स/Fax: 011-24361018
NTPC Bhawan, SCOPE Complex, 7, Institutional Area, Lodhi Road, New Delhi-110003, वेबसाइट/Website: www.ntpc.co.in

(No Deviation Certificate)

Bid Ref. No:

DATED:

Bidder's Name and Address:

To

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

Dear Sirs,

1. With reference to our Bid Proposal No dated for [Insert Name of the Package “**Procurement of Non-Torrefied Biomass Pellets on FOR Power station basis for station as per Annexure III to section IV Technical specifications Bid Document No. CS-0011-112R-9**”, we hereby confirm that we comply with all terms, conditions and specifications of the Bidding Documents read in Conjunction with Amendment(s)/Clarification(s)/ Addenda/Errata (if any) issued by the Employer prior to opening of Techno Commercial Bids and the same has been taken into consideration while making our Techno-Commercial Bid & Price Bid and we declare that we have not taken any deviation in this regard.
- 2.0 We further confirm that any deviation, variation or additional condition etc. or any mention, contrary to Bidding Documents and its Amendment(s)/ Clarification(s)/ Addenda/ Errata (if any) as mentioned at 1.0 above found anywhere in our Techno-Commercial Bid and/or Price Bid, implicit or explicit, shall stand unconditionally withdrawn, without any cost implication whatsoever to Employer, failing which the bid security shall be forfeited.

Note: The aforesaid declaration is to be accepted through Annexure-C, Certificate for Compliance to be submitted online along with Techno-Commercial bid through e-tendering portal by accepting the attribute Total Compliance to all provisions of Bidding Documents / NIL deviation.

“COMPLIANCE ON ELEGIBILITY CRITERIA”

DATED:

Bidder's Name and Address:

To

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

Dear Sirs,

We hereby confirm the following:

1. The details furnished by us in attachment of bid, for establishing the compliance to specified eligibility criteria are in accordance with ITB, Clause 1.4 of Volume II of the Bidding documents.

Note: The aforesaid declaration is to be accepted through Annexure-C, Certificate for Compliance to be submitted online along with Techno-Commercial bid through e-tendering portal by accepting the attribute Compliance on Qualifying Requirement.

“ACCEPTANCE OF FRAUD PREVENTION POLICY OF NTPC”

Bid Ref. No: CS-0011-112R-9

DATED:

Bidder's Name and Address:

To

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

We have read the contents of the Fraud Prevention Policy of NTPC displayed on its tender website <http://www.ntpctender.com> and undertake that we along with our associates/collaborators/ sub-contractors /sub-vendors / consultants/ service providers shall strictly abide by the provisions of the Fraud Prevention Policy of NTPC.

Note: The aforesaid declaration is to be accepted through Annexure-C, Certificate for Compliance to be submitted online along with Techno-Commercial bid through e-tendering portal by accepting the attribute Compliance on Fraud Prevention Policy.

“COMPLIANCE ON POLICY OF DEBARMENT FROM BUSINESS DEALINGS OF NTPC”

DATED:

Bidder's Name and Address:

To

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

We have read the contents of the Policy of Debarment of Business Dealings from NTPC attached with this Bidding Document and agree to abide by this policy. Further, in terms of requirement under Policy of Debarment of Business Dealings we also declare the following:

- a) We have not been Banned/ Blacklisted as on date of submission of bid by Ministry of Power or Government of India or any State Government or PSU or Regulatory Institution.
- b) We have not employed any public servant dismissed/removed or person convicted for an offence involving corruption or abetment of such offences.
- c) Our Director(s)/Owner(s)/Proprietor/Partner(s) have not been convicted by any court of law for offences involving corrupt and fraudulent practices including moral turpitude in relation to business dealings with Government of India or NTPC or NTPC's group companies during the last five years.

We also accept that if at any point subsequent to award of Contract, the declarations given above are found to be incorrect, NTPC Limited shall have the full right to terminate the Contract and take any action as per applicable laws for breach of contract including forfeiture of Bid Security/Performance Bank Guarantee.

Note: The aforesaid declaration is to be accepted through Annexure-C, Certificate for Compliance to be submitted online along with Techno-Commercial bid through e-tendering portal by accepting the attribute Compliance on Policy for Debarment from Business Dealings.

Date:

Signature

Place:

Printed Name

(Designation)

(Seal of the firm)

-----Not Applicable-----

INTEGRITY PACT

Between

NTPC Ltd., a Govt. of India Enterprise (hereinafter referred to as "The Employer")

and

..... (hereinafter referred to as "The Bidder/Contractor ")

and

..... (hereinafter referred to as "JV Partner/ Consortium Members"

(if applicable)

Preamble

The Employer invites the bids from all eligible bidders and intends to enter into Contract for with the successful bidder(s), as per organizational systems and procedures. The Employer values full compliance with all relevant laws and regulations, and the principles of economical use of resources, and of fairness and transparency in its relations with its Bidder(s) and/or Contractor(s).

In order to achieve these goals, the Employer will appoint Independent External Monitor(s) (IEM), who will monitor the bidding process and the execution of the Contract for compliance with the principles mentioned above.

Section 1 Commitments of the Employer

1. The Employer Commits itself to take all measures necessary to prevent corruption and to observe the following principles in this regard:-
 - a) No employee of the Employer, either in person or through family members including relatives, will in connection with the bidding for or the execution of a Contract, demand or accept a promise for or accept for him/herself or for a third person, any material or immaterial benefit to which he/she is not legally entitled to.
 - b) The Employer shall, during the bidding process treat all Bidders with equity and reason. The Employer will, in particular, before and during the bidding process, provide to all Bidders the same information and will not provide to any Bidder confidential/additional information through which the Bidder(s) could obtain an advantage in relation to the bidding process or the Contract execution.
 - c) The Employer will exclude from the process all known prejudiced persons.
2. If the Employer obtains information on the conduct of any of its employees which is a criminal offence under the IPC/PC Act or if there be a substantive suspicion in this regard, the Employer will inform the Chief Vigilance Officer and in addition can initiate disciplinary actions.

Section 2 Commitments and Undertakings by the Bidder/Contractor

1. The Bidder/Contractor commits and undertakes to take all measures necessary to prevent malpractices & corruption. He commits himself to observe the following principles during his participation in the bidding process and during the execution of the contract:
 - a) The Bidder/ Contractor undertakes not to, directly or through any other person or firm offer, promise or give or influence to any employee of the Employer associated with the bidding process or the execution of the contract or to any third person on their behalf any material or immaterial benefit which he/she is not legally entitled, in order to obtain in exchange any advantage of any kind whatsoever during the bidding process or during the execution of the contract.
 - b) The Bidder/ Contractor undertake not to enter into any undisclosed agreement or understanding, whether formal or informal with other Bidders. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other action to restrict competitiveness or to introduce cartelization in the bidding process.
 - c) The Bidder/Contractor undertakes not to commit any offence under the relevant Anti-corruption Laws of India; further the Bidder/Contractor will not use improperly, any information or document provided by the Employer as part of the business relationship, regarding plans, technical proposals and business details, including information contained or transmitted electronically for purposes of competition or personal gain and will not pass the information so acquired on to others.
 - d) The Bidder/ Contractor, when presenting his bid, undertakes to disclose any and all payments made, or is committed to or intends to make to agents, brokers or any other intermediaries in connection with the bidding process and / or award of the contract.
 - e) The Foreign Bidder/ Contractor, when presenting his bid, undertakes to disclose the name and address of agents and representative in India. Further, Indian Bidder/ Contractor when presenting his bid, undertakes to disclose the name and address of its foreign principals or associates.
2. The Bidder/ Contractor will not instigate and allure third persons/parties to commit offences outlined above or be an accessory to such offences.

Section 3 Disqualification from Bidding Process and Exclusion from Future Contracts

1. If the Bidder(s)/ Contractor(s), before award or during execution has committed a transgression through a violation of any provisions of Section 2 so as to put his reliability or credibility as Bidder into question, the Employer shall be entitled to disqualify the Bidder(s)/ Contractor(s) from the bidding process or to terminate the contract, if signed on that ground.
2. If the Bidder/ Contractor has committed a transgression through a violation of Section 2 such as to put his reliability or credibility into question, the Employer shall be entitled to exclude including blacklist and put on holiday the Bidder/ Contractor for any future tenders/contract award process. The imposition and duration of the exclusion will be determined by the severity of the transgression. The severity will be determined by the Employer taking into consideration the full facts and circumstances of each case particularly taking into account the number of transgressions, the position of the transgressors within the company hierarchy of the Bidder and the amount of the damage. The exclusion will be imposed for a period not exceeding two (02) years.
3. A transgression is considered to have occurred if the Employer after due consideration of the available evidence concludes that no reasonable doubt is possible.
4. The Bidder with its free consent and without any influence agrees and undertakes to respect and uphold the Employer's absolute rights to resort to and impose such exclusion and further accepts and undertakes not to challenge or question such exclusion on any ground, including the lack of any hearing before the decision to resort to such exclusion is taken. This undertaking is given freely and after obtaining independent legal advice.
5. Subject to full satisfaction of the Employer, the exclusion of Bidder/ Contractor could be revoked by the Employer if the Bidder/ Contractor can prove that he has restored/ recouped the damage caused by him and has installed a suitable corruption prevention system in his organization.

Section 4 Compensation for Damages including Forfeiture of Earnest Money Deposit/ Security Deposit/ Performance & Advance Bank Guarantees

1. If the Employer has disqualified the Bidder/ Contractor from the bidding process or has terminated the contract pursuant to Section 3, the Employer shall forfeit the Earnest Money Deposit/Bid Security, encash Contract Performance Bank

Guarantees in addition to excluding the bidder from the future award process and terminating the contract.

Annexure – F15

Page 4 of 6

2. In addition to 1 above, the Employer shall be entitled to take recourse to the relevant provisions of the contract related to Termination of Contract due to Contractor's Default.

Section 5 Previous Transgressions

1. The Bidder swears on oath that no previous transgression impinging on anti-corruption principles / any malpractice as mentioned in Section-2 has occurred in the last three years immediately before signing of this Integrity Pact, with any other company / any Public Sector Enterprise/ Undertaking in India / any Government Department in India.
2. If the Bidder makes incorrect statement on previous transgression as mentioned above in para 1, Bidder can be disqualified from the bidding process or the contract, if already awarded, can be terminated on this ground

Section 6 Company Code of Conduct

Bidders are also advised to have a company code of conduct (clearly rejecting the use of bribes and other unethical behaviour) and a compliance program for the implementation of the code of conduct throughout the company.

Section 7 Independent External Monitors (IEM)

1. The Employer will appoint competent and credible Independent External Monitor for this Pact. The task of the IEMs is to review independently and objectively, whether and to what extent the parties comply with the obligations under this agreement.
2. The IEMs are not subject to instructions by the representatives of the parties and performs his functions neutrally and independently. He shall report to CMD of the Employer or a person authorized by him.
3. The Bidder/Contractor accepts that the IEMs have the right to access without restriction to all Project documentations of the Employer including that provided by the Contractor. The Contractor will also grant the IEMs, upon his request and demonstration of a valid interest, unrestricted and unconditional access to his Project Documentations. The same is applicable to Subcontractors. The IEMs are under contractual obligation to treat the information and documents of the Bidder / Contractor / Sub-Contractors/ JV partners/Consortium member with confidentiality.
3. The Employer will provide to the IEMs sufficient information about all meetings among the parties related to the Project provided such meetings could have an impact on the contractual relations between the Employer and the Contractor. The parties offer to the IEMs the option to participate in such meetings.

4. As soon as the IEMs notices, or believes to notice, a violation of this agreement, he will so inform the Management of the Employer (CMD of the Employer or a person authorized by him) and request to discontinue or to take corrective action, or to take other relevant action. The IEMs can in this regard submit non-binding recommendations. Beyond this, the IEMs has no right to demand from the parties that they act in a specific manner, refrain from action or tolerate action. However, Independent External Monitor shall give an opportunity to the bidder/contractor to present its case before making its recommendations to the Employer.
5. The IEMs will submit a written report to CMD of the Employer or a person authorized by him within 30 days from the date of reference or intimation to him by the Employer and, should the occasion arise, submit proposals for correcting problematic situations.
6. The Bidder / Contractor accepts that they shall not approach courts while the matter / complaint / dispute has been referred to the IEM in terms of this pact and they shall await IEM's decision before approaching any Court.
7. If the IEMs have reported to CMD of the Employer or a person authorized by him a substantiated suspicion of an offence under relevant IPC/ PC Act, and he has not, within reasonable time, taken visible action to proceed against such offence or reported it to the Chief Vigilance Officer, the IEMs may also transmit this information directly to the Central Vigilance Commissioner, Government of India.
8. The word " IEM" will include Singular or Plural.

Section 8 Pact Duration

This Pact comes into force from the date of signing by all the parties. It shall expire for the Contractor 12 months after the last payment under the respective Contract, and for all other unsuccessful bidders 6 months after the Contract has been awarded.

Section 9 Miscellaneous Provisions

1. This Pact is subject to Indian Law. The place of performance and jurisdiction shall be New Delhi.
2. Should one or several provisions of this Pact turn out to be invalid; the remainder of this Pact remains valid. In this case, the parties will strive to come to an agreement to their original intentions.
3. The actions stipulated in this Integrity Pact are without prejudice to any other legal action that may follow in accordance with the provisions of the extant law in force relating to any civil or criminal proceedings.

4. If the Contractor is a JV partnership / Consortium, this agreement must be signed by all the partners of JV / Consortium Partners as the case may be.

The Parties hereby sign this Integrity Pact aton this day of.....20....

Employer

Bidder/ Contractor

Joint Venture Partner(s)/
Consortium member(s)
(As Applicable)

Witness

Witness

Witness

1. _____

1. _____

1. _____

2. _____

2. _____

2. _____

Note: The aforesaid declaration is to be accepted through Annexure-C, Certificate for Compliance to be submitted online along with Techno-Commercial bid through e-tendering portal by accepting the attribute “Do you Commit to all the provisions of the Integrity Pact?” by the Bidder.

**DECLARATION OF ABSENCE OF CONFLICT OF INTEREST WITH
CONCILIATION COMMITTEES OF INDEPENDENT EXPERTS (CCIE)**

To :
NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

Dear Sirs,

- 1.0** We, M/s (Name of the Contractor) have been awarded the contract for (Name of the package) vide Notification (s) of Award No..... dated.....
- 2.0** As per the provisions of the contract, we hereby propose the following CCIEs, in priority order, as per the list enclosed in the Special Conditions of Contract, as amended from time to time by Ministry of Power, for finalization of CCIE by CEA:
- 1.....
2.....
3.....
- 3.0** We confirm that we do not have any conflict of interest with the aforesaid experts and they have not been engaged for providing any services to us in the last five years.
- 4.0** We confirm that in case of any form of conflict of interest (possible or actual) which may inadvertently emerge during the conciliation proceedings by CCIE, the same will be duly reported to you.
- 5.0** We understand that NTPC may withdraw from the conciliation proceedings, if any conflict of interest with us is found out which have been intentionally concealed, and the matter may be referred to Ministry of Power. Further, action may be taken against us in respect of Fraud Prevention Policy of NTPC.

Date :

Place :

Signature

Printed Name

(Designation)

(Common Seal)

Certificate from Bank regarding BG charges

TO WHOMSOEVER IT MAY CONCERN

This is to certify that we have issued/ extended/ amended Bank Guarantee (BG) Number..... amounting to (in number and words in Contract Currency) in favour of NTPC Limited on behalf of M/S (Contractor name) vide their request reference..... dated..... (DD/MM/YYYY) for the period (from)..... (to)..... We confirm that the bank commission (excluding Stamp paper, Out of Pocket Expenses (OPE) and GST on OPE) amounting to (amount and currency) for issuance/ extension/ amendment of the aforesaid BG have been recovered from M/s (Contractor name).

We further confirm that the commission charged on issuance/ extension/ amendment of the aforesaid BG is as per the prescribed rates of the Bank. Further the commission charged by the Bank as per card rates / sanctioned rates is customer/ borrower specific and is uniform for all BGs issued at the request of said customer/ borrower irrespective of beneficiary.

Chief Manager/Branch Manager

SS No: -

ABC Bank Ltd

New Delhi.

(With Seal of Bank Official)

(Compliance to “Conflict of Interest” provisions)

Bidder's Name and Address:

To

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

We confirm that we have read and understood the ITB Clause 43.0 regarding “Conflict of Interest” and our bid is in compliance to this clause.

In case it is established that we have provided any false information in pursuance of the aforesaid ITB Clause 43.0, while competing for this contract, then our bid shall be rejected and bid security shall be forfeited.

We also understand that in case we become successful bidder, if it is established that we have not complied with terms of aforesaid ITB Clause 43.0, during execution of contract, this would be considered as fraudulent practice as mentioned in para 5.1 (j) of “Policy for Debarment from Business Dealings” and shall be dealt accordingly.

Note: The aforesaid declaration is to be accepted through Annexure-C, Certificate for Compliance to be submitted online along with Techno-Commercial bid through e-tendering portal by accepting the attribute Compliance to “Conflict of Interest” provisions.

Date:

Signature

Place:

Printed Name

(Designation)

(Seal of the firm)

(Adherence to Employer's Anti-Bribery and Anti-Corruption (ABAC) Policy)

Bidder's Name and Address:

To

NTPC Limited,

Engineering Office Complex,

Plot No. A-8A, Sector 24, NOIDA,

Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

We and our employees along with our associate / collaborator/ subcontractors / sub vendors / consultants / service providers shall strictly abide by 'Anti-Bribery and Anti-Corruption (ABAC) Policy' of Employer as displayed on tender website at <https://ntpctender.ntpc.co.in/> under section 'policy docs' and undertake that we represent and confirm that we are aware of, understand, and will comply with all applicable laws and regulations relating to anti-corruption and anti-bribery and the ABAC Policy of Employer. In addition, each Party agrees that so long as it is conducting business with the other Party or the other Party's affiliates, it will not, directly or indirectly, on behalf of the other Party or the other Party's affiliates promise, offer, solicit, authorize, give or receive bribe, or other corrupt payment, item or service of value, or any other corrupt advantage, whether in cash or in kind, in relation to the participation in the tender.

Note: The aforesaid declaration is to be accepted through Annexure-C, Certificate for Compliance to be submitted online along with Techno-Commercial bid through e-tendering portal by accepting the attribute Adherence to Employer's Anti-Bribery and Anti-Corruption (ABAC) Policy provisions.

Date:

Signature

Place:

Printed Name

(Designation)

(Seal of the firm)

BG forwarding letter from Bank to Unified Treasury in Bank's letterhead

To :

Unified Treasury (BG Group)
 Administrative Building, NCPS, Dadri
 NTPC Limited,
 PO. Vidyut Nagar
 Distt: Gautam Budh Nagar,
Uttar Pradesh- 201008.

Sub: Submission of Bank Guarantee No.

Bank Guarantee No.	
Date of Issue	dd.mm.yyyy
Guarantee Amount	<u>Currency Amount</u>
Date of Expiry of BG	dd.mm.yyyy
Last date of lodgement of claim	dd.mm.yyyy
<i>Name, Address and IFSC code of BG issuing Bank</i>	<i>Name:</i> <i>Address:</i> <i>IFSC code:</i>
Contract/Letter of Award/PO No.	
Name & Address of the Applicant / Contractor	<i>Name:</i> <i>Address:</i>

We confirm that SFMS has been sent to your beneficiary bank as below:

ICICI Bank Limited, Connaught Place Branch,
 9A, Phelps Building, Inner Circle, New Delhi - 110001
 IFSC Code: ICIC0000007

We also confirm the genuineness of the signatures appearing on the said guarantee/extension and further also confirm that the same has been signed by the competent authority of the bank.

Date :

Signature.....

Place :

Printed Name.....

(Designation)

(Common Seal)

Clarification No.-01 to Bidding Document for Procurement of Biomass Pellets on FOR Power Station basis for NTPC Vindhyachal, Sipat, Korba and Lara Plants (LOT-2)		
S.No.	Bidder's Query/Suggestion	NTPC' Reply
1	In one of the document it is written EMD is not required, but in other it says bid security is required according to ton per day, kindly explain	(i) Please refer GEM BID ATC- It is mentioned that " The Terms and Conditions as per Bidding Documents are being incorporated through buyer added ATC in the GeM bid is final and will supersede to all conditions of GeM portal. Terms and Conditions stipulated in Bidding Documents will supersede those in GeM GTC and STC in case of any conflicting provisions. The Provisions of bidding document are amply clear & shall prevail. " (ii) For Applicability of Bid security/EMD please refer clause 7 of ITB , section-II of the bidding documents. Regarding Bid Security/ EMD exemption refer EMD exemption clause under clause 7 and clause 7.2.10 of ITB, also to be referred.
2	Only waived off for MSME certified Manufacturer of biomass pellets, for traders no waive off	Bidder's understanding is correct. For Applicability of Bid security/EMD please refer clause 7 of ITB , section-II of the bidding documents. Regarding Bid Security/ EMD exemption refer EMD exemption clause under clause 7 and clause 7.2.10 of ITB, also to be referred.
3	Traders are allowed only to supply 20 tons not more than that.	Bidders understanding is correct.
4	Sir we have applied for NTPC Mouda as well and now NTPC Korba is near to my manufacring unit. Will I get tender for Both?, In case of any conflict I would be happy to get tender for NTPC Korba than NTPC Mouda..I have capacity to supply at both the places, however in case of any conflict I would go for	The Provisions of bidding document are amply clear & shall prevail. Please refer clause 1.5 ALLOCATION CRITERIA Formula D for available manufacturing capacity is applicable.
5	Subject: Representation for Removing Condition of Giving Location for Supplies by Traders Category This tender penalizes traders by requiring an EMD, whereas manufacturers are not required to deposit any EMD. As a result, traders are more likely to supply, while manufacturers may not supply afterwards if they receive an order at a higher price than quoted or if their costs increase beyond the quoted price. They face no risk of losing EMD, and NTPC/ Ministry of Power has no clause to enforce or sue. No EMD is forfeited. On the other hand, traders have deposited EMD and fear losing it, making them more likely to supply. Even if they are unable to supply, NTPC/ Ministry of Power can forfeit their security.	The Provisions of bidding document are amply clear & shall prevail.
6	Bidding document Refrence on each page should it be of Individual teneder i.e. for Korba bid Reference to mention on each page should be Gem/2024/B/4939588 Or CS-0011-112R-9 for all locations	Please refer clause 1.2 of ITB Section-II of the bidding documents. The Provisions of bidding document are amply clear & shall prevail.
7	We have some query request you to please revert. 1.We are participating as a future manufacturer and we assume that having a MSME certificate and Startup India Certificate we exempted from EMD & Bid security and only applicable for SPG which can be paid after the WORK ORDER. 2.For future manufacturer we have to submitted form 7C in the lettet head of CA is there any other document we have to attached.	For Applicability of Bid security/EMD please refer clause 7 of ITB , section-II of the bidding documents. Regarding Bid Security/ EMD exemption refer EMD exemption clause under clause 7 and clause 7.2.10 of ITB, also to be referred. 2. Bidder to refer clause 20.0 ONLINE SUBMISSION OF BID DOCUMENTS & PRICES, of ITB, Section-II of the bidding documents. The Provisions of bidding document are amply clear & shall prevail.
8	Regarding NIT no. CS-0011-112R-9 Dear Sir, I hope this email finds you well. I'm a future pellet manufacturer currently planning to open a manufacturing unit in the southern region of Bihar. I have some basic queries regarding NTPC tenders for biomass pellets. Following are few of my queries regarding the same process: 1- What are all the documents required to participate in a tender bid at GEM for a future pellet manufacturer? 2- How will I get an EMD exemption as a future pellet manufacturer? 3- What are all the benefits and processes one can avail, recognised from Startup India?	1. Bidder to refer clause 20.0 ONLINE SUBMISSION OF BID DOCUMENTS & PRICES, of ITB, Section-II of the bidding documents. The Provisions of bidding document are amply clear & shall prevail. 2. For participation as future manufacturer, bidder has to submit bid security as per clause 7 of the ITB Section-II. For applicability of EMD/Bid security exemption please refer clause 7.2.10 of ITB Section-II of the bidding documents. The Provisions of bidding document are amply clear & shall prevail. 3. With startup certificate from DPIIT bidder may get EMD exemption as per EMD exemption clause 7.2.10 of ITB Section-II refer GeM GTC 4.0 (Version 1.14) dated 31st Jan 2024.

	Procurement of Biomass Pellets on FOR Power Station basis for NTPC Vindhyachal, Sipat, Korba and Lara Plants (LOT-2)
	GeM Bid Nos.:GEM/2024/B/4939757, GEM/2024/B/4939308, GEM/2024/B/4939588 and GEM/2024/B/4939662
	BID DOCUMENT NO. CS-0011-112R-9
1.	Amendment No.-01 to Bidding documents Section-II and V dated 14.06.2024 Reference No. CS-0011-112R-9-AMDT-01 to Commercial Portion date 14.06.2024

Amendment to the Commercial Portion bidding document mentioned above are as follows:

SL No			Existing provision of the bidding document	Amended
	Clause No	Header Detail	Sub Header Details	Sub Header Details
1.	Clause 20.1.6 e) to Section-II (ITB)	Documents to be uploaded for Techno-commercial Bid of E-tender	Attachment-3: Bidder details as per Employer format along with required documents as mentioned therewith Note- MSE bidders shall also upload a copy of UDYAM REGISTRATION CERTIFICATE (Containing code for Biomass pellets)	Attachment-3 (REV.01): Bidder details as per Employer format along with required documents as mentioned therewith Note- MSE bidders shall also upload a copy of UDYAM REGISTRATION CERTIFICATE (Containing code for Biomass pellets)
2	Clause 2.6 e) to Section-V (FORMS AND FORMATS)	Attachments for Techno-Commercial Bid:	Attachment-3: Bidder details as per Employer format along with required documents as mentioned therewith.	Attachment-3(REV.01): Bidder details as per Employer format along with required documents as mentioned therewith.
3	Attachment-3 to Section-V (FORMS AND FORMATS)		Attachment-3 format attached	Attachment-3(REV.01) is attached to amendment No. - 01 to bidding documents
4	Sl. No. 5 of Attachment -11 Section-V (forms and Formats)		Attachment-3: Bidder details as per Employer format along with required documents as mentioned therewith.	Attachment-3(REV.01): Bidder details as per Employer format along with required documents as mentioned therewith.

Bidder's detail (to be submitted by the bidder)**Bidder should fill-in the following information and upload the same in the offer)****Bid Ref. No:****DATED:**

Bidder's Name & Address:

To

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

Bidder's detail (to be submitted by the bidder)**Bidder should fill-in the following information and upload the same in the offer**

Name of the Bidder	
Type of Bidder (Proprietary/ Partnership/Company/ Consortium /Individual/ Cooperative Societies registered in India AND / OR Non-Resident Indians / Persons of Indian Origin AND / OR a Multi-National Company having its registered office in India registered / Overseas Corporate Bodies having its registered office in India.)	
UDYAM REGISTRATION CERTIFICATE No. & date (Validity) (Applicable for MSE bidders)	
GSTIN No	
Address of the *Manufacturing Plant (s) (Existing Facility/ Future Facility)/ Warehouse Locations from which supplies shall be made in case of Award for (Name of NTPC Plant for which supply to be made) Bidder may indicate all the Manufacturing Plant (s) (Existing Facility/ Future Facility)/ Warehouse Location (s) as applicable. Note: *Bidder may strike off which is not applicable.	

NIT / BID No	
HSN Code of the materials / Place of Dispatch	
CONTACT PERSONS /ADDRESS	
Telephone	
Fax	
E mail ID	
Name and Address of Supplying and Invoicing vendor along with NTPC vendor code, if known to the bidder.	

Documents Required

1. Individual applicant to attach ADHAR CARD, PASSPORT, PAN CARD AS PROOF OF AGE FOR MEETING QUALIFICATION REQUIREMENT
2. Supporting Document for Type of Company as mentioned in sl no. 2 of this attachment
3. Copy of UDYAM REGISTRATION CERTIFICATE (Applicable for MSE bidders) as mentioned in sl no. 3 of this attachment
4. GST Registration Certificate

Bidder shall submit valid GST registration certificate. Bidder is required to upload scanned copy of Attachment-3 along with the bid on the GeM Website.

Clarification No.-02 to Bidding Document for Procurement of Biomass Pellets on FOR Power Station basis for NTPC Vindhyachal, Sipat, Korba and Lara Plants (LOT-2)		
S.No.	Bidder's Query/Suggestion	NTPC's Reply
1	I am applying as a trader for bid number GEM/2024/B/4939757. There are numerous places within the tender application which ask for manufacturing unit address (eg. pg147, 132). As a trader, can I mention multiple manufacturing units in the form as my source? I need to do it to ensure a secure supply of biomass pellets to be supplied against this tender if awarded to me so that if one manufacturing unit is not able to provide I can procure and supply from another. I sincerely hope for a favourable reply.	In case of the bidder applying as TRADER , ' Attachment 7A for declaration of Traders/ Aggregators as per Employer's Format ', to be submitted and also please refer Amendment-01 to Bidding documents.
2	Attachment 3 ask for address of manufacturing unit. What does a trader need to mention in it? what if there are multiple source from which the trader secures his supply? Page 147	In case of the bidder applying as TRADER , ' Attachment 7A for declaration of Traders/ Aggregators as per Employer's Format ', to be submitted and also please refer Amendment-01 to Bidding documents.
3	Sir any criteria for ash percent please?	Refer technical specification section-IV of the bidding documents
4	Is NTPC going to procure the material in rainy season?	Refer SECTION IV (TECHNICAL SPECIFICATIONS) clause-7 Delivery Schedule
5	Subject: Representation for Removing Condition of Giving Location for Supplies by Traders Category 1. This tender penalizes traders by requiring an EMD, whereas manufacturers are not required to deposit any EMD. As a result, traders are more likely to supply, while manufacturers may not supply afterwards if they receive an order at a higher price than quoted or if their costs increase beyond the quoted price. They face no risk of losing EMD, and NTPC/ Ministry of Power has no clause to enforce or sue. No EMD is forfeited. On the other hand, traders have deposited EMD and fear losing it, making them more likely to supply. Even if they are unable to supply, NTPC/ Ministry of Power can forfeit their security. 2. Manufacturers must supply from their unit only, If traders are also bound to one unit, they also has to supply from there only. A situation may arise when the cost of raw materials increases dramatically in one Area due to lower crop yield, or else, in such situations traders can procure from other areas if not bounded to one unit. But manufacturer or bounded traders will be unable to supply and supply may suffer. Therefore, Independent traders are a more reliable source for assured supplies than manufacturers or bounded traders. If a trader makes an agreement with a manufacturer in advance and a Purchase Order (PO) is issued after 4-5 months, the manufacturer may refuse to supply due to increased costs or another order. The trader may be unable to supply from the tender's given location, lose the EMD, and NTPC will not obtain the necessary materials. If a tender is not awarded to the trader, and a binding agreement has been made with a manufacturer, the trader will lose the advance given to the manufacturer. Manufacturers will not make conditional binding agreements ... subject to the award of the tender. To make a conditional agreement with a manufacturer, a trader must offer a higher price for pellets to be procured from the manufacturer, which will either increase the quoted price or force the trader out of the tender. In both cases, NTPC will suffer by obtaining costly goods or reducing competition. And so on ... In light of the above, to achieve NTPC/ Ministry of Power's intention of allowing traders to participate in this tender, you are humbly requested to allow traders to mention the place of supply/ address of manufacturing unit (Attachment 3, Bidders Details or elsewhere) and local content place (Annexure T, Point 2.3 and undertaking of local supplies required at page no. 22/208, point ...). as INDIA or Punjab/Haryan/NCR as the case may be, indicating that he can supply from anywhere in India and 100% local content condition shall also be met	1. Please refer clause 7 of ITB Section-II of bidding document for EMD/Bid security applicability and also refer EMD/Bid security exemption clause 7.2.10 which is refereing GeM GTC GeM 4.0 (Version 1.14) dated 31st Jan 2024 regarding Exemption of bid security/EMD. No change is envisaged in the bidding document. 2. In case of the bidder applying as TRADER, 'Attachment 7A for declaration of Traders/ Aggregators as per Employer's Format', to be submitted and also please refer Amendment-01 to Bidding documents..

Clarification No.-02 to Bidding Document for Procurement of Biomass Pellets on FOR Power Station basis for NTPC Vindhyachal, Sipat, Korba and Lara Plants (LOT-2)		
S.No.	Bidder's Query/Suggestion	NTPC's Reply
6	1. Bidding document Refrence on each page should it be of Individual teneder i.e. for Korba bid Reference to mention on each page should be Gem/2024/B/4939588 Or CS-0011-112R-9 for all locations 2. As per attachment 7A at sr. no. 1 Warehouse location has to be provided. Kindly elevorate of which warehouse location has to be provided, present or future. And if no warehouse is there presently, can we provide nil or we have to take warehouse and fill address. 3. Page22/208 point 8.2.2 and page 51/208 and page 2 of annexure T point 2.3, Give details of location where local content addition is made. Does it mean, if we apply in traders categeory we have to provide address of location from where we shall procure or it means something else. Kindly elevorate. Also if this information has to be provided, on which format and form for that. 4. See attachment 3 bidders Details, page 147/208, if Bidders in traders categeory has also to give address of plant from where supplies shall be made before submission of bid or can be filled as NA for traders categeory or should be filled from India	1. Please refer clause 1.2 of ITB Section-II of the bidding documents. No change is envisaged in the bidding documents. 2, 3,&4. In case of the bidder applying asTRADER, 'Attachment 7A for declaration of Traders/ Aggregators as per Employer's Format', to be submitted and also please refer Amendment-01 to Bidding documents.

	Procurement of Biomass Pellets on FOR Power Station basis for NTPC Vindhyachal, Sipat, Korba and Lara Plants (LOT-2)
	GeM Bid Nos.:GEM/2024/B/4939757, GEM/2024/B/4939308, GEM/2024/B/4939588 and GEM/2024/B/4939662
	BID DOCUMENT NO. CS-0011-112R-9
1.	Amendment No.-02 to Bidding documents dated 22.06.2024 Reference No. CS-0011-112R-9-AMDT-02 date 22.06.2024

Amendment to the Commercial Portion bidding document mentioned above are as follows:

SL No			Existing provision of the bidding document	Amended
	Clause No	Header Detail	Sub Header Details	Sub Header Details
1	Clause 8.1 a.) to Section-II (ITB)	Benefits to MSEs	MSEs seeking benefits as above should upload a copy of UDYAM REGISTRATION CERTIFICATE (containing code of Biomass pellets) as a part of their bid, failing which their bid shall be treated as Non-MSE bid. Regarding MSE benefits as above, bidder has to submit UDYAM certificate with National Industrial Classification (NIC) code for biomass pellets. In absence of the NIC code in UDYAM, CA certificate (Refer Attachment 7B) along with UDYAM required to be submitted as per provisions of bidding document shall be acceptable.	MSEs seeking benefits as above should upload a copy of UDYAM REGISTRATION CERTIFICATE (containing code of Biomass pellets) as a part of their bid, failing which their bid shall be treated as Non-MSE bid. Regarding MSE benefits as above, bidder has to submit UDYAM certificate with National Industrial Classification (NIC) code for biomass pellets. In absence of the NIC code in UDYAM, CA certificate (Refer Attachment 7B (Rev.01)) along with UDYAM required to be submitted as per provisions of bidding document shall be acceptable.
2	Clause 8.1.1 to Section-II (ITB)	Applicability of MSE Benefits	Applicable towards Allocation of Quantity As per Annexure-Alloc-A, on submission of UDYAM REGISTRATION CERTIFICATE (containing code for Biomass pellets) as a	Applicable towards Allocation of Quantity As per Annexure-Alloc-A, on submission of UDYAM REGISTRATION CERTIFICATE (containing code for Biomass pellets) as a documentary evidence of their MSE status

			documentary evidence of their MSE status • Declaration/ Undertaking (as per Attachment-9) (Annexure -Alloc-A-3) • Certification from Chartered Accountant (As per Attachment 7B) For availing MSE benefits, bidder shall confirm that biomass pellets offered and quoted is produced by them. Further, the benefit of purchase preference will be available only when Bidder is a manufacturer of biomass pellets and in case of non- manufacturing of pellets by bidders, its bid shall be evaluated/treated as Non-MSE bid. The Purchase Preference shall be extended to MSE Bidders based on UDYAM REGISTRATION CERTIFICATE (Containing code for Biomass pellets) submitted by them supported by Certificate from Chartered Accountant specifying that Bidder has set-up manufacturing plant for pellets and providing details like manufacturing capacity of Plant for Biomass Pellet Manufacturing etc., along with the Undertaking (Attachment-9) in support of the claim that such item(s) are manufactured by the Bidder. The format to be furnished by the Bidder after due certification from practicing chartered Accountant is attached at Attachment 7B. Purchase preference to eligible MSE will be given only for the item{s} quoted by the bidder for which bidder is a manufacturer. If the MSE Bidder has only submitted UDYAM REGISTRATION CERTIFICATE (Containing code for Biomass pellets) and if it is found at any stage that none of the items offered/quoted by the MSE bidders /	• Declaration/ Undertaking (as per Attachment-9) (Annexure -Alloc-A-3) • Certification from Chartered Accountant (As per Attachment 7B (Rev.01)) For availing MSE benefits, bidder shall confirm that biomass pellets offered and quoted is produced by them. Further, the benefit of purchase preference will be available only when Bidder is a manufacturer of biomass pellets and in case of non- manufacturing of pellets by bidders, its bid shall be evaluated/treated as Non-MSE bid. The Purchase Preference shall be extended to MSE Bidders based on UDYAM REGISTRATION CERTIFICATE (Containing code for Biomass pellets) submitted by them supported by Certificate from Chartered Accountant specifying that Bidder has set-up manufacturing plant for pellets and providing details like manufacturing capacity of Plant for Biomass Pellet Manufacturing etc., along with the Undertaking (Attachment-9) in support of the claim that such item(s) are manufactured by the Bidder. The format to be furnished by the Bidder after due certification from practicing chartered Accountant is attached at Attachment 7B (Rev.01). Purchase preference to eligible MSE will be given only for the item{s} quoted by the bidder for which bidder is a manufacturer. If the MSE Bidder has only submitted UDYAM REGISTRATION CERTIFICATE (Containing code for Biomass pellets) and
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			are manufactured by them, their bid shall be treated as Non-MSE bid. However, in case the MSE Bidder is manufacturing any / some of the quoted item(s) then Purchase Preference benefits for MSEs shall be extended for such item(s) being manufactured by them. For balance items, its bid shall be evaluated as "Non MSE" bidder.	if it is found at any stage that none of the items offered/quoted by the MSE bidders / are manufactured by them, their bid shall be treated as Non-MSE bid. However, in case the MSE Bidder is manufacturing any / some of the quoted item(s)
3	Clause 9.2 to Section-II (ITB)	CERTIFICATE OF COMPLIANCE	Acceptance of Attribute for Compliance on Qualifying Requirement shall be considered as bidder's confirmation to the following: The details furnished by us in Attachment 7B, for establishing the compliance to specified Qualifying Requirement and Allocation Criteria are in accordance with ITB Clause 1.5 of the ITB of the Bidding documents.	Acceptance of Attribute for Compliance on Qualifying Requirement shall be considered as bidder's confirmation to the following: The details furnished by us in Attachment 7B (Rev.01), for establishing the compliance to specified Qualifying Requirement and Allocation Criteria are in accordance with ITB Clause 1.5 of the ITB of the Bidding documents.
4	Clause 20.1.6 i. to Section-II (ITB)	Documents to be uploaded for Techno-commercial Bid of E-tender	Attachment 7: Participation Criteria Documents in accordance with Clause ITB clause 1.5 Allocation Criteria, seeking Quantity allocation as per Bidding Documents provision • Attachment 7A: For declaration of Traders/ Aggregators as per Employer's Format • Attachment 7B: Certificate by Chartered Accountant on Letter Head for Bidders' manufacturing capacity and availing MSE benefits/ Purchase preference (If applicable) as per Employer's format • Attachment 7C: Certificate by Chartered Accountant on Letter Head for future pellet manufacturers as per Employer's Format	Attachment 7: Participation Criteria Documents in accordance with Clause ITB clause 1.5 Allocation Criteria, seeking Quantity allocation as per Bidding Documents provision • Attachment 7A: For declaration of Traders/ Aggregators as per Employer's Format • Attachment 7B (Rev.01): Certificate by Chartered Accountant on Letter Head for Bidders' manufacturing capacity and availing MSE benefits/ Purchase preference (If applicable) as per Employer's format • Attachment 7C: Certificate by Chartered Accountant on Letter Head for future pellet manufacturers as per Employer's Format

5	SECTION V (FORMS AND FORMATS)	LIST OF ATTACHMENTS & ANNEXURES AND FORMS & FORMATS	11. Attachment-7B Certificate by Chartered Accountant on Letter Head for bidders' manufacturing capacity	11. Attachment 7B (Rev.01) Certificate by Chartered Accountant on Letter Head for bidders' manufacturing capacity
6	SECTION V (FORMS AND FORMATS)	Attachment-T 2.7 i)	Attachment 7B: Certificate by Chartered Accountant on Letter Head for Bidders' manufacturing capacity and also availing MSE benefits/ Purchase preference (If applicable) as per Employer's format.	Attachment 7B (Rev.01): Certificate by Chartered Accountant on Letter Head for Bidders' manufacturing capacity and also availing MSE benefits/ Purchase preference (If applicable) as per Employer's format.
7	SECTION V (FORMS AND FORMATS)	Attachment-7 S.no.2	Attachment 7B: Certificate by Chartered Accountant on Letter Head for Bidders' manufacturing capacity and availing MSE benefits/ Purchase preference (If applicable).	Attachment 7B (Rev.01): Certificate by Chartered Accountant on Letter Head for Bidders' manufacturing capacity and availing MSE benefits/ Purchase preference (If applicable).
8	SECTION V (FORMS AND FORMATS)	Attachment - 7B	Attachment-7B format attached	Attachment 7B (Rev.01) is enclosed as Annexure-I to Amendment No. -02 to bidding documents
9	SECTION V (FORMS AND FORMATS)	Attachment-11, S. No. 8.	Attachment 7B: Certificate by Chartered Accountant on Letter Head for Bidders' manufacturing capacity and also availing MSE benefits/ Purchase preference (If applicable) as per Employer's format	Attachment 7B (Rev.01) : Certificate by Chartered Accountant on Letter Head for Bidders' manufacturing capacity and also availing MSE benefits/ Purchase preference (If applicable) as per Employer's format
10	SECTION V (FORMS AND FORMATS)	Attachment-11, 2. Envelope II: Price Bid	C. Certification from Chartered Accountant (As per Attachment 7B)	C. Certification from Chartered Accountant (As per Attachment 7B (Rev.01))

Annexure-I

Bidding Doc. No. CS-0011-112R-9

Attachment - 7B (Rev.01)

PAGE 1 OF 2

Certificate by Chartered Accountant on Letter Head for Bidders' manufacturing capacity and also availing MSE benefits/ Purchase preference (If applicable)

To,

NTPC Limited,
Engineering Office Complex,
Plot No. A-8A, Sector 24, NOIDA,
Distt. Gautam Buddha Nagar (U.P.), Pin – 201301, INDIA

Bidders' Manufacturing Capacity

This is to certify that M/s (Name of the Bidder) is having its registered office at..... and its Manufacturing plant is/are located at which is/are in operation since..... Details of Plants are mentioned below:

S. No.	Plant location	Type of palletization Machine (Ring Dye, FlatDye, Piston type, Other)	Palletization Machine Make	Number of palletization Machines(A)	Capacity in TPH permachine(B)	Total capacity of pellet M/cs(TPH) (AXB)
1*						
2*						
3*						
Total						

S. No.	Plant location	Hammer mill Make	Number of Hammer mill Machines(A)	Capacity in TPH permachine(B)	Total capacity of hammer mills(TPH) (AXB)
1*					
2*					
3*					
Total					

* Bidder may add more rows, if required

Notes:

1. Bidders may please note that for Capacity evaluation purpose, the TPD capacity (least of total pellet M/c or total Hammer mill capacity) will be calculated based on 10 Hr operation per day. For example, for one 2 TPH machine/hammer mill, the TPD capacity will be taken as 20 TPD. If the declared capacity is more than the calculated capacity as per this formula, the same shall be restricted to calculated capacity.
2. If the total TPD capacity works out to 60 TPD or more, NTPC may verify the capacity before allocation of quantity.
3. In case of any misrepresentation of the facts, the bid shall be rejected, and action may be taken as per the terms and conditions of the tender.

Further, it is certified that M/s (Name of the bidder) is a manufacturer of Agro-residue based biomass pellets having Total manufacturing capacity of TPD(Tonnes per Day) for above mentioned plant/s.

(Authorised Signatory with stamp/seal)

Name of Chartered Accountant

Attachment - 7B (Rev.01)

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1.* (If applicable) availing MSE benefits/ Purchase preference

It is verified from the Books of Accounts of M/s(Name of the Bidder)
that they

have completed the setting up of the Agro-residue based Biomass Pellet

Manufacturing Plant located at.....

(address of Manufacturing Plant) is registered under MSMED Act 2006,

(UDYAM REGISTRATION CERTIFICATE with biomass code)

..... Dated....., category:

.....(Micro/Small)

I). (copy

enclosed)

(Authorised Signatory with stamp/seal)

Name & address of Chartered Accountant

Membership Number-

UDIN -